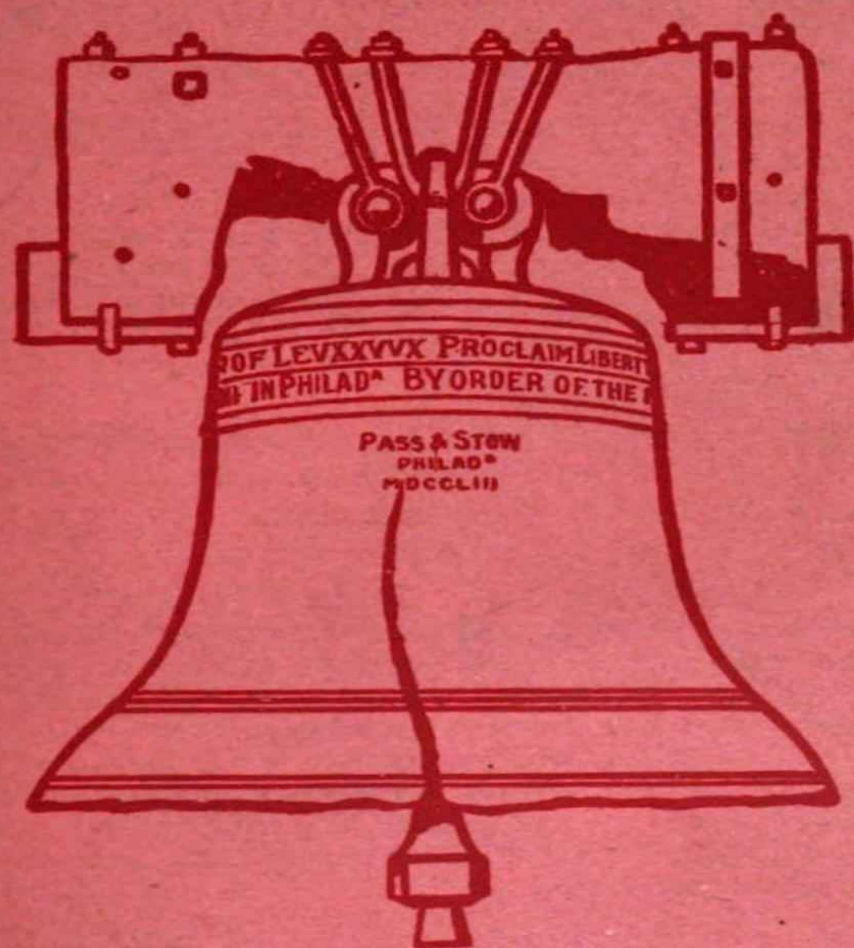


VOL. I, NO. 4

JUNE, 1905

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MONTHLY

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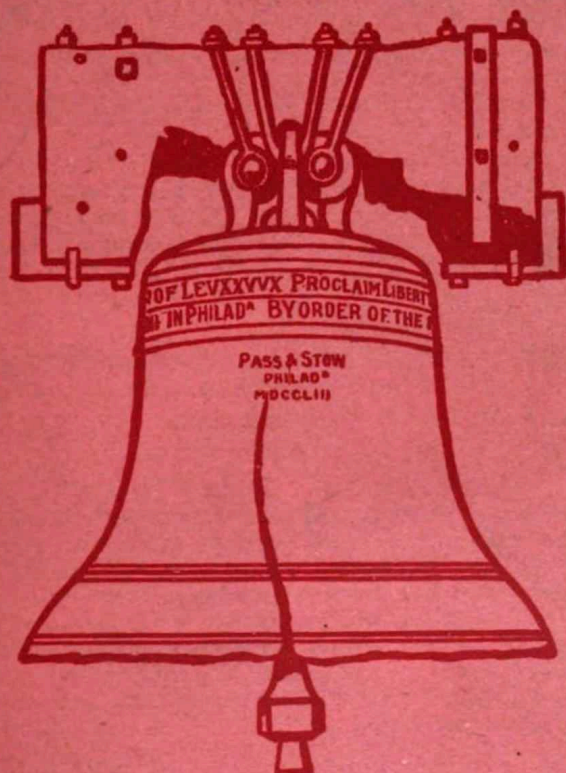
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THE MAGAZINE WITH A PURPOSE BACK OF IT

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How to Overthrow Plutocracy

Several million people in the United States are in substantial accord with the demands of the People's Party. A majority of all voters would welcome Government Ownership of Railroads and other public utilities. The recent great victory in Chicago for Municipal Ownership demonstrates this fact. What Chicago has done locally can be accomplished in the nation—and WILL be done as soon as the people overcome

Political Inertia

With many the voting habit becomes fixed after one or two elections. The ordinary man keeps on "voting 'er straight" long after he has discovered that his party's actions are out of joint with his own views. Party "regularity" commands the average man's support long after he KNOWS his party is headed wrong. Some really great men, even, have placed party "regularity" before principle.

A Great Light

on the correct principle of organization is to be found in that admirable work by George Gordon Hastings,

The First American King

A dashing romance, in which a scientist and a detective of today wake up seventy-five years later to find His Majesty, Imperial and Royal, William I, Emperor of the United States and King of the Empire State of New York, ruling the land, with the real power in the hands of half a dozen huge trusts. Automobiles have been replaced by phaërmobiles; air-ships sail above the surface of the earth; there has been a successful war against Russia; a social revolution is brewing. The book is both an enthralling romance and a serious sociological study, which scourges unmercifully the society and politics of the present time, many of whose brightest stars reappear in the future under thinly disguised names. There are wit and humor and sarcasm galore—a stirring tale of adventure and a charming love story.

Hon. Thomas E. Watson says:

“I read ‘The First American King,’ and found it one of the most interesting books I ever opened. Mr. Hastings has not only presented a profound study of our social and economic conditions, but he has made the story one of fascination. It reminds me at times of Bellamy’s ‘Looking Backward,’ but the story is told with so much more human interest, the situations themselves are so much more dramatic, that it impresses me very much more favorably than any book of that kind I have ever known.”

Interesting as the story is as a romance and as a critical sociological study, one of its vitally important points is

How to Organize

Mr. Hastings says:

“It has been suggested,” continued General Mainwarren, “that a wise course for patriotic leaders of your day would have been to have abandoned the hope of converting and securing the grown voters as a body. It would have been best for them, at a given time, to have said: ‘Beginning from today, we will pay no attention to any male who is more than fifteen years of age and who is now, or within the next six years will be, entitled to a vote. But we will direct all efforts to an entirely new body of suffragists.’ They should then have turned their attention to the *women of the land*, to

the mothers of future generations of voters. It has been said that ‘Every woman is at heart a royalist.’ It could with equal truth be said: ‘Every woman is by nature a politician.’ ... Look at the influence exerted politically by various women of whom history speaks.”

This Is the Key-Note of Success

For fifteen years the People’s Party, in season and out of season, has preached “Equal Rights to All, Special Privileges to None.” It has persistently demanded that government shall attend to public matters, and that private business shall be conducted by individuals with the least possible interference—and absolutely no favoritism—by government. It has continually demanded public ownership and government operation of railroads and other public utilities. It has urged the initiative, referendum and the recall; a scientific money system; the abolition of monopoly in every form. Millions of voters—as the Chicago election clearly indicates—are in accord with the People’s Party; but heretofore the voting habit, the “vote ’er straight” political insanity, has kept them in political slavery.

Educate the Boys

Let us train up a new generation of voters—without diminishing our efforts to break up old party habits—who will have the courage of conviction and correct ideas regarding politics and economics. Let us interest the mothers, so we can have the boys taught to cast their first votes on the side of Justice. Habit will then keep them voting right.

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SOME POPULIST PRINCIPLES

(1) Public Ownership of Public Utilities, including Railroads, Telegraphs, Telephones, etc.

(2) Direct Legislation by the people: the Initiative, Referendum and Recall.

(3) The election of all officers by the people.

(4) Graduated Income Tax and Inheritance Tax.

(5) National Currency created by the Government without the intervention of National Banks; every dollar to be the equal of every other dollar.

(6) Postal Savings Banks; the eight-hour day, regulation of Child Labor in Factories, Sweat-shops and similar avocations.

(7) Opposition to land monopoly.

(8) Removal of Tariff burdens from the necessities of life which the poor must have to live.

Populism seeks to put political power into the hands of the people and to work out a system of **Equal and Exact Justice to all, without special favors to any.**

TOM WATSON'S MAGAZINE

VOL. I

JUNE, 1905

No. 4

Editorials

BY THOMAS E. WATSON

Our Creed

THE People's Party does not attempt the impossible, or seek the unattainable.

Our young men do not dream dreams; our old men do not see visions. We are wedded to practical reforms which have been tried in civilized communities, and which have vindicated themselves by results.

We do not propose to re-create society, subvert law and order, confiscate property, or substitute a new system of government for the old.

We do not want to tear down the house in order to repair it.

We do not hope to build a perfect state with imperfect human hands, but we do intend to make the government as nearly perfect as possible, to the end that it shall represent that conception of justice which deals with all men alike, and allows to every child of Adam a fair chance in the world which God created as a home for the human race.

We believe that the government should be clothed with all the attributes of sovereignty; that *the government should govern*, and should *not delegate to private citizens or corporations* any part of its sovereign power.

The creation of a national currency has always been an attribute of sovereignty—of royalty.

In a system where the people rule the people succeed to the power of the king; and that attribute of sovereignty which the king exercised and did not delegate should be exercised by the people and should not be delegated.

Therefore, the Populists, successors to the old Greenbackers, have always clung to it as an article of faith that the Federal Government should exercise its constitutional right to create a currency, and should not delegate that power to national banks or to private citizens or corporations.

The government should supply the country with a sufficient amount of national money, every dollar of which should be equal to any other; every dollar of which should be a full legal tender for all claims, public and private, and *no dollar of which should be made redeemable in any other dollar.*

We believe that those things which are essentially public in their nature and their use should belong to the public, and should be equally enjoyed by all.

Just as the navigable rivers are public to the beggar and the millionaire alike, just as the Bay and the Gulf and the Harbor and the navigable Lakes are the common property of the rich and the poor, the high and low, the black and white, so we believe that the roads should be common ground upon which every citizen should be free to pass upon terms of equality, and that the iron highways of today, which were taken from the people by the exercise of the right of Eminent Domain, should be restored to the public by the same law of Eminent Domain, a fair compensation having been paid, and the property operated hereafter for the benefit of all the people.

So with the Telegraph and the Telephone and Express Companies.

In every city and town we believe that the municipality, which is a part of the state's sovereignty, should take over to itself those public utilities which in their very nature are monopolies, and, just compensation having been paid, that these utilities should be used for the benefit of the people, to whom they belong.

We believe that the government should be supported by a system of taxation in which each citizen will pay taxes *in proportion to his ability to pay.*

We believe in a Tax on the Franchises enjoyed by private corporations.

We believe that the Income Tax would be the fairest of all taxes, because it would take for the support of the government, not the property of the citizen, but a portion of the income which the citizen derives from that property, or from his individual exertions, and the tax would be proportioned to the income.

That property or that salary could not be enjoyed without the protection and the advantages which flow from government, and it is eminently fair, where the government has protected me, or where it affords me such opportunities, that I can receive a large income from any source whatever, I should pay to the government, in return for its protection and its advantages, a fair share of that which I could not have made without that protection and those advantages.

Under our present system a man like John D. Rockefeller pays no more Tariff tax when he buys a hat than a doctor or lawyer or preacher pays when he buys a hat. So with the shoes, the clothes, the crockery on the table, the furniture in the house. Many a citizen whose income does not amount to ten thousand dollars per year pays fully as much Tariff tax in the purchasing of necessary articles of clothing, furniture and food as John D. Rockefeller pays, whose income is counted monthly by the millions of dollars.

The same thing is true of Carnegie, Morgan, Hill, Harriman, Gould, Cassatt, Vanderbilt. Many a farmer whose income from his farm may not do more than give his family an actual support, after the operating expenses are paid, contributes annually a greater sum in Tariff tax to the Federal Government than is paid by the fabulously wealthy beneficiaries of class legislation.

It has been said that the People's Party dodges the Tariff issue. This is not true.

One of our earliest platforms, which has been repeatedly reindorsed, declares:

“We demand the removal of the Tariff tax from the necessities of life which the poor must have to live.”

This is precisely the principle announced by Thomas Jefferson, who declared that the taxes should be so laid that the luxuries of life would bear the burden of government, and that his ideal was a system in which the poor would be entirely relieved from the crushing weight of taxation.

Furthermore, we have said that legislation should not be so framed as to build up one business at the expense of another.

If the People's Party platform were enacted into law, *there could be no such thing as a Trust in the United States.*

In order that the people should become the victims of such tyranny as that exercised by the Trusts two things are necessary: *Foreign relief must be made impossible, and domestic relief made impracticable.*

The Tariff wall keeps the foreigner from interfering; the railroads and the national banks supporting the Trusts make it impossible for domestic dissatisfaction to assert itself effectively.

If the people should put upon the free list those articles which are made the subject of the Trusts, the foreigner could at once invade the market, and destroy the monopoly upon which the Trust is based.

If the Populist principles of finance and of transportation should be carried into effect, the Government abolishing national banks and private ownership of transportation lines, *the rebate would be impossible, discriminations would cease, equality would prevail, and there would be no collusion between the national banks and the railroads by which Trusts are made invincible as they are now invincible.*

We believe in direct Legislation—putting the power of making laws and choosing rulers back into the hands of those to whom it belongs—and the election of all officers by the people.

The people should not be made to await the pleasure of the Legislature or of Congress. They should not be kept in ignorance of what the law is until legislative acts become known through the newspapers. There should be in every case the right to initiate those laws which they want, and to veto, through the Referendum, any law which they do not like.

When an officer whom they have elected shows by any vote or act that he is not the man they took him to be, they should not have to wait till the expiration of his term to get a better man. They should have the right to recall the officer the moment he betrays his trust.

We believe in the eight-hour day for labor in Government works, in factories, workshops and mines.

We believe in the regulation of child labor in factories, workshops and mines, to the end that children of tender age shall not be made to slave out their lives in order that corporations shall have cheap labor and large dividends.

Saturn, the old fable tells us, devoured his own children: Christian civilization does the same thing.

As long as we permit children of ten and twelve years to labor from eight to fourteen hours per day in our mills and workshops modern civilization is another Saturn. *We are devouring our own children.*

We believe that the land, the common heritage of all the people, should not be monopolized for speculative purposes, or by alien ownership, but that legislation should be so shaped as to encourage to its full extent the right of every man born into this world to till the soil and make a living out of it.

And one of the principal reasons why we favor a graduated income tax, which increases by geometrical progression as the income increases, is that it automatically keeps the wealth of the country in a constant sort of redistribution, and acts as a check upon that excessive accumulation which is recognized by all intelligent thinkers as one of the most serious perils and intolerable evils of our present era of class legislation.

These are the most important articles of our faith. It is for these principles that we have struggled ever since 1891—with never a doubt that they were sound, that they would constantly gain converts, *that they would ultimately win.*

When I founded the *People's Party Paper* in Atlanta, Ga., in 1891 (which paper lived and toiled for these principles until the fusion movement of 1896 killed it, as it killed twelve hundred other Populist papers), I announced the same purpose which I announced in the prospectus of this magazine.

My faith was as firm in 1891 as it is today, and I had as little doubt then as I have now that Populism is just as sure to triumph as the sun is to continue to warm the world.

The reforms will be effected *because the country needs them*. It cannot stand much more of the present system. It will not accept Socialism. Occupying the middle ground of radical, but practical reform, Populism is inevitable.

National Politics and Policies

There is a saying that the difference between a wise man and a fool is that the wise man never makes the same mistake twice, while the fool continues to make it without limit.

It is of supreme importance that those who will act as political leaders during the next four years should think clearly in order that they may act wisely.

We have not, as yet, discovered any brighter lamp with which to guide our footsteps than that which Patrick Henry named the Lamp of Experience.

If I felt that our national leaders were about to repeat a disastrous mistake and adopt a policy which seems the continuance of the reign of class legislation and special privilege, I should be false to my own sense of duty if I did not at this early day point out that error and warn the Jeffersonians against it.

I say Jeffersonians because, after all is said and done, there are but two great differences of political thought in the United States—never have been but two; never will be but two.

On the one hand are those who believe that legislation should be dictated by the interest of the few; that the powers and the benefits of good

government should be monopolized by the few; that the blessings and the opportunities of life should be the heritage of the few; that wealth and privilege and national initiative should perpetually be the legacy of the few.

On the other hand is the Jeffersonian idea that the human family are all alike the children of God; that the earth and all it contains was created for the benefit of this human family, and that any system of law and government which gathers into the hands of the few an unjust proportion of the common estate, to the exclusion of the vast majority, is an infamous invasion of the natural rights of man.

Now, what is it that endangers the cause of the Jeffersonians?

What is it that seems to me to be so certain to insure the continuance of the rule of the few over the many?

It is the continued existence of the political alignment of the great mass of the people in two political parties, each of which, in its heart of hearts, is wedded to the rule of the few.

Neither one of these parties wants any material change in our present system of legislation or of administration.

Both of them are absolutely dominated by the same interests.

In the ranks of each of these parties are found the powerful railroad kings, the irresistible trusts, the indispensable national banks, the vastly influential insurance companies.

As a matter of fact, nearly every board of management of every predatory corporation against which the people are rising in revolt is made up half and half of Democrats and Republicans, in order that, no matter which party wins at the polls, the corporation will have influence at court.

It is so clear to me that the only possible hope for the people is to drive these two parties together while the people unite under another standard.

In vain does Judge Parker talk about the difference between his Democracy and the Republicanism of Mr. Roosevelt. During the campaign he was unable to state any difference, and there is, in fact, no difference.

Between Belmont's ideas of government and those of Mark Hanna there is not the slightest difference.

Between the Democratic corporation and the Republican corporation it is absurd to claim that there is any difference.

Between Democratic manufacturers and Republican manufacturers no human being of intelligence will expect any difference or find any.

In other words, the millionaire beneficiaries of class legislation control both of the old parties, and the battle which they wage year after year, decade after decade, is a mere sham battle. The strategy of the corporations consists in keeping the people divided in order that the corporations may rule.

Believing this to be true, I am painfully impressed with the fact that Mr. Bryan is making a huge mistake.

The pity of it is, he has already made that mistake twice, and is now making it for the third time.

What is the mistake?

It consists of the effort to get radical reform out of a party which has always been dominated and always will be dominated by conservatives. When the currency was contracted just after the Civil War and ruin brought upon so many thousands of people in this country, it took the joint action of both the old parties to do it.

When the revenue taxes were taken off railroads, manufactures, insurance companies, bank checks and express companies, soon after the close of the Civil War, it took the joint action of both the old parties to do it.

When the Income Tax was lifted from the burdened shoulders of the rich, it took the joint action of both the old parties to do it.

When Silver was struck down and the Gold Standard forced upon us, it took the joint action of both the old parties to do it.

When our National Bank System was enthroned, and that terribly unjust system was chartered to prey upon the people, it required the joint action of both the old parties to do it.

When Congress, over the protest of Thaddeus Stevens and others, obeyed the command of the Rothschilds (delivered at Washington personally by August Belmont, the father of the present Boss of the

Democratic Party), and declared by legislative enactment that the banks should be paid in gold while the soldier at the front should be paid in greenbacks, it required the joint action of both the old parties to do it.

There has never been a necessary act of Congress—necessary to the rule of the few, necessary to carry out the Hamiltonian ideal—that did not rest for support one foot on the Republican Party and the other on the Democratic Party.

The man who does not know this to be true is unfamiliar with official records.

The time has been when Mr. Bryan held the same opinions which I am expressing now. The time has been when he declared, in speech and writing, that there was no hope for reform in the Democratic Party.

In 1896 Mr. Bryan, in the Omaha *World-Herald*, editorially asked:

“Can a National Convention harmonize the discordant elements of the Democratic Party? Impossible.

“Suppose the advocates of bimetallism control the National Convention and nominate a Free Silver Democrat upon a free coinage platform, will Cleveland, Carlisle, Olney, Morton, *et al.* support the ticket? Of course not. They say that the free coinage of silver means individual dishonesty, commercial disaster and national dishonor, and if they believe what they say they ought not to support the ticket, because their duty to their country is higher than their duty to their party organization. If, on the other hand, the convention nominates a Gold Standard Democrat on a platform indorsing the gold standard, gold bonds and national bank currency, should the nominee be supported by those who believe the gold standard to be a conspiracy of the capitalistic classes against the producers of wealth—a crime against mankind? Who says they should?

“If to continue Mr. Cleveland’s financial policy is to declare war against the common people, what friend of the common people would be willing to enlist in such a warfare, even at the command of his party?

“The Democratic Party cannot serve God and Mammon; it cannot serve plutocracy and at the same time defend the rights of the masses.

“If it yields to the plutocracy it ought to lose, and it will lose, the support of the masses; if it espouses the cause of the people, it cannot expect either votes or contributions from the capitalistic classes and from the great corporations.”

In pursuance of this very correct line of reasoning, Mr. Bryan resolutely declared that if the Democratic Party adopted the gold standard, *“I promise you that I will go out and serve my country and my God under some other name, even if I must go alone.”*

Again Mr. Bryan said, in his book called “The First Battle,” Chapter III, page 124, “In that speech I took the position which I have announced since on several occasions, namely, that I would not support for the Presidency an advocate of the gold standard.”

Again Mr. Bryan said: “Does the individual member of a party at all times reserve the right to vote against the nominee of a party, and to abandon his party entirely whenever in his judgment his duty to his country requires it? He may abandon the party temporarily, as, for instance, when an unfit candidate is nominated, or the voter may abandon his party permanently, either when he himself changes his opinion upon a paramount public question or when his party changes its position.”

Now let the reader compare the present attitude of Mr. Bryan with the political ethics expounded by him in his book.

He was then the idol of the radicals; he was then the Tribune of the People.

He was the strong and stalwart foe of every plutocrat, every Wall Street interest, every beneficiary of class legislation.

The people hailed him with an enthusiasm which had not been known since the days of Henry Clay. So great was their faith in him that he swept into his movement in 1896 the Free Silver organization and the great bulk of the Populist Party.

Who is it that cannot see how loftily he held his flag in those days? Who is it that does not realize how sadly it droops today?

From the noble stand of 1893 and 1896, what a falling off is there! Boldly he declared that he would never support for the Presidency an

advocate of the gold standard. Yet, when Judge Parker slapped his face in public with the Gold Telegram of 1904, the dauntless Bryan turned the other cheek, like a very meek Christian indeed.

He had said that a Democrat might bolt his party *temporarily* upon the nomination of an unfit candidate; he had said that Judge Parker was an unfit candidate, but he did not bolt the nomination, even *temporarily*.

He had said that the voter might abandon his party *permanently* when that party changed its position upon a paramount public question; yet when the Democratic Party, with extraordinary suddenness, changed its position upon more than one paramount question in 1904, Mr. Bryan did not bolt his party *permanently*.

He had said that if the Democrats took up the Republican financial policy, which meant the slavery of the debtors of this country and the impoverishment of the people, he would go out and serve his country and his God under some other name, even if he had to go alone. Yet when his party did come over to the Republican financial policy, and came by telegraph at that, *Mr. Bryan did not go out to serve either his country or his God under some other name.*

He had said to his brother Democrats: "If you are ready to go down on your knees and apologize for what you have said" (abuse of the Republicans and the gold standard), "you will go without me."

Yet when the Democratic Party, at the St. Louis Convention in 1904, went down on its knees, in effect, to apologize for the abuse which they had heaped upon the Republicans for eight years, they did not go without Mr. Bryan. The knees of Mr. Bryan hit the floor in timely cadence with the knees of all the others, and when he filed out of the convention hall the dust was there to show it just as it was there to show it on the knees of all the others.

Bryan himself asked the question in 1896: "Can a National Convention harmonize the discordant elements of the Democratic Party?" He answered his own question in the comprehensive word, "*Impossible.*"

The event of the campaign of 1896 showed that he was right, for the Cleveland-Carlisle-Belmont element knifed him.

In the campaign of 1900 they knifed him again. In the campaign of 1904, when the convention nominated a gold standard Democrat on a platform indorsing the gold standard, gold bonds and the gold bank currency, the people refused to support the sell-out of the National Democratic Party to Wall Street, just as Mr. Bryan, in 1896, prophesied that they would, in spite of the fact that the prophet of 1896 had become the gold standard nominee's most earnest advocate in the campaign of 1904.

In other words, the people had become so inoculated with the true gospel of Bryan, the Tribune of 1893 and 1896, that they refused to follow the change of heart and the change of conduct which came over Bryan, the Parkerite of 1904.

Will not Mr. Bryan reflect upon this and draw a lesson from it? He himself has declared that he is attempting the impossible in trying to harmonize the discordant elements of the Democratic Party.

What is the real statesmanship demanded at this time?

That those who believe in Jeffersonian ideals, whether they are now in the Republican, Democratic, Populist or Socialist parties, should come together without prejudice for party names, and should unite in the common cause of driving from power the beneficiaries of class legislation, no matter whether those beneficiaries are called Democrats or Republicans.

Let the Belmonts and Morgans get together in the same party so that we can fight them both at the same time.

As long as we cling to party differences and party names our efforts will come to naught, as they did in 1896, 1900 and 1904.

Mr. Bryan wants the reform movement to stop and wait for him, while for four years he struggles to get the better of the plutocratic element of his own party. If they were able to wrest control from him when he had so much more advantage than he has now, how can we expect him to take that control from their strong hands?

But, suppose he does succeed in defeating the Belmont-Cleveland element in the convention of 1908, does he not know that they will fulfil his prediction again and knife him as they have done twice already?

On the other hand, suppose they conquer him in 1908 as they did in 1904, will he not submit tamely to kiss the hand that smote him as he did in the last convention? Most assuredly he will.

He lost his opportunity to fly the flag of revolt when he failed to resent the Gold Telegram of 1904. That opportunity passed, never to return.

Absolutely the only hope of radical reform lies in a straight-out, aggressive and fearless *fight upon both the old parties*, which in turn have had control of the Government, and which have played into each other's hands in forging the chains of class legislation which now bind and burden the Common People.

Is It Paul Jones's Body?

Have they found the body of John Paul Jones?

The experts say that they have.

To the legal mind, the fact that *experts* had to be called in to pass upon the question of identity is sufficient to arouse suspicion and provoke investigation.

As stated in a former number, I was certain they would find Paul Jones—in their minds—for that was what they were looking for.

Whenever, for instance, the medical expert starts out to find arsenic in the human stomach, arsenic generally shows up all right enough.

In like manner French experts were called in to identify a certain corpse as that of Paul Jones, and, after the most elaborate and beautifully regular formalities, they solemnly pronounced the verdict which they knew was expected and which they were predisposed to find.

“This is Paul Jones, isn't it?” asks General Porter, most suavely, not to say persuasively.

How could the politest experts of the politest people on earth say nay?

The case was pitiful.

The search for Paul Jones's body had reached a crisis. Only four leaden coffins had been found in the old graveyard, and one of these *had* to be Paul Jones, because he had been buried in such a coffin, and the other three bore name-plates which showed they could not be his.

The fourth bore no name-plate; therefore it *must* be Jones's coffin.

The necessity of the situation required it.

Consequently, polite French experts measure, compare, incubate, decide and bring in the verdict desired.

Looking at the matter as a lawyer, I should say that there is not sufficient legal evidence offered, as yet, to establish the identity of the dead body.

The cemetery in which Commodore Paul Jones was buried was closed by law in 1793.

A canal was afterward cut through it.

The great sea-fighter was buried, as Napoleon was, in uniform.

In the Life of him—"Great Commanders' Series"—by Cyrus Townsend Brady, the statement is made that *Paul Jones was buried in the American uniform*, and that *a sword and other articles were placed in the coffin*.

The body which General Porter has found was *not* clad in uniform.

There was no sword, or other article, found in the coffin.

Commodore Jones died of dropsy, which had swollen his body to such an extent that he could not button his waistcoat.

Yet the French experts declare that all the measurements tally exactly with those of the living Jones.

Should They Do So?

Awful changes take place after death, and they are greater with some than with others.

Should the measurements of a corpse which had been entombed more than a hundred years correspond *exactly* with those of the same body when alive?

Most biographers put the *height* of Admiral Jones at “about five feet and eight inches.”

Won’t you find a greater number of men—in France especially—whose height is “about five feet eight inches” than you’ll find at any other figure?

And will you not find more *corpses* of about that length?

Yet in these measurements consists the whole of the testimony which has been offered to the American people to convince them that the body of Paul Jones is at last to come home.

Unless the matter of the uniform and the sword be cleared up, it is impossible to accept the conclusion arrived at by the experts.

This corpse may be, as already stated, a good enough Jones for that \$35,000, but it has not yet been shown to be John Paul Jones, the naval hero of our War of Independence.

Is the Black Man Superior to the White?

With statistics one can prove many things—the conclusion arrived at depending, in all cases, considerably upon the man behind the figures.

This time the man behind the figures is Doctor Booker Washington—may his shadow never grow less!

In the course of a recent lecture, the learned Doctor laid down the proposition that the black man is superior to the white, and he proved it—proved it by statistics.

He said that there is 85 per cent. of illiteracy among the Spaniards, while there is only 54 per cent. of illiteracy among the negroes; therefore the negroes are clearly more advanced in civilization than the Spaniards.

Poor old Spain!

The learned Doctor further demonstrated that there is 65 per cent. of illiteracy among the Italians; therefore the negroes are far ahead of Italy. Russian illiteracy being 70 per cent. the black man takes precedence of the land of Peter the Great, Skobelev, Gorky, Turgenev and Tolstoy. South

America, having an illiteracy of 80 per cent., falls far to the rear of the negro—and Castro must add this additional kick to the many he has already received from North America.

Proud of his statistics, Doctor Booker Washington exclaims: “*The negro race has developed more rapidly in the thirty years of its freedom than the Latin race has in one thousand years of freedom.*”

That’s a bold statement, Doctor.

To say nothing of its accuracy, may it not have been an unwise thing for you to claim that the black man has risen during thirty years more rapidly in the scale of civilization than the whites have risen in a thousand?

True, you confine yourself to the Italians, the Spaniards, the Russians and the South Americans, but when you say the darkest of all the colored races is superior to that great section of the white race named by you, does it not occur to you that you may create a feeling of resentment among *all* the whites?

You have thousands of true friends throughout the entire country—white men who have most generously helped you in your work, helped you with money, with moral support and with a certain amount of social recognition. Your admirers refer to you as a great man. They allude to your work as a great work. The South helps you with appropriations, just as the North helps you with donations. We want to see you succeed in building up your race.

But have you a single white friend who will indorse your statement that the black race is so superior to the whites that it can do in one generation what it required the whites a thousand years to do?

Do you imagine that your friends, President Roosevelt, Mr. Carnegie, Dr. Hart, Bishop Potter, and others, will like you better when they hear you putting forth a claim to race superiority? Doctor, you have overshot the mark.

Whenever the North wakes up to the fact that you are teaching the blacks that they are superior to the whites, you are going to feel the east wind.

What do you mean by racial development, Doctor?

Apparently your standard of measurement is illiteracy. That is to say, if a greater number of negroes than of Spaniards can read, then the negro has achieved a higher plane in civilization.

Is that your idea? Does the ability to read constitute race development?

According to that, a million negro children attend school twelve months and become “civilized” because they have learned to spell “Baker” and to read “Mary had a little lamb.”

Does it not strike you, Doctor, that such a measure might be delusive?

In making up your tables of illiteracy, why didn’t you include *all the negroes*, as you included *all* the Italians, *all* the Spaniards, *all* the Russians?

Why leave out your home folks in Africa, Doctor?

Why omit Santo Domingo and Haiti?

If you will number *all* the negroes, Doctor, your percentage of illiteracy *among the blacks* may run up among the nineties, and knock your calculation into a cocked hat.

In the West Indies God poured His blessings with lavish hand upon the island of Haiti. The French went there and built up a civilization. The Revolution of 1789 freed the negroes who were held in slavery by the whites, and civil war soon followed.

The blacks outnumbered the whites and the climate was their ally. Yellow fever did for them what frost did for the Russians when Napoleon struck at their liberties. They achieved freedom, and they have had it, not for thirty years, but for a hundred years.

What have your people done with their freedom in Santo Domingo, Doctor? Back, back into barbarism, voodooism, human sacrifice, social and political anarchy they have plunged; and their history is one long blood-stained record of backsliding from the standard which the French had already established. Even now your black brethren in Santo Domingo are beseeching the white man of the United States to do that which they are unable to do—administer national affairs. In self-defense this Government may have to treat Santo Domingo as Great Britain treats Jamaica, both

governments acting upon the demonstrated fact that the blacks, *left to themselves*, are incapable of self-government and race development.

But before entering into a comparison of racial progress, Doctor, it is in order to note the fact that you accredit the negro with only thirty years of freedom. Why, Doctor, *the negro race, as a race, has enjoyed just as long a period of freedom as the Celts, the Latins, the Anglo-Saxons and the Slavs.*

The black race in Africa was as free as the Indian race in North America.

During the thousand years in which the whites were painfully creating the civilization which *you* now enjoy, *your* race, in its native home, was doing pretty much the same things which the red race was doing in North America. Your people were running about in the woods, naked, eating raw meat, eternally at war—tribe with tribe—steeped in ignorance, vice and superstition, with an occasional lapse into human sacrifice and cannibalism.

Your race, as a race, is free now in Africa, as it has been since the dawn of history:—where is the civilization which it worked out for itself? It does not exist; it never did exist.

The negro has been absolutely unable to develop as a race when left to himself. Nowhere, at any time, has he developed a system of agriculture, or commerce, or manufactures, made headway in mining or engineering, or conceived a system of finance. Never has he produced a system of laws, institutions of state, religious organization, or worked out a political ideal. Never has he created a literature, or developed original capacity for the fine arts. His foot has never even crossed the threshold of the world of creative painting, sculpture, music, architecture. Into the realms of science, in the domain of original thought, in the higher reaches of mental power where the human mind grapples with vast problems, material and spiritual, the problems of time and eternity, the negro has never entered. No word has ever fallen from his lips that was not the echo of what some white man had already said. He has sometimes *put his foot in the white man's track*, but that is the best he has ever done.

Compare this imitative race with the great Latin stock—a stock from which sprang Rienzi and Garibaldi, Cavour and Napoleon, Da Vinci and Galileo, Savonarola and Leo the Tenth, Titian and Bellini, Raphael and Michelangelo.

The Latin race, whether in Spain, Italy or South America, has developed systems of agriculture, finance, commerce, manufactures, education, religion, government—has created literature, laws and institutions of state, has evidenced capacity in science and art.

The negroes superior to the Latins?

Heavens above!

During the thousand years which Doctor Washington says that the Latins have done less than the negroes have done in thirty, Spain rose into world-power, dominated the European Continent, shook England's throne to its base, broke the Turkish scimiter in the great sea-fight of Lepanto, evolved a splendid literature, reached the highest development in the Fine Arts, launched Columbus upon his voyage into unknown seas to test the suggestion of another Latin—Toscanelli—and thus took the first daring step in that marvelous chapter of Discovery whose sober facts are grander and stranger than Romance.

Has the learned Doctor ever studied the history of Mexico—the Latin country south of us?

Since a foreign yoke was thrown off and Mexico “found herself,” what country has made nobler progress?

The negro in Santo Domingo has had a hundred years of freedom; Mexico scarce half so many; *yet compare the Mexico of today with the Santo Domingo of today*. Left to themselves, the Latins of Mexico have built up a magnificent civilization.

Left to themselves, the negroes of Santo Domingo have destroyed what the French had already built.

In Mexico conditions get better, year after year.

In Santo Domingo conditions grow worse, year after year.

If the learned Doctor wants to make a study in contrasts, let him first read “Where Black Rules White,” by Hesketh Prichard, and then read “The Awakening of a Nation,” by Charles F. Lummis, and I venture to say that some of his cocky self-complacency as to the superiority of the negroes over the whites will ooze out of him.

As to Italy—can it be that Italy has done less in a thousand years than the negroes have done in thirty?

The greatest man that ever lived was of Italian extraction. Taine says that Napoleon was a true Italian in character and intellect. If that be true, then *the two greatest men the world ever saw* were Latins. Wherever the civilized man lives today his environment, his thoughts, his ideals, his achievements are more or less influenced by the life and work of Cæsar and Napoleon.

If any two men may be said to have created the material modern world those two Latins did it.

If modern Europe is any one man, it is Napoleon. His laws, schools—social, political, financial, educational institutions—have wrung from rulers ever since the homage of imitation.

In literature how illustrious is Italy?

It was Petrarch who was “the Columbus of a new spiritual atmosphere, the discoverer of modern culture.”

It was he who broke away from monkish medievalism, created the humanistic impulse, treated “man as a rational being apart from theological determination,” modernizing literature.

The “short story” writers of fiction—Edgar Poe, Guy de Maupassant and Kipling—had their teacher in Boccaccio and his *novella*.

Modern history traces its methods, its spirit and its form to Villani, Guicciardini, and that wonderful type of Latin genius, Machiavelli.

The whole world goes to school to the Latins!

No painter hopes to excel Correggio, Paul Veronese, Antonio Allegro, Tintoretto, Velasquez, Murillo. No sculptor expects to eclipse Niccola

Pisano, Orvieto, Orcagna or Luca della Robbia.

No worker in gold, silver and bronze believes he can surpass Ghiberti, Cellini and Donatello.

Architects the world over despair of rivaling Alberti, Bramante, Giulio Romano, Palladio.

These masters were masters to their own generation, four and five hundred years ago; they have been masters ever since; they are masters still.

Wherever civilization extends its frontiers these deathless Latins are in the van—teaching what Truth and Beauty are, refining the thoughts, elevating the ideals, improving the methods, inspiring the efforts of man.

The negroes have done more than this, and in thirty years?

You had forgotten the Renaissance, hadn't you, Doctor?

Asia was decaying, Africa was in its normal state of savagery, Europe lay torpid under the weight of ignorance and superstition. Where learning existed at all its spirit was dull, its form heavy, its progress fettered by ancient canons and cumbrous vestments.

Suddenly the Angel of Light—her face a radiance, her presence an inspiration—puts a silver trumpet to her lips and blows, blows, till all the world of white men hears the thrilling notes.

And lo! there is a resurrection! What was best in the learning of the past becomes young again, and ministers to the minds of men.

Literature springs to life, throws off antiquated dress, and takes its graceful modern form. The fine arts flourish as never before; the canvas, the marble, the precious metal, feel the subtle touch of the eager artist, and give birth to beauty which is immortal. The heavy prison-castle of the Frank, the Goth, the Norman, the Anglo-Saxon, retires abashed before the elegant, airy, poetic palace of the Renaissance.

Nor does the revival of learning limit itself to literature, architecture, painting, sculpture. It extends to law, to commerce, to agriculture, to religion, to education.

Whence came the Renaissance, Doctor Washington? Whence came that mighty revival of intellectual splendor which still influences the world? From the Latin race, which you affect to despise. From these Italians whom you say are so inferior in development to the negro.

Italy led the modern world in almost everything which we call civilization—she is today one of the world's most inspiring teachers, nor will her power for good be gone till the Christian religion is repudiated, the voice of music hushed, the wand of literature broken, the force of law defied, the witchery of art lost to the minds, the hearts and the souls of men.

And yet Doctor Washington asserts, to one audience after another, that those glorious achievements of the Latins, the Italians, these imperishable and ever potent achievements of a thousand years, are exceeded by what the negroes have done in thirty years!

From the Latin England took her religious organization, as Germany and Austria and France had done. Through the Latin the classic literature of Greece and earlier Rome came into the modern world—an eternal debt which we owe mainly to Petrarch.

The Bourbon kings imported from Italy the architects, painters, sculptors, landscape gardeners, who laid upon uncouth feudal France the rich mantle of Italian beauty.

It was the Latin who taught modern Europe how to farm, how to irrigate, how to engrave, how to make paper from rags, how to bridge the rivers, how to pave the streets, how to make canals.

Some of Shakespeare's plays are elaborations and dramatizations of Italian *novellas*. Chaucer, the father of English poetry, frankly copied from the Italian model.

Milton had Dante for pioneer, Spenser had Ariosto, and Byron's best work is in the Italian form.

I presume, Doctor, that at this season of the year you are copying the style of the white man, and that you are wearing a straw hat.

Well, the Latins taught us how to make straw hats.

I presume that you recognize the value of *glass*—one of whose hundreds of uses is to show you how you look.

Well, the Latin taught us how to make glass.

I presume you realize how much the modern world, during the last thousand years, has been indebted to the modern ship.

Well, the Latin taught the Anglo-Saxon how to build modern ships.

I presume you appreciate good rice, Doctor.

Well, the seed of the heavy upland rice which we have in this country was brought out of Italy in the pockets of Thomas Jefferson—gentleman-smuggler in that instance.

I presume you will wear pink silk undergarments this season as usual, won't you, Doctor?

Well, the Latin taught modern Europe how to make and use silk.

And remember that the Latin took the clumsy musical instruments of the ancient world and fashioned them into the perfect forms of the present time; and that the Italians, whom you despise, had created the violin while your race was “rattling the bones” and gradually climbing toward the “cakewalk.”

What has the negro in these United States been doing for the last thirty years, Doctor?

Copying the white man. That's all.

He has simply been imitating, as best he could, the dress, the talk, the manners, the methods, the work of the whites.

The Latin whites *originated* a civilization; the negroes are *copying* one. Is there no difference between the higher genius which conceives and the lower talent which copies?

It required the genius of Raphael to conceive and paint “The Transfiguration.” Any ordinary artist can make a fair copy of it. But does anyone compare the copyist with the original artist? It required the genius of Sangallo and Michelangelo to rear St. Peter's at Rome: any well-educated architect of today might rear its duplicate. But would that make the modern architect equal to the two Italian masters?

Ten thousand negro men and women may be able to sit down at the piano and render Verdi's "Il Trovatore," but does that entitle the negroes to class themselves with the Italian composer?

My thought is this—the negro, assisted in every possible way by the whites, is copying the ways and learning the arts of the white man; *but the fact that he can learn to read the white man's book does not make him the equal of the white race which produced the book.* The fact that he may learn from us how to practice law or medicine does not make him equal to the white race which *created* the code of laws and the science of medicine. It may have required a thousand years *for us to learn* that which we can *teach him in one year*, but the point is that the negro, in his native home, had just as much time and opportunity to evolve a civilization as we had, AND HE DID NOT DO IT.

Let me repeat to you, Doctor, the unvarnished truth—for it may do you good:

The advance made by your race in America is *the reflection* of the white man's civilization. Just that and nothing more. The negro lives in the light of the white man's civilization and *reflects a part of that light.*

He imitates an example kept before his eyes; copies models never out of his sight; echoes the words the white man utters; patterns after the manners and the methods of the whites around him, and thus *reflects* our civilization.

He has originated nothing, and if the copy, the pattern, the example were taken away he would fall back as he did in Haiti.

He has never either evolved nor sustained a civilization of his own.

Fortunately for the *Afro-American*, he finds himself better situated than his brethren elsewhere. In Africa and Haiti *they* have to scuffle *for themselves*. Result—barbarism.

In America *he* swells the ranks of civilization's advancing army, and he *has* to go forward. We not only support him with aid of all sorts, we not only give him daily precept and example, but we *compel* him to live a better life than he would live in Africa and Haiti. This compulsion is of two kinds, the fear of punishment and the hope of reward—thus enlisting two of the most powerful passions of the human being.

It should be significant to Doctor Washington that the only portion of his race which has ever made any development is that which has the vast advantage of being sustained, encouraged, taught, led and *coerced* by the whites among whom they live.

Not long ago a negro preacher whose self-appreciation was as great as that of Doctor Washington went out to Liberia to subdue the heathen, in the home of the negro race.

The heathen were not subdued, but the preacher was. He threw off his store clothes, gave a whoop, gathered up an armful of wives and broke for the woods; the "Call of the Wild" was too much for his newly soldered civilization.

Now, I don't mean to say that Doctor Washington would relapse, under similar circumstances; but when I hear him call his new race *Afro-Americans* and listen while he soberly tells them that *they are superior to the whites*, I beg that he will remember his kin across the sea, his brethren in Santo Domingo, the decadents of Liberia, and the tens of thousands of his race here in this country who devoutly believe in witch doctors, in ghosts, in the conjure bag, and in the power of one negro to undo another by the mysterious but invincible "Trick."

Remember this, Doctor, education is a good thing, but *it never did, and never will, alter the essential character of a man or a race.*

Of course, Doctor, if you think your race the equal of ours, you have the right to say it. It's a free country, you know.

But, really, you ought not to "crowd the monkey" by putting in a claim for superiority.

Such a claim does your race no good.

It *may* do them harm. It may cultivate a spirit of truculent self-assertion which even your warmest admirers, North and South, might find it hard to tolerate.

In the "History of Civilization," Buckle says:

"Above all this, there is a far higher movement; and as the tide rolls on, now advancing, now receding, there is, amid its endless fluctuations, one thing, and one alone, which endures forever. The actions of bad men

produce only temporary evil, the actions of good men only temporary good; and eventually the good and the evil altogether subside, are neutralized by subsequent generations, absorbed by the incessant movement of future ages. But the discoveries of great men never leave us; they are immortal, they contain those eternal truths which survive the shock of empires, outlive the struggle of rival creeds and witness the decay of successive religions. All *these* have their different measures and their different standards; one set of opinions for one age, another set for another. *They* pass away like a dream; they are as a fabric of a vision, which leaves not a rack behind. *The discoveries of genius alone remain*: it is to *them* we owe all that we now have, *they* are for all ages and for all times; never young, and never old, *they* bear the seeds of their own life, they flow on in a perennial and undying stream; *they* are essentially cumulative, and giving birth to the additions which they subsequently receive, *they thus influence the most distant posterity, and after the lapse of centuries produce more effect than they were able to do even at the moment of their promulgation.*”

Noble lines!

And amid these “discoveries of genius” to which “we owe all that we now have,” bearing the seeds of intellectual life and improvement to “the most distant posterity” what treasures are richer than those which the Latin brings?

Architecture, Agriculture, Manufactures, Commerce, Civil Engineering, Finance, Legislation, Religious Organization, Sculpture, Painting, Music, Literature, Science, the wedding of the Fine Arts to Religion—in each and every one of these fields *his* genius has been creative and masterful.

Upon our civilization the Latin has imposed, as an everlasting blessing, an imperishable Public Debt.

What does civilization owe to the negro?

Nothing!

Nothing!!

NOTHING!!!

Amending the Constitution

I am not one of those who believe that the Constitution of the United States is a flawless piece of workmanship.

It was not so considered by those who made it nor by those who adopted it. It never would have been ratified had it not been that amendments were promised and misrepresentation made as to the character of the instrument.

There has been a great deal of discussion recently about making a new Constitution or amending the old.

When the Constitution was adopted *a government was created* of which the Constitution is the supreme law, and *this cannot be changed except in the manner prescribed in the instrument itself*.

If two-thirds of the states composing the Union, acting through their legislatures, shall apply to Congress for “a Constitutional convention for proposing amendments,” and these amendments should be ratified by three-fourths of the states, then a practically new Constitution might be framed; but in no other legal way could the people alter the fundamental law.

Congress can take the initiative by a vote of two-thirds of both Houses, and can propose amendments which, if adopted by three-fourths of the states, would become a part of the Constitution; but it must occur to all that this method of effecting reform is slow and cumbrous to the last degree.

The framers of the Constitution meant that it should be so.

In a very able article in the last number of this magazine Mr. Frederick Upham Adams discusses the necessity for amendments to the Constitution.

He cites four changes that should be made.

First.—The election of President and Vice-President should not be decided by a majority of the states, but by a majority of the people.

Second.—United States Senators should not be elected by legislatures, but by direct vote of the people of the states.

Third.—The states should be represented in the Senate according to population.

Fourth.—The powers and functions of the Federal Judiciary should be enumerated and limited.

I heartily concur with Mr. Adams in his view of the Federal Judiciary. It has usurped functions and powers unprecedented in the history of judicial tribunals.

In order to change the character of the government at Athens from an aristocracy to a democracy Solon gave the people control of the courts, which *exercised the supreme power over laws and men*. Aristotle says that by this method the people established a democracy where there had previously been an aristocracy. The aristocrat controlled the lawmaking power, but as the people controlled the judiciary a pure democracy resulted.

Alexander Hamilton used the same device *for the opposite purpose*. He took away from the people and put into the hands of the aristocracy *the supreme control over our laws and rulers*, and our judiciary, thus controlled, has changed the United States, which under the old Confederation was a democracy, into an aristocracy.

It will require a Constitutional amendment to drive the usurpers from the high place in which they are entrenched, but such an amendment cannot possibly be passed through the *Upper House of Congress* and through the *Upper Houses of three-fourths of the states* until a tremendous revolution shall have taken place in public sentiment.

If we should attempt to curtail the powers of the Federal Judges by Constitutional amendment we should surely find “Jordan a hard road to travel.” Most of us would be dead and forgotten before the purpose could be reached by that route.

What, then, can be done?

The swiftest remedy for the evil lies in the election of a President who will ASSERT HIS EXECUTIVE AUTHORITY.

The very essence of our system of government is the *Balance of Power*. The Legislative function should not encroach upon the Judicial; the Executive should not invade the Legislative, and the Judicial should not usurp prerogatives belonging to the other two.

Inherent in each of these three departments of government lies the power of self-defense.

Just as the Government, as a whole, has the inherent, inalienable right of self-preservation against external or internal attack, so each of the three separate departments of the Government has the inherent right of self-preservation as against an attack from either one or both of the other two.

When John Marshall made the attempt to encroach upon the Executive, during the administration of Mr. Jefferson, the President treated the Court with contempt, and the Court was powerless to go forward. When the same partisan Judge made a decision against the state of Georgia, which President Andrew Jackson considered unjust, the Executive refused to support the Judiciary, and the decision came to naught.

When Chief-Justice Taney, during President Lincoln's administration, encroached, as the President thought, upon the Executive, the Judiciary again came to grief.

Had Mr. Cleveland been at heart in favor of the Income tax of 1893, the Supreme Court would never have dared to pronounce against it.

That law was based upon a principle which the Supreme Court had indorsed for a hundred years, and the first deliverance of the Judges upon the act of 1893 was favorable to it.

That act was the outcome of the work of the Legislative department acting within the scope of its authority. The Executive department had sanctioned the act, and it had become LAW.

Had Cleveland boldly announced his purpose to *execute that law, by virtue of his inherent power as Chief Executive*, the Supreme Court would never have made the second decision, which was a national scandal.

By that decision the accumulated wealth of the millionaires is exempted from taxation—relieved of the duty of contributing to the support of the Government by whose unjust laws those millions were accumulated.

But let the people really get in power; let them really elect a President; let them place in authority another Andrew Jackson, who isn't afraid to show his friendship for the common man and his animosity to the greedy corporation—*then* you will see the Supreme Court draw in its horns.

Federal Judges are human like the rest of us, and they know with considerable accuracy which side their bread is buttered on.

Get the right sort of man in the Executive Chair, get the right sort of men in Congress, create the right sort of public opinion, and I venture the prediction that the Federal Judiciary will not attempt the role of Dame Partington without meeting with the same luck.

I agree with Mr. Adams also that Senators should be elected by the direct vote of the people in each state, but he is perhaps in error when he says that the system of electing Senators by state legislatures is “the fountain head of the corruption of American politics.”

On the contrary, there never could have been a corrupt Senate until there was a corrupt Legislature. When New Jersey sent to the Senate a man like Jim Smith the Legislature of New Jersey had already become corrupt. When Pennsylvania sent to the Senate a man like Quay the Legislature of Pennsylvania had already become corrupt. Standard Oil had to buy the Ohio Legislature before Henry B. Payne became United States Senator.

In other words, the corrupt Senator is simply the fruit of the tree of legislative corruption, and the corrupt Legislature has been too often the result of corrupt elections.

We might as well tell the truth, and the whole truth, while we are discussing the question. *Every one of us knows that elections of almost every sort, from the highest to the lowest—town, county, state and national—have been influenced by money and whisky, fraudulent practices of all sorts, the stuffed ballot-box, the doctored returns, and the God’s truth about the matter is that the people themselves are, to a large extent, responsible for the kind of men who get into the Legislature, into the House of Representatives and into the Senate.*

Too many of our honest men have shirked election duty, as they have shirked jury duty; and just as ignorant or corrupt juries too often decide questions in the court house, so the ignorant or corrupt voters—pliant tools in the hands of unscrupulous politicians—decide questions of legislation which require the best thought and the best energies of our most intelligent and upright citizens.

If direct legislation and the Recall should be put in practice, there could not be such things as corrupt legislatures, and therefore there would be no such thing as corrupt senatorial elections.

The fountain having been purified, the stream would be pure. At present the fountain itself is too often impure, and therefore the stream which flows from it cannot be pure.

On the other two points made by Mr. Adams there will be greater difference of opinion. His objections proceed upon the assumption that the United States is a nation with a government national in all particulars. Here he is at fault.

Our Government is only partially national. It is Federal, also, in part. It is not altogether the one nor altogether the other.

Ours is a peculiar system. To the foreign world we present the aspect of a sovereign nation. Among ourselves we are a collection of sovereign states which, for purposes stated in the preamble of the Constitution, have delegated to the central Government a portion of those powers which once belonged entirely to those sovereign states.

The state government existed before the Federal Government came into being. If the Federal Government were abolished tomorrow, each one of the states would still remain a sovereign state capable of conducting government.

The state of Connecticut, for instance, was an independent republic when there was no such thing as the United States.

Would Connecticut ever have gone into an “indissoluble union” if she had not been assured that this union was to be composed of “indestructible states”? The two propositions are linked together in Constitutional law.

Among sovereigns all are, in law, equal, and each one of these states was sovereign at the time the union of states was formed.

Would either of those independent sovereign states have accepted a place of inferiority in the Government? Assuredly not.

Then how is the indestructibility of the states guaranteed in the Constitution? By giving the state, as a state, its full power in the United States Senate, and, in a smaller degree, in the election of Chief Magistrate.

The Constitution itself was modeled by delegates chosen, not by citizens of the United States, *acting as individuals composing the entire nation*, but by voters acting as *citizens composing distinct and independent states to which they respectively belonged*. When the completed Constitution was referred back to the people for adoption, it was not acted upon by them as citizens of the entire nation, but it was ratified by each state, acting as a state, separate and distinct from every other state. *Therefore the Constitution itself is the result, not of a national, but of a Federal act.*

Mr. Madison himself took this ground in *The Federalist*. The facts all prove it.

In the exercise of its legislative powers the Federal Government is both national and Federal. The House of Representatives is a national body, because it is composed of members chosen according to population. The Senate is a Federal body, because it is chosen by the states, acting as states.

The executive department of our Government also combines in itself both the national and the Federal features.

The Electoral College is composed of two messengers from each state, and also of messengers equal in number to the members which the state has in the House of Representatives.

The two messengers first mentioned correspond with the two Senators, and therefore represent the state in its Federal capacity. The other messengers correspond with the Representatives of the state in the Lower House, and as the Lower House is national, so those messengers are national.

If the people fail to elect a President, and the election is thrown into the House of Representatives, *this House, which in its organization as a legislative body is national, at once becomes Federal, because each state has one vote, and the voice of Ohio or Pennsylvania is not more potent than that of Rhode Island or Delaware.*

It is only when our Government comes to put its laws into operation that it is purely national.

It is not strictly correct, politically or legally, to say that the United States is a nation, for a nation does not properly exist when the Government is one of limited power. That our Government is one of limited power, absolute only within the sphere of action granted to it by the states, cannot be denied. While secession has been forever decided as not being among the reserved rights of the states, there are very many other reserved rights which still belong to the states, and which always should be retained.

As the *Washington Post* remarked some time since: "The United States has not a single voter, and does not hold elections for any office. *All elections are state elections.*"

Already there has been too much concentration of power in the central Government. To take away from the states their power of selecting Senators would be nothing short of revolution, and would lead to such a consolidation of power as would entirely change the form and spirit of our Government.

If the principles of Populism grow strong enough to carry the large states they will probably be found strong enough to carry the small states. If they be found strong enough to control the state elections, they will control national offices, because, as the *Washington Post* very aptly points out, *the Federal Government holds no elections and has no voters*: it is the state that holds the election and furnishes the voters; it is the state that prescribes the limits of the franchise, and says how, when, where and by whom these elections shall be held; *and even the Federal Judiciary has not yet ventured to infringe in the slightest degree upon that reserved right of the separate states.*

Speaking of the equal representation of the states in the Senate, Mr. Adams says, "*This vicious compromise was made in the Constitutional Convention as the price for the perpetuation of slavery.*"

This compromise he characterizes further as "*cowardly and unfair.*" And he adds: "Now that the logic of events has made this a nation, despite the restrictive clauses of the Constitution, the dual participation of the

unrepresentative Senate is so grotesque that its continuance is fraught with a danger which at any time is likely to precipitate civil war.”

Is Mr. Adams quite sure that “this vicious compromise was the price of the perpetuation of slavery”?

Of course, I knew in a general way that slavery had been responsible for pretty nearly every mean old thing that has ever happened to this country; and it has always grieved me, with more or less poignancy, that New England could not have *foreseen* that she couldn’t make slavery pay. We lost much precious time while she was discovering that she couldn’t. When at length she *did* discover that there was no money in it for *her*, she thoughtfully sold most of her slaves, and went in for Emancipation.

Then, to be sure, the sacred “Cause of Freedom” advanced at a gallop; but, as I said, we had lost a good deal of time waiting for New England to make her experiment, and a good deal of unhappiness resulted.

But while I knew all this, in a general way, I really was not aware that the slave-owning states in the Constitutional Convention forced Washington, Madison, Franklin and Randolph to act in the cowardly and vicious manner described by Mr. Adams.

The state of Virginia bitterly opposed the equal representation of the states in the Senate. This was strange conduct in Virginia, if the purpose of that compromise was the “perpetuation of slavery.”

The state of New Jersey was the leader of those states in the convention which demanded equal representation in the Senate. If that senatorial equality was intended to perpetuate slavery, New Jersey’s attitude was most peculiar.

This compromise which Mr. Adams calls “vicious, cowardly and unfair” is known to constitutional history as *the Connecticut Compromise*. The men who championed it most ably were Roger Sherman and Oliver Ellsworth. Were these men actuated by a desire to perpetuate slavery?

All the books which I have read upon the subject state that equal representation in the Senate was a compromise which *the smaller states wrung from the larger states, as the price of the union*, not the price of the “perpetuation of slavery.”

New Jersey, Connecticut and Delaware were afraid to give up their independent, sovereign existence as states and to go into a union where the large states, like Pennsylvania and Virginia, would have so much greater power than themselves, if that power should be based on population.

When New Jersey refused to consider any plan of union which did not safeguard the interests of the small states, she was not thinking of perpetuating slavery. When Roger Sherman and Oliver Ellsworth made such a determined fight to preserve, in part, the equality which then prevailed among the states, they were not thinking of perpetuating slavery. *Their motive was to protect Connecticut, the small state, against Virginia and other large states.*

When Benjamin Franklin finally proposed that the Convention adopt the Connecticut idea, that aged philosopher and friend of human liberty was not acting in the interest of the slave-owners.

When Washington gave his consent, he was not guilty of cowardice and unfairness for the purpose of protecting slavery.

These men knew perfectly well that they were exceeding their authority in making a *new* Constitution. They were sent there *to amend* the Articles of Confederation; and when New Jersey, Connecticut and Delaware took the resolute position which was voiced by Patterson, Roger Sherman and Oliver Ellsworth, Washington and Franklin both had sense enough to know that it would be utter folly to go before the people, seeking a ratification of *a new Constitution*, unless the difference between big states and little states had been first adjusted in the Constitutional Convention. Indeed, Rhode Island, another small state, was so jealous of her rights that she refused to send delegates to the Convention.

My authorities are Bancroft's "History of the United States," "The Constitutional History" of Landon, McMaster's "With the Fathers," Hildreth's "History of the United States," Schouler's "History of the United States."

The latter historian says expressly that the compromise under discussion "*was secured through the determination of the smaller states not to yield entirely the rule of representation which the larger states were bent on*

invading,” and, he adds, “this compromise admirably preserves the composite character of our system.”

The historian declares that the smaller states expressly committed to the New Jersey plan which sought to retain the sovereignty of the states were New Jersey, Connecticut and Delaware.

Hildreth, in his “History of the United States,” takes the same position, and says: “The party of the smaller states, known also as the State Rights Party, included the delegates from Connecticut, New Jersey, Delaware and a majority of those from Maryland and New York.

“The party of the larger states, or National Party, included not only *the delegates from Virginia, Massachusetts and Pennsylvania*, but also those from *the two Carolinas and Georgia*, states which anticipated a very rapid increase of population.”

(I could quote Woodrow Wilson to the same effect, only Woodrow isn’t worth while.)

Now it must occur to Mr. Adams that these facts are at war with his theory.

Virginia, Massachusetts, Pennsylvania, the two Carolinas and Georgia would never have been found opposing the equality of representation of the states in the Senate if the purpose of that senatorial equality was the perpetuation of the institution of slavery.

There was a compromise which the slave-owners wrung as a concession from the free states, but this compromise benefited them *in the lower House, not in the Senate*.

When the Constitution gave the slave states representation based upon *three-fifths of the slaves*, the institution of slavery derived strength from the *national idea* of Pennsylvania, Massachusetts and Virginia—*not from the State Rights idea* of New Jersey, Delaware and Connecticut.

“Take the Children”

In France the Privileged Classes had created a situation which pleased them perfectly.

A fifth of the soil belonged to 30,000 noble families; another fifth belonged to the clergy; another fifth belonged to the king and city governments; the remaining two-fifths belonged to all the other people, middle class and peasants.

To the support of the Government the clergy contributed nothing except as a free gift; the nobility contributed pretty much what they pleased, and they did not please to contribute a great deal.

The king's family spent \$55,000,000 per year. Two brothers of the king spent \$2,000,000; and, to pay the debts of one princely bankrupt, King Louis XVI took \$3,000,000 out of the public funds.

Two hundred and ninety-five cooks served in the king's kitchen. Nearly two thousand horses stood in his stables. A squad of soldiers escorted his dinner to the table. A magnificent band furnished music while he ate, and a dozen gallant lords, paid for the service, helped him to undress and get to bed when the arduous do-nothing of the day had been finished.

Some 30,000,000 Frenchmen did not enter into this world of privilege. The merchant, the lawyer, the doctor, the manufacturer, the farmer, the laborer—all these stood outside the pearly gates, catching only a glimpse of the radiance within, hearing only, as from a distance, the music of this Eden, created by class legislation.

The peasant neither owned his land absolutely nor *himself* absolutely. Over him and his was suspended the heavy sword of class privilege.

The noble hunter of game, who enjoyed the exclusive privilege of killing game, might trample down his grain with the utmost unconcern, at whatever time the pleasure of the noble huntsman dictated. Mr. Peasant was not allowed to protect his fields and crops by putting up any kind of inclosure.

Mr. Peasant must not kill the wild boar or the antlered stag, even though those noble beasts, reserved for noble huntsmen, were destroying the crop upon which he and his family were dependent for a living.

He could not, under any conditions whatsoever, destroy the pigeons which came sweeping down upon his grain, nor must he, during certain seasons, manure his crop or hoe out the grass, lest he injure the flavor of the young partridges, and deprive them of the shelter necessary for their comfort and growth.

He could not press his grapes save at the nobleman's wine-press, nor grind his wheat save at the nobleman's mill, nor bake his bread elsewhere than in the nobleman's oven.

These monopolies were peculiar to the lord, and the peasant must pay toll lest the lord's revenues decrease.

The peasant could not vote, had really no civic existence, was not considered in the government of the country; could be made to work whether he wished to do so or not for the noble and the king. His horses could be taken from the cart, or from the plow, if his superiors demanded it. Neither for his labor nor his horse was he paid. He could not put salt into his victuals without paying a high price for it, and he was not allowed to eat his victuals unsalted. The law *compelled* him to buy a certain portion of salt every year at an exorbitant price.

The church took from him one-tenth of all he made, besides which he must pay fees for christenings, marriages, burials and pardons for sins—to say nothing of prayers in behalf of the living, the dying and the dead. The feudal lord took from him annually a certain part of all he made.

The French historian Taine says that in some portions of France the peasant paid in feudal dues, church tithes and royal taxes *more than three-fourths of all that he made*. In other portions of France *the entire net produce of the soil went to the church and state*, and so great was the intolerable burden that *the peasants quit in despair, left the land to become a desert waste, and flocked to the cities to swell the army of The Wretched*.

To throw off the shackles of this frightful system of misgovernment the French Revolutionist roused the people.

At first Great Britain rejoiced in the movement which Lafayette, Mirabeau, Necker, Sieyès and Camille Desmoulins inaugurated. These early revolutionists declared their purpose to set up a constitutional government in France such as Great Britain enjoyed, but when these moderate and

constitutional reformers were thrown aside by the radical democrats who were determined to establish a republic—when this democracy had confiscated the lands held by the church, had issued paper money and had taken for national uses the abandoned estates of the immigrant nobles, the ruling powers of church and state in Great Britain became greatly alarmed, and it was resolved that war to the death should be waged against the principles of the French Revolution.

Unless this were done, democracy might assert itself in Great Britain, and those things which had been taken from the people under forms of law might be restored in the same way to the original owners. Therefore William Pitt, Prime Minister and actual ruler of Great Britain, declared war upon France, blockaded her coasts, organized European kings into confederacies against her, and for more than a dozen dreadful years poured armed legions upon her.

During this era of “blood and iron” men were torn from peaceful pursuits throughout Great Britain to supply the navy and the army with food for powder.

As a necessary consequence, the demand for labor was greater than the supply; and as England depends especially upon her manufactures, it was there that the scarcity of labor was most injuriously felt.

It is said that a deputation representing the manufacturers waited upon the Prime Minister and laid their grievances before him, asking the question, “*What must we do?*”

Mr. Pitt is reported to have answered, “TAKE THE CHILDREN.”

This story may not be true, but it is a fact that it represented precisely the emergency, and the manner in which that emergency was met. It also represents correctly the attitude of Mr. Pitt as defined in his speeches in Parliament.

A cruel, unjustifiable war had devoured the laborer who should have been at his task. The laws had dragged him into the army and into the navy whether he wished to go or not. Press-gangs had prowled about the lanes and alleys clutching at every poor man who happened to be sound of limb, and had carried him off by force into a battleship, where he might be kept until the bride whom he had left at the church door had counted him as

dead, or until the family which he had left contented and happy had been lost to the knowledge of men.

Having taken the father, the same remorseless class-greed demanded the child, and took it.

Upon the altar of English lust for money has been sacrificed more helpless men, women and children than ever fell before the ruthless hordes of Tamerlane or Attila.

“Within carefully guarded limits, child-labor is no more to be objected to in manufactures than in agriculture, but in the early days of the factory system these limits were utterly discarded.

“In the infancy of the system it became the custom of the master manufacturers to contract with the managers of workhouses throughout England and of the charities of Scotland, to send their young children to the factories of the great towns. *Many thousands of children between the ages of six and ten* were thus sent, absolutely uncared for and unprotected, and left to the complete disposal of masters who often had not a single thought except speedily to amass a fortune, and *who knew that if the first supply of infant labor were used up there was still much more to be obtained.*

“Thousands of children at this early age might be found working in the factories of England and Scotland, usually from twelve to fourteen, sometimes even fifteen and sixteen hours a day, not unfrequently during the greater part of the night. *Destitute or drunken or unnatural parents made it a regular system to raise money by hiring out their children from six, sometimes from five, years old, by written contracts and for long periods. In one case brought before Parliament a gang of these children was put up for sale among a bankrupt's effects, and publicly advertised as part of the property.* In another an agreement was disclosed between a London parish and a Lancashire manufacturer in which it was stipulated that *with every twenty sound children one idiot should be taken.*”

“Even as late as 1840, when the most important manufactures had been regulated by law, Lord Ashley was able to show that *boys employed in the carpet manufacture at Kidderminster were called up at three and four in the morning, and kept working sixteen or eighteen hours:* that children five

years old were engaged in the unhealthy trade of pin-making, and were kept at work from six in the morning to eight at night.” (Lecky, “England in Eighteenth Century.”)

In the coal mines and in the salt mines men, women and children were literally beasts of burden—were chattels, and when the mines were sold the human machines passed from one owner to another just as the mechanical apparatus passed.

There were women who in these coal mines, where the tunnels were too narrow to allow them to stand upright, had to crawl back and forward on their hands and knees for fourteen to sixteen hours a day, drawing after them the trucks loaded with coal.

These trucks were securely fastened to the woman by means of a chain which passed between her legs and was attached to a belt strapped round her waist. The woman seldom wore any clothes except an old pair of trousers made of sacking.

“Little children were forced to work underground from year to year. Deep in the gloom of a night which had neither moonlight nor stars; rarely ever seeing the face of nature and of day—lost to God’s glory of sunlight, shady woods, silvery waters—lost to intelligence, happiness, enjoyment, reduced to the helpless condition of beasts of burden.”

What was true of the mines was also true of the factories.

Men, women and children were forced to work for a number of hours absolutely inconsistent with physical and moral development.

In the year 1833 Lord Ashley led in the noble effort to redeem the children from the clutches of unscrupulous commercialism, and to lighten the burden of men and women by regulating the hours of labor and the conditions of service.

After a most stubborn resistance, in which the corporations urged against the reform every reason which we hear urged in our day, England did herself the immense credit of checking the tyranny of those who were grinding the lives out of the poor in order that the rich should become richer.

In this country the cry of commercialism is the same as that which in Great Britain said, "*Take the children.*"

Corporations want cheap labor. If they can't get the adult, they take the child.

In the Southern states the tendency to employ children has had alarming development. In 1880 the total number of cotton factory employees was 16,740. Of these, 4,090 were children under sixteen years of age. In the year 1900 the total number of employees had increased to 97,559. Of these, 24,459 *were children under sixteen years of age.*

In the states outside of the South there were, in 1880, 155,803 employees in cotton factories. Of this number, 24,243 were children under sixteen years of age. In the year 1900 the total number of cotton factory employees in states outside of the South was 205,302. Of these, only 15,796 were children under sixteen years of age.

In other words, within the Southern states the children under sixteen years of age constitute now, as they did twenty years ago, *25 per cent. of all the operatives employed*: whereas, *in the states outside the South the children under sixteen number less than 8 per cent. of all those employed.* Therefore the situation which was justly considered so bad in Great Britain that it was reformed seventy years ago, and which has been reformed in most of the states outside of the South, is three times worse in the South than it is in any other portion of the Union, *and is just as bad now as it was twenty years ago.*

In *The Tradesman*, of Chattanooga, Tenn., August 15, 1902, the statement is made that the number of children under sixteen years of age now at work in the Southern mills approximated 50,000.

The 50,000 little ones who troop to the mill every morning, breathe the steam-heated, dust-laden, germ-infected atmosphere of the close rooms throughout the entire day, who light, with lanterns, their way home across the fields when darkness has fallen, are white children. During the same hours that these white boys and girls are finding their way to the factory where their energy and strength is offered up as a sacrifice to mammon, 50,000 black children are singing merrily on their way to school, *where they are gaining what the white children are losing.*

Glance forward twenty years and ask yourselves what will be the relative positions of the 50,000 white children and the 50,000 black children. *It will be a miracle if most of those white children are not either in their graves, or in the hospitals, or in the slums, or in the prisons, while the 50,000 black children will be holding clerkships in some department of the Federal Government.*

The kind of civilization which we are going to have in the future is being determined now. Race development and progress cannot be extemporized or bought ready-made. It is a matter of preparing the soil, planting the seed, cultivating the crop.

We shall reap as we shall have sown.

The most profoundly disgusting feature of the Southern political situation today is that *the Democratic bosses who control our state legislatures will not allow us to give our white children as good treatment as the negro children are getting.*

Almost universally the Southern mills are controlled by Northern capitalists; but it is the Southern politician, officeholder, editor or stockholder who rushes to the legislature saying that *child slavery must continue because it is good for the child.*

These Northern capitalists who own Southern mills are, to a large extent, Republicans in politics. The unprincipled Southern men who put up a plea in behalf of child slavery are almost exclusively Democratic.

Just as J. P. Morgan, the Republican railroad king, uses the Southern Democratic machine to rob the people through his railroads, so the Northern Republican millowner uses the Southern Democratic politician to rivet upon the Southern white child the chains of commercial serfdom, *ruinous to the child and ominous to the future of the white race in the South.*

It was class-greed which first raised the cry, "*Take the children.*" It is class-greed which now says, "TAKE THE CHILDREN."

Paternalism

One of the dreadfulest words that ever scared a mossback is “Paternalism.”

He does not know what it means, and he does not want to know. He flees from it as from something too blood-curdling to look upon. His leaders, his orators, his editors, have all told him that no language could fully describe the horrors of “Paternalism”; and therefore he feels that while poverty, slavery, hunger and starvation are sometimes annoying incidents in life, they bear no comparison to the pitiless rigors of “Paternalism.”

He has got used to unmerciful taxes, to ill-paid labor, to squalid surroundings, to empty pockets, and to the cry of children hungering for bread. All these discomforts he can stand, because they have come to him in the natural course of events under the rule of Democracy and Republicanism. But the very idea of a new party springing up and practicing “Paternalism” unnerves him. He fears he couldn’t stand it.

We had this terror-stricken victim of Democratic bugabooism in mind today when we read the decision of Cleveland’s Attorney-General, to the effect that whisky in a bonded warehouse could not be reached by process from a State Court.

Under a law which has stealthily slipped upon the statute-book while the people were not noticing, the producers of distilled liquors get the privilege of storing their “firewater” in a government warehouse and getting a certificate of deposit.

The Government takes care of the whisky until the owner feels like paying a tax upon it.

Formerly, under an act passed by Republicans and Democrats, this exemption from tax lasted three years. At the last session of Congress the Democrats, out of tender consideration for the poor, downtrodden Whisky Trust, extended this exemption to eight years.

The great and good Government of the United States, therefore, steps forward through its officers, and kindly says to the distiller: “Hand me your whisky bottle: I’ll take care of it for you until you get ready to pay your taxes.”

Not only does our great and good Government say substantially these very words to the distiller, but it guards his whisky bottle so jealously that

no writ or execution or other process from a State Court is allowed to touch the liquor which is thus being held by the Government for the benefit of the owner.

Governor Tillman, of South Carolina, tried to bring his power as Chief Magistrate of a sovereign state to bear on some of the whisky which Uncle Sam was taking care of for the Whisky Trust, but the voice of our great and good Government was promptly heard saying, “Keep off the Grass.”

Brave Benjamin had to let the whisky alone.

The certificate of deposit issued on the liquor by the Government to the distiller becomes at once valuable commercial paper upon which he can get any amount of money he wants.

He can go to New York, borrow money on his certificate at 2 per cent., and use it for eight years without difficulty, because the money-lenders have the certificate which shows to them that the Government is taking good care of the whisky all the time.

Is this “Paternalism”?

If so, please don’t mention it to the mossback whom we have described. It might make him run away and tear the buggy up.

Planting Corn

The bluebird was out today; out in his glossiest plumage, his throat gurgling with song.

For the sunlight was warm and radiant in all the South, and the coming spring had laid its benediction on every field and hedge and forest.

The smell of newly plowed ground mingled with the subtle incense of the yellow jasmine; and from every orchard a shower of the blossoms of peach and apple and pear was wafted into the yard and hung lovingly on the eaves and in the piazzas of the old homestead—the old and faded homestead.

Was there a cloud in all the sky? Not one, not one.

“Gee! Mule!!!”

“Dad blast your hide, why don’t you gee-e-EE!!”

Co-whack! goes the plowline on the back of the patient mule—the dignified upholder of mortgages, “time price” accounts, and the family credit generally.

Down the furrow, and up the furrow; down to the woods, and up to the fence—there they go, the sturdy plowman and his much-enduring but indispensable mule.

For the poplar leaves are now as big as squirrel-ears and it’s “time to plant corn.”

On moves the plowman, steady as a clock, silent and reflective.

Right after him comes the corndropper, dropping corn.

The grains faintly chink as the bare feet of the corndropper hurry past; and before the corn has well cuddled itself into the shoe-heel of the plowman’s track, down comes the hoe of the “coverer”—and then the seeds pass into the portals of the great unknown; the unknown of burial, of death and of life renewed.

Peeping from the thicket, near at hand, the royal redbird makes note of what is going on, nor is the thrush blind to the progress of the corndropper. And seated with calm but watchful dignity on the highest pine in the thicket sits the melancholy crow, sharpening his appetite with all the anticipated pleasures of simple larceny.

The mocking-bird circles and swoops from tree to tree, and in her matchless bursts of varied song no cadence is wanting, no melody missed.

The hum of the bees is in the air; white butterflies, like snowflakes, fall down the light and lazily float away.

The robin lingers about the China tree, and the bluejay, lifting his plumed frontlet, picks a quarrel with every feathered acquaintance and noisily asserts his grievances.

The jo-ree has dived deeper into the thicket, and the festive sapsucker, he of the scarlet crest, begins to come to the front, inquisitive as to the location of bugs and worms.

On such a day, such a cloudless, radiant, flower-sweetened day, the horseman slackens the rein as he rides through lanes and quiet fields; and he dares to dream that the children of God once loved each other.

On such a day one may dream that the time might come when they would do so again.

Rein in and stop, here on this high hill! Look north, look east where the sun rises, look south, look west where the sun sets—on all sides the scene is the same. In every field the steady mule, the steady plowman and the children dropping corn.

Close the eye a moment and look at the picture fancy paints. Every field in Georgia is there, every field in the South is there. And in each the figures are the same—the steady mule and the steady man, and the pattering feet of the children dropping corn.

In these furrows lie the food of the republic; on these fields depend life, and health and happiness.

Halt those children—and see how the cheek of the world would blanch at thought of famine!

Paralyze that plowman—and see how national bankruptcy would shatter every city in the Union.

Dropping corn! A simple thing, you say.

And yet, as those white seeds rattle down to the sod and hide away for a season, it needs no peculiar strength of fancy to see a Jacob's ladder crowded with ascending blessings.

Scornfully the railroad king would glance at these small teams in each small field; yet check those corndroppers and his cars would rot on the road and rust would devour the engines in the roundhouse. The banker would ride through those fields thinking only of his hoarded millions, nor would he ever startle himself with the thought that his millions would melt away in mist were those tiny hands never more to be found dropping corn. The bondholder, proud in all the security of the untaxed receiver of other people's taxes, would see in these fields merely the industry from which he gathers tribute; it would never dawn on his mind that without the opening of

those furrows and the hurrying army of children dropping corn his bond wouldn't be worth the paper it is written on.

Yet it is literally so.

Feed the world, and it can live, work, produce and march on. Starve it, and what becomes of railroads, banks, mills, mines, notes, mortgages and bonds?

Great is the might of this republic!—great in its schools, churches, courts, legislatures; great in its towns and cities; great in its commerce, great in its manufactures, great in its colossal wealth.

But sweep from under it all these worn and wasted fields, strike into idleness or death the plowman, his wife and his child, and what becomes of the gorgeous structure whose foundation is his field?

Halt the food growers, and what becomes of your gold and its “intrinsic value”?

How much of your gold can you eat?

How many of your diamonds will answer the need of a loaf?

But enough.

It is time to ride down the hill. The tinkle of the cow-bell follows the sinking sun—both on the way home.

So with many an unspoken thought I ride homeward, thinking of those who plant the corn.

And hard indeed would be the heart that, knowing what these people do and bear and suffer, yet would not fashion this prayer to the favored of the republic: “O rulers, lawmakers, soldiers, judges, bankers, merchants, editors, lawyers, doctors, preachers, bondholders! *Be not so unmindful of the toil and misery of those who feed you!*”

Not Parson Brownlow's Son

KNOXVILLE, TENN., April 26, 1905.

Hon. Thomas E. Watson, Thomson, Ga.

DEAR SIR: In your article on "Politics and Economics" in TOM WATSON'S MAGAZINE for May, you speak of the salary grab of congressmen as follows: "Tennessee will not be shocked to know that 'Slippery Jim' Richardson voted for the grab. She may be shocked to know that Brownlow did the same thing—Brownlow, the *son* of the famous Parson."

You are entirely mistaken about Walter P. Brownlow, to whom you refer, being a son of the "famous Parson." Parson Brownlow has only one son living, Colonel John Bell Brownlow, who commanded the regiment in which I was an officer, the Ninth Tennessee Cavalry Volunteers of the Union troops during the Civil War, and who lives in this city and is not a member of Congress now nor has he ever been.

Please publish this in full in your issue for June and greatly oblige me.

Respectfully,

W. R. MURPHY.

P.S.—I am a constant reader of your magazine and am enjoying your articles very much; and not only yours, but those of Frederick Upham Adams. Many of the truths which you utter through the medium of your great magazine will prove to be precious seed sown in the rich soil of the national conscience, and the fruitage will be invaluable.—W. R. M.

Mr. President!

Won't you *please* quiet down now and get to business? *Don't* you think you can give us a rest on speeches and photographs?

Can't you leave it to the women to do as they think best on the baby question?

If you will just sit still a while and attend to your own business, you have no idea how many people will be thankfully appreciative.

Why don't you *concentrate your efforts* and peg away until you accomplish something?

Why start up so much game which you never bag?

You said you were going to compel the Cattle Kings to take their barbed wire fences off the public lands—and you haven't done it.

Why don't you give Colonel John Mosby free rein and let him cut the wire?

You said you were going to discipline the Railroads and the Trusts—and you haven't done it.

Why don't you have your prosecuting officers take out warrants for such men as Armour, the Rockefellers and Rogers?

You *know* they are law-breakers; *deal with them as law-breakers*.

Don't seine the pond for minnows when you can harpoon such whales as these.

Hit the big criminals—*hit them hard*—and eighty million people will cheer you on!

You led us to believe that you meant to revise the Tariff; why don't you follow it up?

You *know* that *the Trust exists because of the Railroad and the Tariff*.

The Railroad gives the *special favor*; the Tariff *prevents foreign Competition*—and there you are. *The Trust is born of these two Special Favors*, one given by the Tariff and the other by private contracts violative of law.

To break any and all Trusts *remove the Tariff on the articles controlled by the Trusts, and at the same time relentlessly prosecute as common criminals every Railroad Official, however high and rich, who grants to one shipper any sort of favor not granted to all*.

There isn't a Trust in the United States that you can't bust in twelve months if you go at it with these weapons.

The Free List for trust-controlled articles; Criminal Warrants for the Armours, Swifts, Harrimans, Rockefellers, Morgans, Belmonts—all who

are “in the game.”

Here’s a work worthy of you, Mr. Roosevelt.

It needs you!

It wants your pluck, your energy, your honesty, your tenacity; won’t you buckle to the task?

Let the baby question alone. There will always be plenty of babies.

Don’t you fret about that. The women know what’s what.

Turn your head another way. Put your attention on *your* job.

A great man’s task invites you—demands you.

RISE TO IT LIKE A GREAT MAN!

Did You Know It?

Did you know that a private corporation got its clutch upon the Monongahela River generations ago and shut off free navigation?

Did you know that this private monopoly exercised the power of dictating to every dollar’s worth of produce transported upon that highway the terms upon which it should go to market?

Did you know that *the people at large*, who were robbed by this gigantic and unnatural monopoly, *complained vainly* during all these long and dreary years of corporation tyranny?

Did you know that as soon as *the corporations which are working in coal and iron* got tired of said monopoly and began to complain, our great and good Government at once had ears to hear and eyes that could see?

Did you know that patriots of the Carnegie stripe, who had to pay tribute to the Monongahela monopoly, were losing \$425,000 per year to said monopoly; *and that Carnegie and Company went to our great and good Government and demanded that said Government buy out said Monongahela monopoly?*

Did you know that our great and good Government immediately harkened to the wails of Carnegie and his Company *and appointed a commission to assess the value of said Monongahela monopoly?*

Did you know that said monopoly, being wise in its generation, realized that its hour had come and that its best policy was to sell out at a high price?

Did you know that the Commission appraised the monopoly franchise at more than three and a half million dollars, and that our great and good Government paid the money?

Did you know that *your cash* was thus lifted out of the Treasury *to pay for a free river for Carnegie and his Company*; and that nobody thought it worth while to say “Turkey” to you about it?

This buying-off of the private monopoly which throttled the commerce of a great section was a good thing to do. We are glad it was done. The people can now navigate the Monongahela as freely as Carnegie can do it; but is it not mortifying to reflect *that the PEOPLE were powerless against the wrong until the coal and iron kings took the case in hand?*

And isn't it amazing to see how easily the doors of the Treasury fly open, and the millions pour out, when the Privileged Corporations want it done?

When it became a matter of self-interest to the Privileged Corporations to buy out the Monongahela monopoly the Constitution was not in the way nor was the money lacking.

Whenever it suits the same Privileged Classes to unload the Railroads on to the Government at fancy prices it will be done. When that day comes the Constitution will not be in the way nor will the means be lacking.

Whenever the Privileged Classes want ANYTHING done the Constitution approves and the cash box is full.

It is only when the masses want anything done that our Constitution becomes a fretful porcupine with quills erect and our cash box has a hollow sound.

If you want to have a jolly time with that gay old creature, the United States Constitution, join the Privileged Corporations.

If you want to frolic with the United States Treasury and pay for what you want with public money, join the Privileged Corporations.

Rural Free Delivery to Country People

(Extract from the *People's Party Paper*, March, 1893, Mr. Watson's paper, commenting upon the passage of the *first appropriation* for the R. F. D.)

The annual appropriations for the free delivery of mails was, until the present administration, confined to cities of over 10,000 inhabitants. At the suggestion of Mr. Wanamaker, an experiment was made in smaller towns enjoying daily mails, but as yet no country neighborhoods had obtained the privilege.

On Friday, February 17, 1893, when the annual appropriation was pending, Mr. Watson proposed an amendment as follows:

For free delivery service, including existing experimental free delivery offices, \$11,254,900, of which the sum of \$10,000 shall be applied, under the direction of the Postmaster-General, to experimental free delivery in rural communities other than towns and villages.

Mr. Watson urged that the paragraph proposed to be amended "provides for the expenditure of \$11,254,943 for free delivery service. The amendment reduced the amount of that expenditure and simply directed that the Postmaster-General should apply \$10,000 of the appropriation to experimental free delivery in rural communities." The following discussion followed:

Mr. Watson—"Mr. Chairman, the present law provides for an experimental free delivery in rural communities; but as I understand it—and the chairman of the committee, the gentleman from North Carolina (Mr. Henderson), makes the same statement to the House—the law has been construed to mean cities, towns and villages, and there are now in operation experimental free deliveries in certain towns and villages.

“The law expressly provides for ‘rural communities,’ and it seems to me where the general laws make such provision there is no hardship in taking a small amount from this appropriation, only \$10,000, and appropriating it for *experimental free delivery in absolutely rural communities*, that is to say, *in the country pure and simple, among the farmers, in those neighborhoods where they do not get their mail more than once in every two weeks, and where these deserving people have settled in communities one hundred years old and do not receive a newspaper that is not two weeks behind the times.*

“The amendment proposes not to increase the appropriation; it actually diminishes it by a nominal amount, but takes \$10,000 of it to be provided for *experimental free delivery in absolutely rural communities, instead of towns and villages, which the authorities construe to mean ‘rural communities.’* In other words, I think that part of the money ought to be spent *in the country*, where the law provides it shall be spent, and having made this statement, if we can have another division, and the committee is against my amendment, I will yield to its will.”

Mr. Henderson, of North Carolina—“Mr. Chairman, the only law on the subject at all is in the very language used in this appropriation bill:

“‘For free delivery service, including existing experimental free delivery offices.’

“That is all the law now on the statute-books in regard to this question.

“*I do not want the statement of the gentleman from Georgia in regard to there being a law on the statutes as to rural free delivery to go without correction.*”

Mr. Watson—“Mr. Chairman, *this delivery in the small towns and villages is called ‘rural free delivery.’*”

Mr. Henderson, of North Carolina—“But as a matter of fact *there is no law except that stated here in this appropriation bill.*”

The amendment was adopted by the House. This opens up the way for the farmers to secure services on an equal footing with the residents of the towns and the cities. It is one of the first instances in which the Government has put itself in daily touch with the citizen of the rural community. If followed up by successive Congresses, this entering wedge may cleave the

way for a system of intercommunication that will remove a great inconvenience and cause for dissatisfaction in country homes. As a first step its importance cannot be overestimated.

Random Paragraphs

You may say what you please about Castro, but I glory in his spunk.

President of Venezuela, he was sitting comfortably in his seat when, one day, another Venezuelan who wanted the job cooked up an Insurrection.

South American revolutions, like all other procedures in civilized communities, have to be financed.

The question with the leader of the Venezuelan insurrection was:

“Who will finance *me*?”

The Asphalt Trust stepped forward with necessary funds.

No doubt the Trust was assured by Matos, the Insurgent leader, that in the event his revolution succeeded the Trust was to have dominion over Venezuela, like unto that which Standard Oil has over our own Eden of Christian Civilization.

At any rate, the Trust put up its money on Matos, who turned out to be the wrong horse.

Castro won. But the Trust continued to help Matos even after he had lost. Died hard, you see, because death is not the law of Nature with Trusts. Usually they live and the other fellow dies.

The Asphalt Trust is composed, in part, of American experts in Frenzied Finance. These marauders who were seeking new worlds to conquer planned to catch Venezuela in the same net which holds *us*.

Castro defied them, fought them in the Courts, whipped them, took away the franchise for non-performance of contract, etc.

Then they had the brazen audacity to demand that our Government coerce Castro.

The Trusts rule the United States—shall little Venezuela check their career of conquest?

Away with the feeble Castro!

Said the Trust to Roosevelt:

“Shake your big stick at this South American crank and make him *Arbitrate!*”

Says Roosevelt to Castro:

“Arbitrate with the Asphalt Trust, or——”

Says Castro to Roosevelt:

“Arbitrate nothing! Hands off, or——”

In other words, our Government, friendly always to Frenzied Finance, put up a bluff on Castro.

Whereupon Castro stood pat and “called” Roosevelt.

And, all at once, Mr. Roosevelt went a-hunting, and left Taft—the portly, handsome, self-complacent Taft—“sitting on the lid.”

Bully for you, Castro!

Evidently you are “some punkins.”

Would to heaven we had a Castro to smash the Beef Trust!

Roosevelt and young Garfield don’t seem to know where to take hold. The legal proceedings do not advance half so rapidly as does the price of beef.

If you have never read Herbert Casson’s “Organized Self-Help,” do so. A brighter, braver, stronger book is not picked up often. No matter how much you may already know, your information will be greater when you shall have mastered this little volume.

The reason why Sir Plausible Voluble, of Nebraska, is so mixed up on the Railroad Question is that his talk-talk-talk commenced, as usual, before he understood his subject. At first he advocated state ownership, which would have given us forty-odd different systems. Now he has reached the point where he wants the Nation to own national lines of transportation while the states are to own “local lines.” *Wouldn't* we have a sweet time deciding which roads are national and which are local?

Under the present system every line of transportation has a double character, partly national and partly local, and *the traffic* on every line is partly state and partly inter-state.

You can no more separate what is national from what is local in the railroads than you can in the Post-Office.

Every postal route is at once local and national. A letter may come five miles, five hundred or five thousand—the *system* carries it to its destination.

So with freight and passengers. The so-called local railroad will carry freight from the adjoining county, from the adjoining state, from the remotest section of the Union, and from the lands beyond our borders. So with passengers.

Why, then, should anybody be talking tommyrot about “*local lines*”?

Said Betsy Prig to Sairey Gamp, concerning the alleged existence of a certain Mrs. Harris, “*I don't believe there is no sich a person.*”

Says I to W. J. B., concerning the alleged “local lines of transportation,” I don't believe there is any such thing as a local line of transportation.

The reasoning which sustains government ownership of a part of the railroads inevitably leads to the ownership of all.

At *such* a cherry, why take two bites?

Why have a system where there is certain to be a clash between state management and national management?

Why leave the gaps down for inequalities in rates?

Why not insure *uniformity* by unity of ownership and management?

Why not learn a lesson from the German Empire, and avoid state ownership altogether?

However, I am glad to see that our Nebraska friend is making progress. Give him time, and he will arrive.

For a convert who jumped on our platform of Government Ownership so recently as last July, he does fairly well. But if he would use his thinking apparatus a little more, and his organs of speech a little less, he would get on faster.

“Local lines” of transportation—*at this time*?

He might as well say that the artery in his left hind leg is a “local artery.”

The New York *World* says:

“If Judge Parker is a Democrat, Mr. Bryan is not. If Mr. Bryan is a Democrat, Judge Parker is not.

“No party-name is wide enough to blanket two such irreconcilable theories of government.”

That’s where the *World* falls down.

The Democratic party-name is wide enough to blanket anything and everything, anybody and everybody.

I’ve seen it cover the Prohibitionist and the Saloon-Keeper, the Gold-Bug and the Free-Silverite, the corporation lobbyist and the Bible-class expert, the Free Trader and the Protectionist, the Bank men and the Anti-Bank men, the Income Tax men and the Anti-Income Tax men, the Expansionists and the Imperialists, the Inflationists and the Contractionists, strict Constructionists and those who sent the United States Army to quell a local disturbance in Illinois over the protest of a Democratic Governor.

There is no earthly difference, antagonism, variance of creed, or policy, or purpose, or persons that the Democratic party-name is not “wide enough

to blanket.”

The Democratic party-name not wide enough to blanket Judge Parker and W. J. B.?

Oh, yes, it is.

It did so in 1904, and it will do so again.

If Bryan whips Parker in the Convention of 1908, Parkerites will knife Bryan as they did in 1896 and 1900.

If Parker beats Bryan in the Convention, Bryan will “come across” in 1908, as he did in 1904.

This play of politics is a very pretty game, and the politicians get a good deal out of it.

The people are kept interested and excited, but the people don’t get anything out of it.

It is not seriously intended that they should.

Primarily, the game is played for the benefit of the players.

Tom Taggart, the gambling-hell man of Indiana, must feel very funny when he looks back and sees the imposing lines of Democratic preachers, Bible-class graduates, Amen-corner gruntern and family-prayer brethren who are meekly following *him*, Taggart, as he, the official Commander-in-Chief of the Democratic Party, bravely leads his loyal hosts upward and onward.

If Tom T. has any sense of humor he must enjoy such a situation with exquisite relish.

The Gods We Worship

The savage African, in the wilds of his native home, takes a few sticks and some cloth and makes an idol which he calls Mumbo Jumbo, and

before which he falls prostrate, in devout worship.

Whereat we civilized fools all laugh at said African, and call him a barbarian—as indeed he is.

Nevertheless, it is quite apparent that while we make no gods out of sticks and calico, we worship Mumbo Jumbos of our own just the same.

Take, for instance, the Gold Reserve. Nature did not produce it; it has no life, no motion other than that which we lunatics give it.

One day it occurred to John Sherman to stack up, in the Treasury, a cool hundred million dollars, and keep it there, idle.

He straightway created the *Gold Reserve*.

Any law for this? No.

Any necessity for it? No.

Any popular demand for it? No.

His excuse was that he wanted a Gold Reserve out of which to pay off the \$346,000,000 in Greenbacks “when presented for redemption.”

Was anybody clamoring for the redemption of Greenbacks? No.

Was there any law under which anybody had a right to go to the Treasury and demand gold for Greenbacks? No.

Was there any custom or policy which authorized this setting apart of gold to redeem Greenbacks? No.

But Sherman did it, just the same, and it soon appeared that he had made us a Mumbo Jumbo which we all worshiped and before whose mysterious power we all fell prostrate.

As long as Sherman was Secretary of the Treasury the Gold Reserve was sacred. Congress looked upon it with awe. The President did it reverence. The newspapers bent to it in speechless adoration. The politicians rubbed the skin off their stomachs groveling before it. The people—the great inert mass within which is irresistible might if they but had courage and co-operation—patiently padded their knees and, likewise, knelt in mute submission.

The Gold Reserve was a national institution—like the Washington Monument—not to be desecrated, but recognized, supported, defended.

Senators alluded to it as they would to Plymouth Rock or Mount Vernon. It was a fixed fact which nobody disputed and all respected.

Statutes referred to it, in passing, as they did to West Point or Yellowstone Park—something that was permanent, national, inseparable from the life of the Republic.

There never was a law for the Gold Reserve, there never was a necessity for it, there never was an antecedent discussion in regard to it, and there never was a particle of financial sense in it. Nobody ever presented Greenbacks for redemption until Mr. Carlisle made his infamous ruling, and gold was paid out for paper and bonds issued to get the gold back.

The Gold Reserve was useless until it became, under Carlisle's ruling, a bait to set the bond trap with.

To show that it has no influence upon the value of Greenbacks we need only to point to the fact that although the size of the Gold Reserve constantly fluctuated for about a year after Carlisle's ruling, the value of the Greenbacks has not varied at all.

If the Greenbacks depended on the Gold Reserve, their value would have risen and fallen with the Gold Reserve.

The Greenbacks do not, and never did, depend on the Gold Reserve. They depend on the credit of the Government, and the known fact that the credit of the Government is based on \$80,000,000,000 of national wealth. Their legal tender quality, their usefulness as money, their receivability for taxes and public dues, make them good in the eyes of the people irrespective of any Gold Reserve.

John Sherman had no more right to make a Gold Reserve than he had to make a Silver Reserve.

Greenbacks were no more redeemable in gold than they were in silver. But why argue the case? The verdict is already made up in the minds of the jury. Both the old parties pay their vows to the Gold Reserve. Mumbo Jumbo is shrined in the hearts of both Democrats and Republicans. Sherman's god rules.

We quake every time they tell us that anything bad has happened to the Gold Reserve. We used to toss in our sleep, muttering distressfully, when the news would come that the Gold Reserve “is dwindling.”

What good does Mumbo Jumbo do the naked African? None.

But then, you see, the African doesn’t know it. Therein he is a fool.

What good does *our* Mumbo Jumbo, the Gold Reserve, do *us*? None.

But then, you see, we do not know it.

Wherein *we are bigger fools than the African is*.

Poverty

BY JOHN H. GIRDNER, M.D.

I HAVE just read Mr. Robert Hunter's book entitled "Poverty." It contains much valuable information, mostly in the form of statistics and references to other publications concerning the poor in different parts of the United States and England. It is a good book of reference; but to my mind its principal virtue is as a thought provoker. The question, "What are you going to do about poverty?" stares the reader in the face from between the lines on every page, and it haunts him after he has laid the book aside.

We of the United States are accustomed to boast of our material wealth and prosperity. When the writer or the orator wishes to wring the hearts of his audience and deceive them into the belief that ours, as conducted at present, is the very best of all governments, he draws a harrowing picture of the dreadful suffering of the poor of London; and then we pull the Stars and Stripes a little more closely about us, and, as that other Pharisee, we thank God that we are not like other men. Before we shed any more tears over the poor of London let us see if we cannot find use for our tears nearer home.

Mr. Charles Booth made a thorough and exhaustive investigation into the conditions of poverty in London in 1891. He found that 1,300,000, or about 30 per cent. of the population of that city were unable to obtain the necessities of life. This 30 per cent. were "living in conditions, if not of actual misery, at any rate bordering upon it."

Mr. B. S. Rountree made a similar investigation in the typical provincial town of York, England. He found that about 28 per cent. of the inhabitants of York were living in destitution. Mr. Rountree adds: "We have been accustomed to look upon the poverty of London as exceptional, but when the result of careful investigation shows that the proportion of poverty in London is practically equaled in what may be regarded as a typical provincial town, we are forced to the startling probability that from 25 to 30

per cent. of the town populations of the United Kingdom are living in poverty.”

Let us turn from England to the United States, and see how much poverty there is in our own country, among our own workmen, or producing class.

The report of the State Board of Charities for New York State shows that an average of about 26 per cent. of the population were aided, by both private and public charities, during each of the three years 1897, 1898 and 1899; and according to the report of the official statistician of the city of Boston for 1903 more than 20 per cent. of the entire population of that city were aided by the public authorities alone. This does not include private charities. In fact, all statistics of charitable works are defective, because they can never include the efforts to relieve suffering and poverty made by those who do not let the left hand know what the right hand is doing.

Commenting on the above statistics from Boston and New York State, Mr. Hunter says: “If the figures are correct as published, the persons in New York State in distress in 1897, and in Boston in 1903, would equal proportionately the number of those in poverty in London.”

Here are other facts about poverty worth remembering: “In the face of widespread poverty, there have not been for over half a century in England so few paupers, either actually or proportionately, as there are now. The population of England has increased from 18,000,000 persons in 1851 to 29,000,000 in 1889. During this period the number of paupers actually fell off. London has lost in pauper population fifteen times as fast as she has gained in general population.”

On the other hand, the returns from the almshouses in the United States show that the number of paupers increased almost as fast as population during the decade from 1880 to 1890. In Hartford, Conn., which is said to be the richest per capita city in the United States, the number of paupers increased 50 per cent. during this same decade.

Now, when you hear a Republican spellbinder draw harrowing word-pictures of poverty among the English workmen, and paint glowing pictures of the marvelous wealth and happy condition of the workmen in our own country, and when you read editorials in subsidized protectionist

newspapers about the “miseries of the working classes” in free trade England and the great prosperity among the highly protected workmen of the United States, just remember that according to the best information obtainable about twenty-five to thirty persons out of every hundred living in the towns and cities *both in England and the United States* suffer from poverty. And for the past forty years poverty has steadily *decreased* in England and steadily and rapidly *increased* in the United States. And no amount of ranting by the spellbinder or misrepresentation by the editor can alter these facts.

Mr. Hunter is of the opinion that 70,000 New York children go to school underfed. This statement caused astonishment and doubt in some quarters. But I contend that any trained physician who will note the very large percentage of anemic faces among the children as they issue from the public schoolhouses of this city will agree with me that Mr. Hunter’s estimate of 70,000 underfed children is most likely far below the mark.

The Children’s Aid Society and other charitable organizations maintain a number of industrial schools for poor children in this city. The total daily average of children attending these schools is 10,707. Inspector Lecktrecker recently made a thorough investigation into the condition of these children. Mr. Lecktrecker’s report goes into great detail. Summed up, the report shows that of the 10,707 children attending these industrial schools 8,852 are actually underfed by reason of poverty at home. It was found that the best breakfast that any of these 8,852 children had was a piece of bread and a cup of tea or coffee. A diet not only inadequate for nourishment, but actually destructive to a child’s nervous system.

A grown-up person only requires enough nourishment to repair the waste, wear and tear incident to the daily activities of brain and muscle. A child not only requires this, but it requires added nourishment for the growth and development of all the tissues of its body. No wonder we are raising up a class of people in this city which I have called in another place “Newyorkitics.” No wonder there is an ever-increasing procession of broken-down brains and nervous systems heading for the hospitals for insane. No wonder that crime is on the increase. What better can be expected from adults whose brains and nerves have been starved and stunted from birth?

But what exactly is poverty? Destitution of property; indigence; want of convenient means of subsistence; need. That is what the dictionary says poverty is. Want of convenient means of subsistence is the want of some one or all of the five chemical substances called proximate principles, which we take and must have to sustain animal life. The continual absence of these chemical substances from the human stomach, together with lack of clothing sufficient to protect the body against the elements, causes physical pain or suffering with degeneration and final death of the animal body. This is a literal scientific definition of the word poverty as applied to the animal or material man.

The adulteration of food which is carried on to such an alarming extent in the United States is an important factor in this poverty or underfeeding question. Even those who are able to buy a sufficient *quantity* of food have no assurance that the *quality* is such as will properly nourish their bodies.

When you satisfy the cravings of hunger by putting into the human stomach watered milk, or cheese which is part wax, or sugar mixed with plaster of Paris, or chocolate which contains only a suggestion of the rich cacao beans, or any of the adulterated articles of food for sale especially in the poorer sections of the city, you not only tax the system to digest and dispose of a quantity of useless and maybe poisonous material, but every tissue in the body is thereby robbed of its proper nourishment.

It is as much, or more, poverty and underfeeding to fill the stomach with material which does not contain the five *proximate principles*, i.e., nourishment, as not to fill it at all. The laws against substitution and adulteration of human food and drink ought to be more stringent than the laws against horse stealing. Yet, as I am informed, all efforts at such legislation are invariably met with the cry that it will interfere with the *business interests* of the country. Here, as in so many other instances, when an attempt is made to secure common justice and protection for the lives and property and rights of the plain people, we run up against the *business interests*. The curse of this country today is that everything, even human life, must be sacrificed when necessary to the BUSINESS INTERESTS.

The industry captains are killing and maiming the people now just as the military captains used to do, and for the same objects—to satisfy greed and selfishness.

The negro slave in the South in slavery days was further removed from poverty and the fear of poverty than any man I have ever known. When his day's work was finished he came home from the field or the shop and he found a substantial, well-cooked dinner awaiting him. After dinner he went to his comfortable cabin and sat before a blazing log fire, or, in warm weather, he sat out under the stars, fanned by the night winds. His wife and children were nearly always around him, as were his companions, the other slaves belonging to his master and the plantation.

This man did not have a single care or responsibility on earth. He did not have to meet a grinding landlord next day demanding rent. He did not have to cudgel his brains to find a way to meet a note due next week. He did not have to pay for food, clothes, light and heat for himself and his family. That pang of anguish so familiar to us all when we think of the possibility of our loved ones suffering from want and the fear of want when we are gone never wrung the heart of that black man. Child labor as it exists under the present system was unknown to the children of the black slaves. "Over the hills to the poor-house," when age and decrepitude had made him no longer useful, had no terrors for the black slave. The "system" of slavery made it perfectly certain that his owner would provide food, clothes and shelter for him in his old days, and for his children, no matter what happened. This black man, slave as he was, had a better guarantee against poverty and the fear of poverty for himself and family than any life insurance company can give. Even Mr. Tom Lawson could not find fault with the security of this policy.

Another thing the slave father did not have to worry about was sickness in his family. When one of his children became ill an ambulance from a charity hospital did not back up in front of the negro quarters, cart the child off to become one patient more in Ward No. —, and serve as "material" for a clinical lecture while it lived, and as "material" for the dissecting-table after it was dead. No, nothing of the kind happened. When the slave became ill the best medical skill and nursing were provided, and, if need be, the patient was taken to the "big house" where the master lived so the mistress could superintend the treatment, and in case of death the body was put in a neat coffin, and a procession composed of all the blacks and whites on the plantation followed the remains to the colored graveyard on the hill, burial services were read, a hymn sung and the body lowered to its final resting-

place. This is a glimpse at the condition of the slave in life and death in slavery days. I am not putting in a brief in favor of chattel slavery. I was born an abolitionist. My father was a slave-owner and my early life was spent in the midst of it, yet I abhorred the system as a child, and that abhorrence has grown with years. But I am now writing about poverty, and my point is: that chattel slavery as it existed in the South is the only state of society I know of in which poverty and the fear of poverty among the workers or producing class were absolutely abolished by law.

Under the old system the negro was a slave, you say. So he was. But if I read Mr. Hunter's book aright, the laborer under the present industrial system is also a slave. The laborer has a vote now and the slave did not. Yes, but the slave had a full dinner-pail *all the time* and the white voting laborer has not. The comparative value between his vote and a full dinner-pail in the mind of the white laborer under the present system was demonstrated in the election of 1896 and 1900, when he gladly gave his vote to the Republican Party for the *mere promise* of a full dinner-pail.

Tuck-of-Drum

BY ALFRED TRESIDDER SHEPPARD
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AT nine o'clock Josephine beat a vigorous reveille on the drum that had led old troops into action. It was the second of December; the sun of Austerlitz shone on the grass and trees in the little front white garden, and was fast melting the delicate tracery of fern and frond on the oval window of Monsieur Tuck-of-Drum's bedroom.

A curious name, Tuck-of-Drum; the echo of an ancient story told round camp-fires long burned out; a scrap of wreckage floating, like its owner, when the seas of years held so much that was forgotten. Dominique Laplume was proud of the name; for even the village children, whispering "Monsieur Tuck-of-Drum" behind his back, brought the flicker of a smile to his grizzled face and the ghost of a flash to eyes dim and watery with age.

On Austerlitz day, for many years, the drum had roused him from his slumbers. He had slept heavily, this old warrior; "a thousand thunders!" he said sometimes in self-excuse, "when one has made one's bed as often on straw or the solid ground——"

His son, growing from childhood to manhood, plied the drumsticks in his time; he fell at Solferino. His son's son held them in his turn; the earth still lay bare and trampled over him at Gravelotte. They had given much to France, these Laplumes. Now Josephine, with her black sleeves rolled high on her thin white arms, and her dimpled face set into desperate earnestness, took her dead father's place, and thundered at the parchment until the old man's husky voice answered the summons.

Her sabots clattered down the stairs. Coughing and grunting, Monsieur Tuck-of-Drum began to dress. The clothes he had worn the day—and many days—before hung from their pegs in a chintz-covered recess. On a rush-bottomed chair near the bed, carefully brushed and pipeclayed, lay coat, and belts, and breeches, and gaiters that had gathered mud, in their time, from

half the kingdoms of Europe. On the dressing-table the cross of the Legion of Honor rested in its little leather case.

At last his shaking fingers opened the door. The drum lay outside; the drum, and, on the drum, the gigantic bearskin, bullet-bitten in old fights, moth-marked during long, idle years. He came downstairs in full regimentals. Madame Laplume was talking to the village postmaster at the open door. She ran to meet him. Her eyes were misty, for she remembered last year's reveille; but there was a ring of gladness in her greeting.

"Good morning, grandfather!" she cried, kissing him on both cheeks; "a happy Austerlitz day. There is news, too——"

"News?" Dying fires flamed up for a second in his old eyes.

"D'Aurelles de Paladines is driving them back," she said. "We won everywhere yesterday—everywhere. Chanzy has forced the Bavarians back on Orgères. We have taken Guillonville, Terminiers, Monnerville—and—and—where else, Josephine?"

"Goniers, Villepain, Faverolles," little Josephine chimed in, repeating the names glibly, like a well-conned lesson.

"And they say the brave General Duerot has broken out of Paris, and is marching to join the Army of the Loire!"

"Good!"

Monsieur Tuck-of-Drum sat down stiffly, the joints in his long limbs cracking; he held the coffee-cup to his lips, but the coffee danced and splashed out. He jerked the cup down quickly, and brushed a drop from his mustache with an impatient hand.

"It is just as I have said," he cried suddenly and fiercely, springing to his feet. "We have them like trapped rats! Did I not say so, Héloïse? Even the little Josephine has heard me. Listen, Josephine. These Germans, these enemies of our dear France, begin to pay for their folly. They hated us because our great Emperor led us once to all their capitals—to Stuttgart, to Dresden, to Munich, to Berlin—because their kings bowed hats-in-hand before the soldiers of France; because we cut up their country with our swords as I—look you!—cut this bread of mine." And with nervous hands he sliced white, crust-ringed circles from the roll. "But now—ah, the

Emperor, our great Emperor, is dead; and the Marshals and the Grande Armée have marched away. They found us asleep, unready; like rats, like locusts, they swarmed into our cornfields and our vineyards. But we are awake at last! We are ready at last! The revenge begins!”

“It begins,” echoed Madame Laplume. “But come, grandfather, your coffee grows cold, and——”

“The punishment begins!” he continued, his voice shrill as the neigh of an old war-horse. “Look you!” He held up a gnarled hand. “Here is Duerot, with the troops of Paris. Here”—he raised the other, its knotted fingers stretched out—“are De Paladines, Chanzy, De Sonis, Jauréguiberry, with the Army of the Loire. Now see; the Germans are between them.” He snatched a morsel of the bread he had been cutting and brought his palms together. “The Germans—the Germans——”

“You have cut your hand, grandfather,” cried Josephine.

He stopped, and looked dumbly at his palm. A splinter of crust had grazed the skin. The bread rolled to the floor.

“They are crushed,” he mumbled, bringing down his heel. “Miscreants! that they should dare to enter France! But they will pay for their folly; ah, they will pay well! I knew; I said it. ‘Wait,’ I said, when they came to us with their long faces and their stories of defeat. ‘France has slept; but she will shake herself and awake.’ *Mon Dieu*, yes. Why I—I who speak, my little Josephine, put a hundred to flight when I was young, with this little drum alone: that is why they call great-grandfather Monsieur Tuck-of-Drum, my dear. See, it is the sun of Austerlitz that shines on the white trees. Sixty-five long years ago—sixty-five long years ago—the great Emperor pinned this cross on my breast; ‘Ah, this is Monsieur Tuck-of-Drum,’ he said, pinching my ear, ‘who beat the charge in the village, and put a hundred to flight.’ That was nothing; we did those things. And again—today—the sun of Austerlitz——”

He broke off suddenly as the door opened and a fat old man, with a large, hairless, foolish face—the face of a great baby, still eying the world with wonder—entered the room. He, too, wore the uniform of the Emperor’s Guard. The veterans embraced.

“You have heard the news?” cried Laplume. “Ah, it is arranged. Austerlitz day—the day of Austerlitz—sees victory again for France, my dear Hippolyte. Sit down, sit down. Héloïse mixes the salad. Héloïse! Here is Monsieur Bergeret. It has been a struggle, my friend, but we have saved a bottle and a snack for today; we have arranged it, I say.” He sniffed, nudged his comrade and chuckled. A pleasant smell of cooking already pervaded the sitting-room, floating in from the kitchen in the rear.

Madame Laplume, who had vanished while Dominique was telling the child of France and its ancient glories, reappeared, with bare and powdery arms; Sergeant Hippolyte saluted, and passed a wavering hand over his foolish chin. Monsieur Tuck-of-Drum, talking garrulously all the while, patted his old comrade’s accoutrements into shape; fastened a button; untwisted a red shoulder-knot; rearranged an ill-adjusted strap. Age was dulling the Sergeant’s brain a little; “he does not wear as well as I,” thought Tuck-of-Drum, with the pathetic pride of age.

There was a metallic “tap-tap” and a clatter of sabots on the cobbles of the village street. “Jacques Dufour arrives!” cried Dominique Laplume, and flung the door open with a flourish.

It was like the gathering of ghosts from the past. It was a gathering of ghosts from the past. These three, with their wrinkled cheeks, their quavering voices, their scanty white hair, their battered uniforms and weapons—these three were all that were left of that band of young recruits who, in the great days of France, had marched down the village street, shouting the songs of the Empire, blowing kisses to fair faces in the windows and the roadsides, exchanging glances with bright eyes that had grown dim at last and closed on earth and all its color and glitter. Like spars, they floated still, scarred and encrusted by the waves of time that had engulfed a generation so heroic, stupendous.

Dufour, wrinkled, wizened, twisted with rheumatism, limped to his place. His grandson carried his musket and placed it in a corner by Bergeret’s; the old man had lost a limb at Quatre Bras and needed a stout stick to aid the wooden leg.

“I will come again at six, grandfather,” the boy piped shrilly in his ear. “I say I will come again to fetch you at six.”

“No, no; Pierre must stay,” interrupted Monsieur Laplume. “Eh? He must stay, too, and hear the stories of the olden days—the days of the glories of France.” The boy’s eyes lit up. “Come, we are ready. He shall sit by the little Josephine.”

By and bye Madame Laplume brought in the meal, steaming from the oven. Bottles of red wine were ranged on the table.

“There were five of us last year,” Dufour muttered. “Buffet and Deyrolles have dismissed.”

“Eight the year before,” said Bergeret, rubbing his hands and smiling vacuously.

“The ranks grow thin, comrades,” said Laplume. “Well, the first toast!”

They rose, and drank in silence to the memory of that great man whom they had fought and bled and suffered for long since—and still remembered and adored. They drank to the old Marshals, to the Grande Armée, to village comrades whose bones lay in the Peninsula, in Germany, in Belgium, in the churchyards of France, but whose faces, dim and mournful, still looked at them through the mists of years, and whose voices still echoed in their memories. They lit cigars and pipes; but the room was full of the smoke of ancient battles. They talked of Desaix, Bessières, Junot, Murat, Lannes, Masséna, Ney—the old, unforgotten names. If they could come again! Ah, if *he* could come again—how the scattered remnants of his lost legions would rally round him, and young France hurry to the eagles, and the glorious days return!

“But we are making an end; we are making an end,” cried Tuck-of-Drum fiercely, bringing down his fist and making plates and bottles jump with the vehemence of the blow. “Chanzy and Duerot have them in the trap at last. I said so—did I not? Even the little Josephine remembers. On the day of Austerlitz——”

An ominous booming, distant, sullen, like an echo of old years of strife, sounded in their ears.

“It is thunder!” cried Pierre. Little Josephine clutched her mother’s arm.

The veterans exchanged glances. “What the devil——” began Laplume. They flung open the door and stepped into the village street. Two or three

people, white-faced, had stopped to listen.

The distant guns roared again. What were they doing there—then—in that direction? Tuck-of-Drum looked puzzled, doubtful. This day of all the year, this great day of his life, was bound up with all his thoughts; one hope, one conviction, possessed him, and had shone steadily through all the gloom of the last few months. The day of Austerlitz would see the eagle turn upon its foes; the sun of Austerlitz would look down upon the invading army scattered like chaff before the wind—crushed, rather, like grain between the two millstones, the armies of Paris and the Loire. The previous day's successes confirmed him. But what were the guns doing there? The fighting should be far beyond Orgères by this time. He beat down a flicker of uncertainty.

"Bah, it goes well," he muttered. "They make their last stand. Come, comrades, let us drink to Chanzy and the Army of the Loire."

Poor, foolish Bergeret soon fell asleep, huddled in his chair; but the wine put fire into the veins of his comrades. Pierre and Josephine listened round-eyed as they talked of bivouacs and camp-fires; of ancient comrades and conquered cities; of Austerlitz and the heights of Pratzen, and the Menitz Lake.

"Sixty-five years ago at this very hour"—so the talk went on. "Do you remember? Have you forgotten?" They argued, they shouted, in their old voices that broke from gruffness into shrill quavers, ludicrous under other circumstances, but now pathetic. They moved bottles, glasses, salt-cellars, to illustrate the disposition of troops; in the blue smoke-clouds the children, drinking in their words, could almost catch the glint of the Cuirassiers' breastplates, the glittering gold-lacing of the Hussars, the rise and fall of green epaulets as the voltigeurs moved into line, the yellow facings of Oudinot's Grenadiers, the clamorous mêlée of horse and foot. They discussed the present fighting, the mistakes of generals; and here Héloïse, eager as they for the success of the cause which had cost her husband's life, joined in with the names and dates and figures at her tongue's tip. In the distance the sullen guns were booming.

"If I were with them!" sighed Tuck-of-Drum. "They had no room for the old soldier; yet I can beat a charge as well as ever! I—I who speak, could fire a musket with the best of them!"

“Grandfather volunteered,” piped Josephine.

“Yes,” said Héloïse, eyeing the old man proudly; “but they wanted him to take care of us. ‘You must look after the women and children for us, Monsieur Laplume,’ said the officer. ‘You have done your share for France in the field. You know what our great Emperor wrote, “It will be sufficient for you to say, ‘I was at the battle of Austerlitz,’ to authorize the reply, ‘Behold, a brave man.’”””

Dominique Laplume waved a hand in depreciation, as if to brush aside the praise. “A brave man? Every Frenchman is brave. It is in the blood of France. We need not be proud of what we cannot help. We have been unfortunate, yes; badly led, yes; but the men—the men——”

The door opened suddenly. The village postmaster stood again at the entrance, his eyes starting, his face lemon-colored, his lips livid under the straggling beard. “All is lost!” he cried. “We are betrayed, defeated! Chanzy is driven back! The enemy advances!”

The door rattled in the grasp of his shaking hand. He limped off to spread the news of the disaster, which grew with his terror. Laplume, Dufour, Madame Héloïse, started to their feet and looked at each other blankly. The sudden, awe-struck silence woke Bergeret, who looked round with wide, foolish eyes. Josephine’s mouth twitched and tears gathered. Pierre clenched his brown fists.

“Come,” cried Monsieur Tuck-of-Drum suddenly. He donned the great bearskin, the others followed his example, Bergeret fumbling foolishly with its heavy chain. His baby face expressed wonder rather than the alarm, the bitter disappointment, the wrath, written on the faces of Madame Héloïse and Laplume and Dufour. Tuck-of-Drum girded on his sword and slung the straps of his drum over his old bent shoulders. He thrust Bergeret’s musket into the Sergeant’s hand. Dufour motioned to Pierre, and hobbled out; the boy followed him. Madame Héloïse Laplume ran to the door to intercept them. “Where are you going, grandfather? Where are you going?” she gasped.

“Stand back, Héloïse. We go to call the village. Stay here; stay with the little Josephine.”

She paused irresolute. After all, though they could do no good, what harm could they do—these three old men? They were going to call the village. Yet there was a look on the ancient soldier's face she had not seen since the day of the first great reverse, when he had gone, with his head erect and old fires flashing in his dim blue eyes, to offer his feeble services to France.

Suddenly, loud and distinct above the distant booming of the guns, his drum sounded—beating an assembly in the quiet village street. She put her hand to her breast and ran out. If the Germans were really coming——

She clutched his arm.

“Are you mad, grandfather?” she gasped. “Come in; come in and finish your wine and pipes together. There are only boys and women and old men in the village. They can do nothing——”

He shook her off.

Well, even the enemy, cruel though they were, could never harm men so old, so feeble and defenseless. They would ride through, laughing in their beards, mouthing their uncouth jokes at the faded uniforms from which their sires had once fled in terror; but—no, they would never harm them. Josephine was crying softly within. She turned back to the house.

Up the centre of the village street marched Tuck-of-Drum, drumming, drumming with an energy surprising and pathetic, as though he could call from their weed-grown graves the lads who had once jumped so smartly to the rattle of the parchment.

“*Rat-a-plan! rat-a-plan!*” sounded the summons; his hands had not lost their cunning, though they ached and grew weary with the unwonted strain. Behind him staggered Bergeret, his great bearskin toppling forward over the fat, smooth, foolish face; Dufour hobbled in the rear, his stick and wooden leg tapping the cobbles; little Pierre, beside him, dragged the heavy musket.

Pale faces, working in terror, peered from the café of the Boule d'Or. Tuck-of-Drum burst open the door. On the little tables glasses of bock, tiny glasses of spirits, stood half emptied. The men had all risen; the tawdry, gilded mirrors, cracked and dusty, distorted their faces, showing them more pallid, more unhealthy even than in life. Three or four old men—not so old as the veterans by many years—three or four washed-out-looking lads,

rejected even by the army that had dragged men in from the very highways and hedges to resist the invaders—turned startled looks on the newcomers.

“The enemy is coming!” said Tuck-of-Drum. “Comrades, let us march against them, like the men of Dreux, of Châteauneuf! Look—the sun of Austerlitz is going down! Today, all France must help——”

They exchanged glances; they huddled together like sheep.

“What is the use?” one muttered.

“Aye, what is the use?”

A youth sniggered vacuously. “You are sixty years too late, Monsieur Tuck-of-Drum. If the great Emperor could come back now, if France had a man——” The speaker shrugged his shoulders, spread out his hands with a gesture of helplessness and looked round for assent.

“If—if—if!” cried Dominique Laplume. “We will lead you—we, of the Grand Army! Today all France must rise. All must help. It is the great effort. Today France conquers—or is conquered. ‘If’ never won a battle. Come, I say! Jules Brienne, your grandfather carried an eagle at Marengo. Monsieur Grenier, your uncle fell by our side, fighting bravely, on the field of Austerlitz.”

He argued, ordered, entreated; in vain.

“Bah! Poltroons!” he muttered, and turned on his heel.

Again the drum sounded.

“Yes, go out and play with your toy, Papa Tuck-of-Drum,” cried young Brienne after him. Laplume did not hear. They marched next to the Café de l’Ecu. The village postmaster, shaking still and casting nervous looks round him like a frightened horse, was telling his story to a similar assembly.

“Pah!” muttered old Dufour, twirling his thin mustache, “these villages are the rubbish heaps of France. The men are all away.” Again the appeal was made. A fat man, with fishy eyes and yellow, pendulous cheeks, shrugged his shoulders and raised protesting hands. “What can we do? What can we do?”

“They would finish us all with a volley. We should be killed,” whined another man.

“Killed? And what then?” Laplume snorted with fierce contempt.

“Let us be killed then!” broke in Dufour, crashing his stick down on the sanded floor. “It would be worth it. A thousand times worth it! Let each village in France raise a wall of dead against the invaders!”

Bergeret nodded his foolish head again and again with emphasis. The fat man began to talk fast, volubly, excitedly, pouring torrents of abuse on the Emperor, generals, government, the enemy, waving his fat hands, shrugging his fat shoulders. The curtained door of the café opened. He stopped suddenly and lamely. A countryman burst in.

“They are coming—they are coming!” he shrieked. “I have seen them in the road. I ran through the woods. Hundreds of them! I have seen their lances—the sun on their lances!”

“Come!” cried Dominique Laplume in a voice of thunder. “In the name of France!”

No one stirred. He looked round, scorn in his old eyes. “We will go, then—Bergeret, Dufour—my old comrades.” His voice choked with bewilderment, disappointment, anger.

They went out. The air was sharp with frost. It was very still in the village. The sun, a red ball of fire, still glowed on the frosted trees; on the white and yellow walls of the cottages; on the white fields and white-cowled windmills; on the powdered cobbles of the street. A segment of moon, strangely like a pierrot head, thrust through curtains of cloud, its mouth whimsically awry, peered down sideways at the earth—at the white earth, where legions of tiny men, like ants, hurried to kill or be killed in their bewildering quarrels. The distances were blue—the shimmering steel-blue of winter distances. Here and there a column of black smoke, shot through again and again with tongues of fire, went up to heaven; the smoke of burning villages; little sacrifices France offered for her folly to gods not yet appeased.

“To the bridge,” said Tuck-of-Drum. They marched in silence. The drum was silent. At the end of the long, straggling street a tiny bridge spanned a frozen stream which the enemy must cross. By the side of it was

a clump of bushes, so thick that, even leafless, they formed a screen behind which the veterans and the boy crouched down.

“They might have broken down the bridge at least,” grumbled Dufour. “Menitz was frozen, and the Emperor——”

“They are coming!” whispered Pierre.

His sharp ears, close to the ground, had caught the *clip-clop* of approaching hoofs.

Tuck-of-Drum drew his sword and rested its hilt on the rough wooden parapet of the bridge. “Fix bayonets!” he growled.

Sergeant Bergeret should have given the word, but he carried out the order placidly, drawing the sword from its scabbard and fixing it with his fumbling fingers. “Put it in for me,” muttered Dufour, handing his bayonet to Pierre. “Now give me the musket—so—and run home, good lad. Embrace me and then run home.”

He sat on the ground, his wooden leg stiff and straight in front of him, and clutched the bayonet. Pierre’s lips tightened; he did not move. “Go home, I say!”

“Hush, they come!” whispered Tuck-of-Drum.

Peering through the brushwood, they could see, on the road ahead, the pennoned lances of German Uhlans, rising and falling with the jolting of the horses. The hoofs clicked louder and louder on the frozen road.

Suddenly Tuck-of-Drum sprang up.

“The Guard will advance,” he growled, with a little hoarse laugh, the faint echo of one that men now dead had heard and talked of, long since. Joy, fierce, savage joy of fighting, dormant so long but not extinct, flared up and flashed in his faded eyes. And yet, with the joy, a rage terrible and righteous shook him as he saw the glitter of the steel, the fluttering pennons, the casques and foreign uniforms—the foes of France, violating the sacred soil of which the dust of his race had made.

His trembling hands clutching the drumsticks, he advanced to the centre of the bridge. Bergeret stood on his right, his bayonet extended. Dufour grasped the parapet, dragged himself up, groaning in spite of clenched

teeth, planted his wooden leg firmly, and, leaning against the woodwork of the bridge, rested the butt of his weapon on the ground, the tremulous steel pointed toward the enemy. Pierre came to help him. “Go back! go back!” he growled, pushing the boy aside with all his feeble strength. Pierre slipped on the frozen earth and fell, clutching at the bushes. Suddenly Dominique Laplume sounded the *pas de charge*.

A strange, pitiful defiance this, echoing back through the deserted village street, floating mournfully out to the white, empty fields, sending its arrogant, useless challenge to the ribbon of white road ahead. “*Rat-a-plan! rat-a-plan!*” The old drum, that had sent a hundred men flocking like sheep before it—the old drum that Jules, who fell at Solferino, that Dominique, who fell at Gravelotte, had beaten on winter mornings of their boyhood—answered nobly to this last great effort, and seemed a living, sentient thing, entering into the brave spirit of the challenge.

There was a startled shout, a clatter of stones, as the Uhlans reined in their horses.

“They fly!” shrieked Tuck-of-Drum; “they—ah!”

Half a dozen carbines shot up and flashed fire. There was a hoarse cry in German; an officer struck aside the stock of a man’s weapon.

Dufour’s bayonet clattered down; he slid into the thicket, his wooden leg scoring a long, jagged line in the frosty road. Bergeret was on his knees, a light of strange intelligence dawning in his smooth, foolish face; quite suddenly he fell sideways on to his fallen bearskin, matted already with his blood.

Tuck-of-Drum still stood in the centre of the bridge. The drumsticks descended on a drum pierced and soundless—then dropped, one after the other, slowly, from his nerveless grasp. The world swung around him. The poplars down the roadway on which his glazing eyes were fixed marched, doubled, moved into echelon and square. “*La Grande Armée! La Grande Armée!*”

Was it the cry of the Germans, in wonder, in derision, in pity? Or did his quivering lips frame the words? Ghosts formed round him; the ghosts of the old battalions who had marched, long back, into silence. They swayed, they heaved, in countless numbers; file after file, rank after rank, regiment after

regiment, formed up, doubled into place, and passed him by. He saw the flash of breastplates, the crimson fronts of the Polish lancers, the red plumes of the line, the bearskins of the Guards, the glittering eagles of France.

“My comrades—O my comrades!” He staggered forward, with stretched-out hands. A confused murmur buzzed in his ears; it swelled into a tumult—“*and the shout of a king was among them.*”

One hand sought the bearskin. Suddenly he fell face forward.

Under the wide sky, in the uniform of their dead Emperor, the three veterans lay together; a young boy crouched near them, bleeding from an unnoticed wound, and sobbing.

A night wind crept over the frozen fields; a little wind, like a sigh from France for her ruined homes, her smoking villages, her slain children, her lost cause and faded glories.

The sun of Austerlitz sank down behind the poplars.

The Royal Road to Learning

F REDDIE—What’s an honorary degree, dad?

JOHNSON—That’s a title a college confers on a man who would never be able to get it if he had to pass an examination.

The hardest kind of work is looking for it.

The Southern Negro as a Property-Owner

BY LEONORA BECK ELLIS

BETWEEN the Southern negro as property and the Southern negro as a property-owner worthy of account, American progress has set its milestones thick and strongly marked. Yet, as mere years go, the time has been short indeed for a transition of meanings so vast.

The act of emancipation brought in its train several very serious problems, and more than one of these must be acknowledged to have grown graver with further-reaching complexities and involutions as the decades have passed. But in the present article these are not under consideration.

The point we desire to emphasize is that one of the most difficult questions brought to issue in the emancipation of the negro has already solved itself by what we are accustomed to call natural processes.

When the epochal pen-stroke fell and \$3,000,000,000 worth of Southern property was suddenly obliterated as property, yet stood there in plain world's view, like the metamorphosed dragon's teeth, as men with the rights of men, there were masters of statecraft everywhere who faced one another blankly, asking how such a situation was to resolve itself. Not even the most sanguine saw any reason to hope that so complex an issue as that involved in the relation of the freedmen to the land could be brought to satisfactory or righteous solution until at least three or four generations had mingled dust with dust.

The relation of the freedmen to the soil! Here was the problem that must have given pause to an older state, a European nation, say, upon the eve of liberating at one stroke four millions of serfs.

But young nations, like young individuals, often let their deep convictions sweep them unprepared into strange conditions and perils, from which only the magnificent vitality of youth rescues them without disaster.

The United States Government has, for half a dozen years past, recognized it as a duty to compile and offer for public reading certain facts and figures relating to the progress of the negro in acquiring education, following different pursuits and trades, and accumulating property. Out of the various reports upon these subjects issued from the Department of Labor since 1897 it is probably the information set forth regarding the property-holdings of the former slaves and slaves' children in three or four Southern states that will strike the greatest number of people with surprise, even with that form of astonishment which borders on unbelief. Yet this surprise is of the healthful type, and the unbelief passes when a closer investigation is made into the matter.

The closer investigation is undoubtedly worth while, and it will prove profitable for a little while to exchange general statements and sweeping surveys for definite figures, well verified data and typical cases within a limited territory.

Therefore, to illustrate clearly that particular phase of the negro's progress, the adjustment of his relations to the land and his steadily advancing gains in real estate and other property-holdings, it will serve best to take the state of Georgia and present certain comparative data relating to the situation here.

Our choice of the commonwealth of Georgia for the setting forth of this matter, instead of some sister state, can be easily justified. Although the youngest of the original thirteen states, and the only one whose early constitution barred slavery from its boundaries, yet, when the Civil War came on Georgia had long been a slave state of great importance, and at once took a leading part in the struggle. Her people suffered heavier losses from the war, it is authoritatively claimed, than those of any other state except Virginia, the old order of things being more utterly wrecked and old landmarks more completely effaced here than elsewhere.

There are other reasons for our choice less disputable even than these. Georgia has the largest area of any state east of the Mississippi River, and, in her great sweep of 59,475 square miles, from the Appalachian Mountains to the Atlantic Ocean, exhibits the greatest diversity of soil, climate and physical features, all of which must be conceded to affect negro life and industry. Lying largely in the so-called "Black Belt," the state still presents

quite as marked a diversity of social conditions as of physical, nor have any of the former slave-holding states been more strongly affected than this by the industrial and educational movements which have stirred the South within the last few years. It is only fair to call attention, likewise, to the fact that, while Georgia is recognized as the centre of some of the most radical thought and action upon the negro question, yet this condition is counterbalanced by the existence within its borders of a mass of white voters who seem more than ordinarily swayed by an intense sense of justice to the black. Witness the manner in which all bills tending toward negro disfranchisement meet summary defeat before the Georgia Legislature, and, again, the defeat of the last year's movement to divide the state's educational funds in such a way as to allow to colored schools only the pro rata share representing taxes on the property of the negro.

Furthermore, it may be added here, that while the state has no Hampton or Tuskegee within her borders, still she has most excellent public schools for negroes, and in several cities she is now giving them admirable training in manual and industrial arts along with the academic studies, as, notably, at Columbus; and she also has an important branch of her state university devoted to the industrial, technical and manual training of colored youths—that is, the Industrial College for Negroes at Savannah, a high-grade institution wholly supported by public funds.

If the selection of Georgia for a local study of the negro's material progress does not yet appear justified, then the last, and in itself wholly adequate, reason may now be assigned, namely, that the state has the largest negro population of any in the Union, her colored people numbering 1,034,998, or a bare trifle under 50 per cent. of the entire population. Observe that in this state are congregated more than one-eighth as many blacks as are scattered throughout the remaining half a hundred states and territories of the Union.

New Year's Day of 1863 saw 470,000 freedmen in Georgia, these in the main having been ushered into liberty in quite as destitute a condition, regarding land and other worldly possessions, as that in which they were ushered into existence. The exceptions to this generally prevalent destitution were favored slaves here and there whose former masters and mistresses, too often nearly destitute themselves, had deeded them little homesteads, or in some other way given them a start in independence. Or,

again, there were exceptions in the case of the few thousands upon whom General Sherman and his associates had bestowed certain donatives in the shape of wages, usually unearned, and bounty money or lands, all distributed with the injudiciousness expected in such a situation.

Today, barely one generation's space removed from that hour of strange and sorrowful conditions, these freedmen and their children pay taxes on more than a million acres of Georgia land, not to mention houses, household goods, stock, agricultural implements, merchandise and other taxable properties. If the situation speaks well for American life and opportunities, it also speaks well for the black man, and more eloquently still for his chances in the South.

The toilsome processes by which the Georgia negro has climbed from destitution to his present state of comparative prosperity deserve more than a passing glance. Do not think it was the same as if you or your neighbor, or even Mr. Riis's European, who is to be refashioned into an American, should start today without money or lands, without friends except those destitute as yourselves. We should know where to turn, what work to take up, how to apply whatever of skill or energy or special aptitudes might exist within us. Failing of skill or marked aptitudes of our own, failing even of an ordinarily good education, we should at least have within us inherited instincts to help us out of the difficult situation. Above all, we should know what was in the world, what was worth striving for, where to set our aims.

But what of skill did the negro have, save in the rudimentary forms of agriculture? Whither, save for restraining influences, would his inherited instincts have led him? What did he know of life experientially beyond the log square of a slave's cabin, or by observation and hearsay beyond the compass of the plantation lord's domain?

No; set it down that the new freedman was poorer than the poorest, and, except in rare cases, more ignorant than can now be readily conceived of. In such condition, with no higher aims to impel him to work than the bare instinct of self-preservation, his work must of necessity be for many years only a bread-meat-and-shelter matter.

Yet, somehow—who can tell by what strange evolution?—working on blindly, gropingly, toilsomely, he has still contrived to press forward, until today, with a generation scarcely gone, he stands on a plane no one counted

on his reaching under a hundred years. And the best of all his gains is that the most intelligent of his race have come to comprehend what true progress means, and to compare the slight space traversed by their people with the vast upward stretch reaching away in front of them.

During one of the large conventions which recently met in a Georgia city, a visitor from New England asked me, with genuine concern: "But where do your better class negroes live? Or are there no blacks decently housed, no places at least approximately clean and comfortable that they can claim as homes? In various cities through your section I have found only swarming and fetid negro quarters, the worst of slums, a menace to municipal health, both physical and moral. Is there nothing more hopeful than this to show for the race?"

Admitting the general truth of his imputation, I was still able to point out to him a few streets, or sections of streets, where the most intelligent and prosperous of the blacks of the city had made themselves real homes. Yet even these, he demurred, bordered too close upon those same slums he had been fretting over. For in Southern cities the people of this race keep together, it will be noted.

But I told my guest to come with me to the country if he would see the negro at his racial best. Agriculture, I assured him, had come very near to spelling out salvation for this people. Instance the state conference of colored farmers convening not so very long ago in Savannah. Nearly two hundred delegates were present, and everyone owned his own home, many being comparatively wealthy. One in particular was pointed out as worth \$50,000, made entirely from agriculture.

In the country, then, we must still look for the best average of the negro's home, his domestic life and virtues, as well as his industry and thrift. A brief investigation of conditions brought our New England friend to the same conclusion, and he went away much better satisfied as to the prospects of the race.

Certain facts and figures which interested this intelligent student of racial conditions will doubtless interest scores of others, and they are, therefore, offered in the present paper.

Georgia has 137 counties, each constituting a small commonwealth in itself. Being settled at irregular periods and under diverse circumstances, varying, moreover, in topography and character of the soil and climate, these counties exhibit each a different ratio of the negroes to the whites.

A glance at the maps may aid in forming a clear idea of the movements and growth of the black population in Georgia. In 1790, it will be observed, the counties near the coast were the only ones settled, and if the black folk were inconsiderable in numbers, so were the white.

But by 1800 the slaves were showing a rapid increase, and were being moved up the Savannah River, while from that time to 1840 the population, both white and black, exhibited a marked tendency to seek the rich lands of the interior, pushing westward and, a little later, southwestward.

At the close of the year 1900 the blacks of the state had increased from the few thousands of slaves of a century back, held chiefly on the coast, to more than a million free people, fairly well dispersed through all but the extreme mountain counties and paying taxes on many million dollars of Georgia property.

From the office of the comptroller-general of the state there is issued annually a full report of the property-holdings of both blacks and whites, set forth with exactness of detail county by county. From the file of these reports it is easy to make a comparative study, in brief or at length, of past changes, progress or retrogression, and the present status in any or all of the Georgia counties. But the general reader will be able to draw his conclusions from a glance at a few of these.

Chatham County, the original seat of settlement, is perhaps the best starting-point. It is located in Southeastern Georgia, washed by the Savannah River and the tides of the Atlantic, has for its county seat Savannah, the second city of the state, and comprises mainly a stretch of marshland, low islands and flat, sandy tracts. In early days a brisk slave trade brought many negroes to this county, and since the war the city of Savannah has attracted the freedmen in great numbers. The relations between whites and blacks have been more uniformly cordial here than elsewhere, the former being in the main of the original slave-holding class, and the latter largely house servants. The situation is thus in direct contrast to that in Atlanta, for instance. By the year 1790 there were already 8,313

blacks in Chatham County, as against 2,456 whites; while the census of a hundred years later shows an increase to 54,757 negroes and 22,966 whites.

Sherman's celebrated field order, issued immediately after his investment of Savannah, gave hundreds of former slaves temporary possession of valuable lands on the coast and sea islands of this county, as it did to a lesser extent in certain other sections of the state. This tenure was in some cases brief, but in many others became permanent. Hence, even as early as 1875, we find the freedmen owning 1,491 acres of Chatham's land, valued at upward of \$70,000, besides town and city realty worth \$152,760. Twenty-five years later they had multiplied these figures by four, approximately. No bad showing, when all things are taken into consideration.

Another coast county, Liberty, is beyond doubt the most interesting in its history of all the so-called "black counties." This, too, is located in the southeastern portion of Georgia, a neighbor of Chatham's, with much the same climate and topographical features, and was laid out in 1777. But the history of its first settlers deserves to be traced much further back, for, in 1695, there had come to South Carolina a little colony of New England Puritans, breaking off from the parent church at Dorchester, Mass., and led by Joseph Soul, a Harvard graduate and teacher. Their location in South Carolina having proved unhealthful, they were attracted by Oglethorpe's little Georgia settlement, and, having secured a grant of 32,000 acres on the present site of Liberty County, they removed thither in 1752, their colony then numbering 280 whites and 536 negro slaves! The county was laid off as Midway, but later changed its name to Liberty. It should be remarked that when secession from the Union became an issue this county voted solidly against it.

After the Civil War the land here was thrown largely on the market, and at several places, notably Woodville, Ogeechee and Belmont, numbers of negroes united themselves into colonies and bought extensive tracts. There are now in the county nearly ten thousand negroes, with half that number of whites; and the former own more than 50,000 acres of land.

Appling is a county also in the southeastern portion of the state, but presenting a very different showing. It is a level county, inland, with poor soil, and the tide of slaves poured around it without touching it. In 1820

there were just eighty-six negroes within its borders. When manumission came there were only about seven hundred Appling County slaves to be set free. At the present time it is estimated that there are 3,000 negroes in the county, with more than twice that number of whites. But from the comptroller-general's latest report it appears that the former own 17,946 acres of land, such land as it is!

Now run up to Central Georgia. Here is found the flourishing city of Macon, in the county of Bibb. The census of 1890 gave Macon a population of 22,746, of whom one-half were negroes. The land in this section is hilly, with soil mixed, good and bad. Twenty-five years ago there were something over 11,000 negroes in the county, outnumbering the whites by nearly two thousand, and they owned 2,611 acres of land. Now the blacks have a trifle more than doubled in numbers, as well as in property-holdings. Observe, too, the higher value of the negro's farm lands in this section. His 4,500 acres of Bibb County land is now assessed at \$413,300, which amount, added to his town and city realty and other taxable properties, makes an aggregate value of \$719,380 in this county alone.

A little to the northeast of Bibb County lies Baldwin, of which Milledgeville, the former state capital, is the chief town. This was a very wealthy ante-bellum section, with large holdings in slaves as well as lands. When the Civil War began Baldwin County could muster 5,000 slaves, although of the whites, rich and poor, there were only 4,000. When the census of 1890 was taken the negroes had increased to 9,343, the whites only to 5,262. Last year the negroes were paying taxes on 6,501 acres of Baldwin County land, valued at \$26,599, besides a large amount of city and town property and other possessions, the whole aggregating \$104,592.

Take another county in Middle Georgia, a county of good lands but without a town of any size in it, therefore representing more nearly a plain agricultural average. Any one of a score might be selected. Let us say Butts, a small but prosperous county which was laid out in 1825 and at the outbreak of the war had 3,082 slaves and 3,375 whites. A quarter of a century ago its freedmen, numbering approximately 4,000 people, owned but ninety-seven acres of land in the entire county and \$350 worth of town property. Have they climbed since 1875? In numbers they are now estimated at 7,000, against a like number of whites, and last year these

negroes paid taxes on 1,613 acres of good average farming land, and on other property which ran the total valuation in Butts up to \$49,941.

In the mountain counties of Georgia it has been different, the increase in number of negroes as well as their possessions being slow and uncertain, while the whites have maintained a steady progress in such sections. This, however, is clearly accounted for by the lesser ratio the agricultural interests bear to others in mountainous districts, and the dependence of the negroes upon the former. Glance at Gilmer County, with its sixty-nine blacks and almost 10,000 whites, the former paying taxes on a few hundred acres of rocky hillsides, and their whole county property aggregating, by the most recent returns, only \$957, while the latter show taxable possessions valued at \$728,000. In Rabun, Towns, Flannin and neighboring counties the situation shows much the same.

This brief study of typical counties may be closed with certain comparative data from Fulton, which contains the state's capital, Atlanta, a progressive and rapidly growing city distinctly of the "New South" type. Fulton was not laid out until 1853, hence is relatively young in the sisterhood of counties. Only about 2,000 slaves were set free in this county. Compare the number with the 16,000 manumitted in Chatham. But today there are more than 50,000 negroes in Fulton, and, although they own but a thousand acres of land in the county, yet the aggregate value of their whole property is a bare trifle below one million dollars!

To extract the most important meanings from such figures is not difficult. In connection with them several facts should be kept in mind, the first of which is that the negro's land-holdings in Georgia as well as in adjoining states are usually parceled out in very small individual lots. In a canvass of fifty-six typical counties of the state, the following table was established to show the average size of the farm lots among negro proprietors:

CLASSIFIED SIZE	PER CENT. OF TOTAL OWNERS
Under 10 acres	30.50
10 or under 40 acres	27.00
40 or under 100 acres	21.85
100 or under 200 acres	12.80

200 or under 500 acres	6.89
500 acres or over	.93

The fifty-six counties canvassed represent the majority of negro holdings in the state, and the average here established may fairly be taken as that of the state at large, or, indeed, of the agricultural South. The fact that a very large proportion of the farms are so limited in size as to amount only to gardens, or, in negro parlance, “patches,” augurs well rather than ill, for it means many small proprietors instead of merely a few large ones and the rest all renters or day laborers. Since out of 369,265 black people in the state ten years of age or over who are engaged in gainful occupations, almost two-thirds are employed in some line of agricultural work, is it not well that the million acres owned by negroes should be distributed in small holdings? It is easy to deduce from this the manifest decline of the metayer, or tenant system of farming. To be sure, these one-acre, or even ten-acre farms will seldom support the owner, though he may have the smallest family, or none at all. Such farms are largely instances of what may be called, in the German phrase, *Parzellenbetriebe*—that is, farms not large enough to occupy the labor of a family, but serving as sources of partial support to those with supplementary occupations. Yet, in many cases, these little plots of ground will grow to goodly farms within a few years. The same story has been traced a thousand times in the past quarter of a century.

It will be remarked, also, that the negro’s town and city property is increasing greatly. In 1880 the assessed value of such property was only \$1,201,992, or 20 per cent. of their entire state property; while in 1902 it is \$4,389,422, which is close to 29 per cent. of the state’s aggregate. Thus, while agriculture gave the freedman his start in self-maintenance, and is still his chief dependence, yet paths of employment and sources of revenue in cities are being discovered by him more and more as the years go by and his education progresses.

Before passing to the close, another point is worthy of especial note, interesting both the economist and the sociologist. In 1875 the assessed value of the household and kitchen furniture owned by all the negroes in the state, then numbering between six and seven million souls, was only \$21,186, or something like three cents’ worth to each individual. But in 1902 the assessed value of the same class of property was \$1,688,541, or a trifle over the value of a dollar and a half to each colored man, woman and

child in the state. Upon this phase of development and progress no comment is needed.

In brief, then, the black people of Georgia paid taxes for 1902 on 1,175,291 acres of land, and upon an entire property aggregating \$15,188,069 in assessed value. This means, beyond the shadow of a doubt, that the negroes of Georgia, or, broadly speaking, the South, are accumulating property and acquiring homes. And since the negro with a home is almost sure to stand for law, order and civic faithfulness, it means, moreover, a reaching out toward higher standards of living, not material living alone, but social life, mental and moral striving and achievements.

Comprehending the situation in its fulness, no man can deny that the race is actually *started* on the road to better things than their past might have indicated that they were capable of attaining.

A Japanese Populist

BY THOMAS C. HUTTEN

Author of "National Characteristics," "The Farthest East"

TWO years ago a prominent Russian patriot admitted a misgiving that nothing but a miracle could shake the strongholds of Czarish despotism. It does not impeach the correctness of his view that the miracle has been accomplished.

A giant has entered the political arena; a new world power has risen from the dust of a Buddhist serf-kennel, and it is about time to recognize the fact that the marvel of evolution has been effected by progress in the direction of popular democracy.

The memorable vote of the daimios was a renunciation of class privileges. Of the forty amendments in the new constitution of the Japanese Empire, twenty-six tend to reform the abuses of class legislation. The nation controls two-thirds of its mines. Stockholders of a telegraph monopoly have been forced to accept a time limit of their contract. Six hundred and twenty miles of railroads are managed—and successfully managed—by a national board of administration. The Government, in the name of the nation, builds its own warships and welds its own armor-plates, instead of farming out jobs to the highest briber. The Ways and Means Committee of 1901 reduced direct taxation almost on the exact plan of the system recommended by the reformer Bakunin—reserving building lots in new cities and granting tenures from two to ten years at gradually increasing rates of rent.

Populist reforms have rendered the Government popular enough to make the nation invincible.

And the world-wide need of those reforms has been repeatedly urged by Japanese travelers, and with the emphasis of strong personal conviction, especially by a keen observer who visited Europe and North America in the summer of 1903.

Professor Yashinto Korioky, agent of a Tokio reform club, explored the United States without the assistance of the guides trained by our Star-spangled Uncle and with often remarkable results.

“Surprises,” he says, “indeed, began before we had set foot on the soil of the great moral Republic. Above the sea mist and above the gathering clouds a fire gleamed like a meteor on the western horizon, and one of the Chinese steerage passengers, venturing to inquire, ascertained that it was a statue of liberty, furnishing light to the world. The next moment a sailor struck him between the eyes, and he admitted that he saw several starlike, luminous objects.”

A TEST OF RIGHTEOUSNESS

“The next morning,” he continues, “I got my traveling scrip, but was informed that our boat was moored on the wharf of an island, where immigrants are assorted according to the degree of their rectitude. Some pass the ordeal of scrutiny with ease, others with difficulty, for reasons which I was not always able to discern. I noticed, however, that the Government has coined shekels of silver with inscriptions expressing sentiments of virtue—“In God we trust,” or similar words—and whenever a traveler came provided with a goodly number of these tokens, his righteousness seemed to be taken for granted.”

PATERNAL SOLICITUDE

“The investigations of the learned officials in some cases extended to articles of wearing apparel. One Canton trader had underlined his tunic with eighty yards of fine silk, which, being discovered, were unwound and confiscated to enforce a lesson of modesty in the matter of dress.”

WORLDLINESS SUPPRESSED

“He was, however, allowed to proceed, more fortunate than two of his countrymen who had crossed the ocean for the first time, and were sent back at the expense of the Chinese contractors. Forty years ago these worldly toilers were admitted as freely as other foreigners; but it was

noticed that they worked sixteen hours a day and seven days in the week, thus disregarding the duty of providing leisure for spiritual exercises. And as their lack of repentance was, moreover, aggravated by the rapid accumulation of coin, it was finally decided to remove them for the promotion of their higher interests.”

A SCHOOL OF PATIENCE

“Animals that are most carefully excluded from the residence quarters of Japanese towns enjoy the freedom of many American cities. Cats roam at large and dogs are permitted to defile public monuments.... After dark their clamor exceeds the vociferations of the East Indian jackals and robs thousands of sleep; but it is perhaps necessary that taxpaying citizens should be trained in lessons of self-denial.”

GOVERNMENT MAN-TRAPS

“Knowing my reputation for veracity, be prompt, my brother, to intercede if the unregenerate of your neighborhood should question the following facts: In the course of each year some 80,000,000 ox-loads of grain are manufactured into a health-destroying poison; ... coal stoves, pretty as the vases of Nagasaki, radiate warmth in winter; fans, operated by unseen forces, mitigate the heat of the summer season. Singers often warble with the skill of the sirens. In the neighborhood of these seductive traps the Government then posts its man-catchers and awaits results. It may seem incredible. But I have been informed that in Southern China monkeys are often captured by similar devices. When the poison begins to operate they fall bewildered, and their awakening in a cage the next morning must tend to mitigate the frivolity of their disposition.”

A THOUGHTFUL LANDLORD

“The owner of the estate, we ascertained, was a timber merchant, as well as a pillar of virtue, and a large number of trees in the rear of the building had recently been felled—probably to give the neighborhood a more unobstructed view of heaven.”

COMPENSATING LEGISLATION

“Those stock gamblers, whose conspiracies had ruined thousands, were not mistaken in their expectation that the law would protect them against the risk of a riot. Children, gambling for peanuts, are promptly arrested. The advantages of magisterial virtue cannot be overrated.”

FOUR-HANDED FILIPINOS

“Apes, almost as dissolute as sparrows, are exhibited in the parks of several American cities.... In the Philippine Islands a large number of these animals has recently been captured and caged—probably to limit their opportunity for worldly enjoyments.”

NEMESIS

“But we learned that the steam launch scudding along the west shore of the bay was a smuggler, and its pursuer a Government revenue tug. For weeks—perhaps for months—the contrabandists, of Canadian origin, had been selling meat at frivolous rates, and the avengers of sacrilege were now at their heels.”

JUVENILE DEPRAVITY

“From the window of one of these air-trains, a package came clattering down on the sidewalk, scattering a shower of biscuits and hard-boiled eggs which were seized and devoured by the children of poverty before the guardians of law and order could interfere. One youngster of five or six years captured a piece of fruit cake and took to his heels with whoops of unregenerate glee, whereupon two older boys raced him down and deprived him of his prize—probably to restrain his penchant for dietetic luxuries.”

MENDICANCY LIMITED

“Two constables dragged along a shrieking girl, who every now and then resisted progress by throwing herself on the ground.... Of what crime

could a child of her age possibly have been guilty? ... It appeared that she had been begging in support of an invalid mother, thus tempting taxpaying citizens to an expenditure of coin that should have been reserved for other purposes....

“Begging, however, is not wholly prohibited. Politicians often solicit millions in behalf of candidates who pledge themselves to protect the associations of wealth and suppress the holiday amusements of the poor.”

WINGED REFUGEES

“... saw nothing but a few crows and two kingfishers, flitting up and down the rocky banks of the brook. Experience had made them unapproachably shy, perhaps much to the regret of the neighboring saints, since they had probably been guilty of fishing on Sunday.”

A FASTING-CURE VICTORY

“Some forty families had been evicted to make room for a trainload of meek immigrants, who agreed to subsist on potatoes and the promise of a better hereafter.”

SKY LADDERS

“Seclusion in the upper cavities of these brick mountains must entail incredible hardships, ... but the landlords seem to hold that all these discomforts are compensated by the advantage of dwelling nearer heaven.”

A CHEERING PROSPECT

“In Oriental cities, with rare exceptions, everything suggesting the thought of death is hidden out of view; no sculptor would venture to exhibit an assortment of gravestones; but people to whom life brings nothing but a roundabout of toil and tedium may find solace in contemplating mementoes of the hour that will witness the end of their doom.”

The philanthropic traveler left his native land with ideals presaging a universal brotherhood of nations—perhaps under the leadership of our great Republic—but admits that, under present circumstances, our popular policy of expansion is, at best, only an attempt to widen the ring-walls of our slave-pen, before its gates are closed by a syndicate of bloodsuckers and boodle legislators.

The King's Image

BY WALTER E. GROGAN

*Author of "The Dregs of Wrath," "The King's Sceptre," "The Curse of the
Fultons," etc.*

I KNEW him at once. He was grayer, he was grimmer, he was more than ever like a man of granite, hard and immobile, but I knew him. The sight of him gravely unfolding his table napkin and covering his thin knees at luncheon in the little hotel set my thoughts back over ten years. I was then a lad of sixteen. I had seen him constantly in the queer medieval streets of Tsalburg, the little capital of Ertaria in the Balkans. Gray and grim, he was then the General Commandant of the army, the iron right hand of the Wolf King Peter XII. He was grayer and grimmer now, but undoubtedly the man. For a while I racked my memory for his name. It came suddenly. General Hartzel! Undoubtedly the man.

The *Times* supplied me with many conjectures. The senile old King was dead; his heir, the Prince Paul, had lived his own life in Europe incognito, and the heir was not forthcoming. Rumor said he was in Paris.

For three days I watched the General. He knew no one at the hotel, he spoke to no one, but I saw him more than once in earnest conversation with a young man about my own age, about my own height, about my own color, but—for the sake of my own vanity—alike in no other particular. This was—the information was easily come by—the Comte de Troisétouilles, a young Frenchman of position, now considerably taken with the beautiful singer, Mlle. Aimée Bergeaux. That was the story noised about, and in proof thereof her little steam yacht rode in the harbor, he was constantly with her, and a rumor was essential to the place. A companion, large, fat, unmistakably German and delightfully placid, cast a broad, complacent smile of propriety over the romance.

My General, I noted, snarled at the soprano for whose smiles princes competed. He was thorough, was my General, dear man of stone. Venus

herself would have been baffled by him. But he spoke earnestly and vehemently to the Count, he who was so taciturn.

On the evening of the third day I met my General on the south cliff by the absurd little fort. There was a streak of smoke on the horizon. He was shaking a fist at it, a violent, tempestuous fist.

I have been a prey to sudden impulses all my life. I had maintained an Englishman's reserve for three days. I broke it suddenly on the cliff. I accosted the General in Ertarian.

"You are disturbed, General Hartzel," I said.

He wheeled round surprisingly. His astonishment grew when he saw me, the silent companion of his luncheons.

"Monsieur speaks Ertarian," he said.

"A little," I answered modestly, yet with inward elation. To surprise a man of granite! Elation was surely pardonable.

"As a native," he continued. I bowed. "It is wonderful! Are you Ertarian?"

"No," I replied.

"No," he echoed with regret. "You are English. I saw you smoke a pipe. But you know my real name? I am Captain Schneidlitz here."

I laughed. "Pardon me, General, I have been amusing myself with your surprise. My father was British Minister at Tsalburg for many years. As a boy I spent my holidays there. Hence my accent."

"Your name is—?" he demanded.

"Havensea," I answered.

"Then your father is ——?"

"Exactly. I am now the head of my family. It is a large family, General. I have tens of aunts; my cousins are limitless. I pass an uneasy life trying to evade them and my unnecessary title. It is difficult—please respect my incognito as I respect yours, Captain Schneidlitz."

"You dislike your title?" he asked eagerly.

“The coronet has given me a headache of the soul. You don’t know how terrible a British title is. It is a mere lever for opening bazaars, a free ticket to everybody’s dinners.”

“You object to yourself?” His question, the question of the man of granite, was tremulous with excitement.

“Pardon me,” I answered; “not to myself—but to the impossibility of being myself. I am an English peer. I have not even the picturesqueness of poverty. You do not understand. In Ertaria they do not hold flower shows. I do not object to myself—I object to Lord Havensea.”

The General looked round anxiously. A wide-breeched soldier was walking toward the fort; a white-stringed bonnet was going home. Seaward the streak of smoke blackened the eye of the sun. The sight of that caused the man of granite to swear solemnly in Ertarian—a language admitting a wide choice of expression to a man oppressed with a sense of wrong.

“I will reply to your first question,” he said. He spoke in a low voice. He was under some strong emotion. “I am disturbed. That little streak of smoke dissolving out there represents my hopes dissipated, evaporated. My hopes are the hopes of Ertaria. We are a small country, but we are proud.”

“A country’s pride invariably compensates for lack of acres.”

“It is a jest to you,” he said sadly. I had expected him to be angry at my flippant remark. The sadness of his voice slipped past my guard. Here at last I had found a man who could feel.

“Your pardon, General,” I said more soberly than I had previously spoken. “The pride of Ertaria I know rests upon an unstained national honor.”

“If you believed that!” he cried.

“I do,” I answered stoutly. “Frankly, you are all absurd, but it is a glorious absurdity. Small, hemmed in by enemies, you have kept an independence, noble and untainted, for seven hundred years.”

“You believe it! Why not?” he cried excitedly. “Your father, the dear Lord Havensea, loved us. He was our friend. His representations at St. James’s saved us once. You inherited his love. We are in peril now.”

“Ah,” said I, “the lost heir.”

“He is out there under that streak of smoke.”

“He was the Comte de Troisétouilles?”

“Yes. The French singer is Russian. You understand?”

“Kidnapped! Scratch a French soprano and you will find a Russian. My General!” I was indeed sorry for him. He was honest, was this man of granite. He loved his country. And Prince Paul—“Royal robes should cover men, not flattered fools.”

“You understand. The great game is lost. I love Ertaria as I love nothing else. I would pour out my blood willingly for her. That would be nothing. I have been the guardian of her honor. That was everything. And now the hand of the greedy Bear is stretched out for it. And it is lost. At least five minutes ago I said it was lost. But now you—you can save it—the great game, the honor of Ertaria, the independence, the life-blood!”

“I! My dear General, I am a tired English peer recovering from a surfeit of municipal and parochial addresses.”

“You—only you. You are an Englishman, you speak Ertarian, you resemble the Prince Paul somewhat; he is unknown in Ertaria. You are out of love with your own identity; you long for something else, for some other life——”

“My dear General, speak out the whole of your madness.”

“Come, Lord Havensea, and hold the throne!”

I was staggered, astounded. For a moment I watched the smoke becoming thinner and thinner. Suddenly it seemed to pop out. It was of course a trick of the imagination.

“You are an Englishman—therefore you have courage.”

It was transcendent flattery. A throne!

“It is madness, my General,” I said. His eyes sparkled.

“It is the madness we love,” he said softly. “And it is for the country, my country. The poor fool will come back. Don’t let it be too late. Keep the

throne for him—and for us, for the Ertarian children unborn that they be not born the slaves of the Muscovite. You have read the history of Poland?”

“It is folly, but—” I commenced.

“The train starts tonight, my Prince, at eleven. The West Station. I will make all things ready.” The General looked out at the winking sun. The real Prince was kidnapped, but in his dire need Fate had tossed him a pseudo one.

It was the wildest of folly, of course, but once seriously embarked upon, it was remarkable how smoothly it ran. I returned to the hotel, paid my bill, sent my valet home to England, and met the General at the station. I entered the first-class compartment a private English gentleman—even my poor little title left in the custody of my lawyers in Ely Place—and across the Ertarian frontier I stepped out Paul V.

We alighted at a small station. There were three or four anxious-looking men on its slender platform. They were dressed in the frock coat of ceremony. One man only was conspicuous in a gorgeous uniform. It reminded me of my own Havensea livery. I was preparing to be royally gracious to him when Hartzel whispered he was the station-master. It was a brilliant morning; the sun lay on the white caps of the mountain pass and glistened; big butterflies painted the field; the air was clear, rarified. I was in excellent spirits.

The General watched the absurd little engine puff its way onward. Then he turned to me, took off his hat, knelt and kissed my hand. The spectacle of my man of granite kneeling, his honest, ugly face figured by emotion, struck me strangely.

“To my God, my Country and my King are my life and my honor dedicated,” he said, the quaint old formula of allegiance in Ertaria. The frock coats went through the same performance. It lacked the earnestness of the General and had a note of anxiety. They looked as though they were expecting a troop of Cossacks over the edge of the pass and were nervous. But the ceremony marked a step in the game. Until then I was in a transition state. I was no longer Lord Havensea, but I had not yet become King until I had stepped out of my uncomfortable compartment into a kingdom.

“Gentlemen,” I said in their own picturesque tongue, “you are the first of my subjects to welcome me. Not as King will I speak to you now, but as a fellow-worker, for my heart also is dedicated to God and Ertaria.”

That struck some spark into their dull faces.

“Seven centuries of liberty are in our hands,” said I. “The dead fathers of Ertaria have given us this heritage. It is that which I come to preserve—in peace if God wills, but if not, the history of Ertaria tells us how to act.”

Bombast if you will, but it brought life, valor, strength into their faces.

As for the man of granite, his eyes flashed. Ten minutes more and we were galloping up the white ribbon of a road toward Tsalburg, embarked upon as mad a mission as was ever enacted in this Balkan basin of mad missions. Our frock-coated friends remained behind. I kissed each on his scrubby cheek, and told him to guard our frontier. They swore to this with tears in their eyes.

“Well,” said I, “we have played the first act of the farce.”

“You have done well,” my mentor replied. “But this is no farce. It is a perilous game to play.”

“You did not tell me so before, General. A spice of danger gives it a zest.”

“You speak like a soldier.”

“I was a soldier—that was before I became a peer and was a personage. Shall I pass muster? Will they perceive I am no King? Will the people be with me?”

“Keep a brave heart and that will carry you through. The Russian Minister, of course, will know you are an impostor.”

“The deuce he will!”

“You must bluff him.”

“And four weeks ago I received the freedom of an English town from a successful grocer! Hartzel, my blood races! Here are romance, adventure! I am your debtor for life!”

“That debt may be liquidated at any moment,” he said grimly. For a minute his old face softened, and then it was as hard as ever. I knew that some touch of remorse had stabbed him. The game was nothing to me; he was staking my life for a cause in which I had no concern. Then came the thought of his country. No life mattered then.

That night we lay in a small town, and I was shown secretly to a few of the town’s chief men; and the next night we slept in the General’s house at Tsalburg. The rumor of my coming circulated furiously. At eleven o’clock, when I was preparing to rest, tired with my long journey, a mob assembled in the square outside and sang the national anthem for an hour or so. Hartzel harangued them from the balcony. I was fatigued. I could not be disturbed, but on the morrow their King would meet them. That was the purport of his speech. The national anthem broke out again, and presently, with the poetical inspiration of the nation, they sang a legendary serenade.

Hartzel came to my room and sat on the edge of my bed. I was nearly dead with fatigue, but he was inexorable.

“Tomorrow will see the crucial test of our scheme, so you must listen. There are two factions in Ertaria. In the late King’s reign I kept the Tertourgkis in abeyance.”

“The Tertourgkis!” I cried, memory stirring me. “They had some feud with the reigning family and—and there was a daughter.”

“You remember?” he said. “Prince Tertourgki is an old man. His wealth and his lands go to this daughter, his only child. She is very beautiful.”

“She was a beautiful child, dark and serene as night.”

“The Prince has claims to the throne. He is the descendant of the Tertourgkis, who reigned in the fifteenth century. They were despots, and a revolution set the Borros on the throne. The Prince has never abrogated his claim. There is a second cousin——”

“My General, the rest is easy to decipher. The second cousin has aspirations for the hand of the Princess Marie; he is the puppet of the Russians; the Tertourgkis’ influence is great; we fear the loyalty of the army; we must deal quickly with the second cousin.”

“You are quick at guessing,” the General answered slowly. “You know _____”

“On my word, nothing—nothing but the name of the Princess Marie. When the world was younger, General, there was a large garden and a young schoolboy—he thought himself a man—and a little child and flowers. Together they made a happy time. The sun was always shining. The little child worshiped the big schoolboy—and he graciously permitted it.”

“Your father’s house! Ah, well, you know something, but not all. As the King lay dying I—I arranged a marriage between the Princess Marie and the absent Paul.”

I sat up in bed.

“The Prince Paul!” I exclaimed.

“The Prince Paul,” he assented stolidly. “He consented. The Prince looked kindly upon it; the Princess would not give a definite answer. When the Prince arrived, she said, she would give him her answer personally.”

“This is your arrangement?” I asked.

“It was a diplomatic stroke,” he said.

“You took an unwarrantable liberty,” I cried warmly. “Why was I not told of this before?”

“Because you would not have come.”

“And now?”

“Now it is different. You are caught in the toils.”

“It is an unwarrantable liberty! You have engaged me matrimonially without any reference to my feelings.”

“I have engaged Prince Paul.”

“Who am I?”

“Who you are for the present. My dear Havensea, you do not consider my position.”

“You have had precious little consideration for mine!”

“It is not yours. You are an actor playing a role. In a short while you will make a graceful bow and exit.”

“I am not at all sure that it will be graceful.”

“As you will. That does not matter at all. You play a part for a little while. They will not dare to keep the real Prince a prisoner for long.”

“I am to cheat this girl?”

“What does it matter? It is a royal alliance—there are no considerations but that of policy. I do not propose to marry you to her.”

“Thanks. That is considerate.”

“My dear Havensea, you are perturbed. The Princess is to marry the Crown. She is piqued at the long delay of the Prince. There is no question of sentiment.”

“Suppose there were?”

He looked at me curiously for a moment.

“That is a proposition I will not entertain,” he answered.

“I will not do it!” I cried angrily.

“You will,” he replied quietly. “You have already impersonated the King. Have you considered the consequences? I say nothing about you. You are a brave man. But you have already compromised many honest men—and one dishonest old man. We are only half civilized. That is part of our charm—at least to you. The people would be very angry. You would be killed!”

“By Jove, you are a pleasant philosopher!”

“To a brave man that may mean little—life is a mere stake. But the honest men and the dishonest old man would die also. You could not have my death upon your conscience!”

“You deserve it, my General; you deserve it, on my honor!”

“Possibly.” He waved it aside resolutely as a matter of small consequence. “There is also Ertaria. Shall we grant that the Princess may not be happy? Then there is one woman unhappy and a nation free.

Havensea, you do not understand the stake for which we play. It is not a crown, nor a woman's heart, but a nation's freedom. The heel of Russia bruises the very souls of men. Russia knouts a man's soul. Where is Poland today? It is a great game to save a nation from that curse."

The man of granite spoke soberly. There was no impassioned appeal. He spoke of facts. As a boy I knew something of this terror of Russia. This rugged, hard man was a hero. He played his life not for advancement, but for the good of his country. My heart warmed to him. And, as he said, there was also Ertaria.

"I shall go through with it, General," I said at length. Our hands closed on that; in the winking light of a candle I saw his eyes glitter. He did not speak for a full minute. Then he muttered in a low voice, "If you were only a Borro!"

"It would have been fatiguing," I said. "I should have quarreled with you. There is not room on the throne for two men."

He laughed abruptly at that.

The next morning General Hartzel aroused me at an unearthly hour. He made me dress in a steel-corseleted uniform. It was exceedingly gorgeous and stiff with gold lace.

"It is the uniform of the Colonel of the Royal Guards," he told me.

"Promotion is rapid in Ertaria," I said. "I was an unconsidered subaltern in our Blues."

"The army is reviewed today on the Plain of Liberty," he said, "by Prince Tertourgi. He is regent during your absence."

"And the second cousin?"

"Is his aide-de-camp—Prince Otho. The Russian Minister will be there."

"And his august name?" I demanded.

"Baron Ivaniski."

"My dear General!" I cried. "There is a saying, 'The luck of the Havenseas.' The luck holds good. The Russian Bear shall dance, I promise

you!”

“What does Your Majesty mean?”

“His Majesty knows a story, General, a pretty, ornate and most scandalous story. Ivaniski was an attaché at Berlin when my uncle was Ambassador. It will be the only good turn Uncle John has ever done me.”

For two mortal hours after a particularly disappointing breakfast—the General betrayed but an indifferent regard to cuisine—I was gracious to the peculiarly uninteresting big men of Tsalburg. I signed innumerable papers, and at a hint from the General kissed those worthy of the honor. It afforded them far more satisfaction than it did me.

At noon I mounted a black charger, and, accompanied only by the General, set out for the Plain of Liberty. Hartzel had misled—to use a euphemism—the populace as to my movements, so that it was merely at odd whiles that I was called upon to acknowledge shouts of greeting.

The Plain of Liberty is a tableland upon the hill that rises above the town. From it Tsalburg can be seen spread out in picturesque confusion. It is a big plain, and its name is derived from the presence in its centre of a huge column surmounted by a figure of Liberty. On the base of this column are inscribed the names of the more or less traditional heroes who are popularly supposed to have engineered the independence of the country. This column has become a subject of sentimental worship with the nation.

On this plain were assembled the populace of Tsalburg to witness the review of the major part of the troops of the country, some fifteen thousand. Prince Tertourgki had selected a place near the column as a saluting base, and the troops, when we arrived, were drawn up in review order. The column stood, as it were, a huge, gray sentinel between the Prince and the troops.

“Some of the officers I could trust expect you!” the General cried. “Spur on to the troops. Now is our crisis. The Baron has tampered with some of the regiments, but to what extent I cannot say. If the troops receive you Ertaria is saved.”

“Your true gambler risks all on a single throw!” I shouted, clapping spurs into my charger. It was a glorious gallop. My blood raced in my veins. My horse was maddened by the touch of the spur. I thundered on down the

level turf. I saw the stir of surprise in the populace. I caught a waver of ranks as the troops craned forward to see me come. Then a flash of inspiration came to me. As I raced by the column I suddenly drew rein, flinging my horse back on his haunches. For a moment he lay crouched backward, and in that moment I had raised my sword in salute of the column. Then the charger leaped forward, and I rode to the front of the troops.

Such a shout greeted me as I have never heard before. It roared about my ears like thunder. "Long live the King!" they cried, and the populace took up the words, "Long live the King!"

I raised my hand and there was silence.

"Comrades," I shouted, "we all alike serve under Liberty. The statue of our dead heroes watches over King and people." Again the air was rent.

I turned. General Hartzel, following me, had just cantered up. On his grim, granite face was a smile like wintry sunshine.

"General Hartzel," I cried, "you will march the troops past in review order!" Then I cantered over to the saluting base. I was King!

An old man in uniform was fidgeting about on a gray horse. At his side was a young officer, dark, almost swarthy, whispering eagerly. In a landau at the back sat a frock-coated gentleman with an order in his buttonhole. He had the broadness between the eyes of the Tartar. With him was the most beautiful woman I have ever seen. Out of her big black eyes shone the light of admiration. In a mist I saw again the small child in the garden, her wondering worship and the big English schoolboy.

"Prince," I cried, "will you do me the honor of taking the salute?" I spoke to him so as to force an answer. The unexpected compliment flustered him.

"Your Majesty," he faltered, "my usefulness is over."

"No," I replied, engineering my restive charger to the discomfiture of the second cousin, "we will work together for Ertaria, Prince." I held out my hand, and in a moment the white-haired old fellow was off his horse and kneeling, kissing my hand. How the populace roared aloud their pleasure! The bands crashed out the national anthem, ladies fluttered their scarfs, a

whole forest of hats waved in the air. I was King, and apparently popular. It was an exhilarating feeling. I thought of the real Paul shut up in a satinwood cabin on board a kicking little steam yacht, and smiled.

The Prince and I took the salute; he reined in to a respectful distance. Afterward I was conducted to the landau. The Prince stayed a moment to speak to the second cousin. I rode up alone and dismounted.

“Have you no welcome for the King, Princess Marie?” I asked.

“You know me? My father told you?” Her voice was serene, low, like silver bells on a summer evening.

“No. The Prince has said nothing. But I knew that the Princess Marie was the most beautiful woman in Ertaria.” She smiled at me. I met her smiling eyes. It was then I regretted that I was merely playing a part. The small child had grown into a wondrously beautiful woman. I know that from the moment my eyes met hers in that long look I loved her. Hers were eloquent also, so eloquent that she veiled them quickly with long, thick, black, curling lashes, and the rich color mounted to her cheek.

“But Your Majesty,” the Russian’s lips curled in a sneer, “has seen the Princess’s photograph.”

“One has no conception of sunlight from observation of the moon, Baron,” I answered.

“And you are really the King, Paul V.” His voice was challenging, his eyes were gleaming with anger. The elaborate and desperate project of kidnapping the Prince had failed at the very moment of its success. In his pocket, I thought, were the particulars of Paul’s involuntary voyage, and yet here was a king to thwart all his plans.

“And you are really the Baron Ivaniski—of Berlin?” He grew white to the lips at the concealed threat in my voice.

“Of Berlin?” he faltered. “I have no connection with Berlin.”

“Your memory is short, Baron. In November of ’84 you were surely in Berlin. I believe, if I tried, I could persuade you of that. Lord Derwenthurst was a friend of mine.”

“Ah, yes, I had forgotten,” he muttered. I could have laughed at him, he had become so craven and so cringing. Uncle John had told me of the Baron and his gambling debts, and his attempt to sell a Russian secret to us. Uncle John was too honest for a diplomat. He refused, and extracted from the young attaché a signed declaration of his treason. The alternative was that of forwarding the proposal to the Russian Ambassador.

Riding to the palace with my granite General, he expressed approval of my day’s work.

“Ah, General,” said I, “the public enthusiasm is stimulating. Not all the school children of my native town, bribed by oranges and buns, can shout like your honest people.”

“And the Princess?” he asked anxiously.

“And the Princess is divine.”

A week passed in a whirl of popular excitement. No one guessed; the Russian dared not speak openly. In any case I hardly think Russia would have avowed her kidnapping of the Prince. As it was, the Baron had too great a fear of the document he believed I held. On the second day the Princess gave me her answer. We were betrothed. Public joy expressed itself in gala nights at the Opera, in fireworks, in torchlight processions. And for me all the zest of the game I was playing departed. As I listened to Marie, as I learned from her own lips that she loved me, I realized bitterly the part I was playing. Not all the General’s sophistries could disguise it from me. I was cheating her. And her trust was perfect. I writhed under her praise, I was tortured by the possession of her love, a possession which, come by honestly, I would have treasured beyond all else.

On the eighth day, the evening of the gala ball, my granite General came to my private chamber.

“The *Coquette* entered Trieste last night,” he said harshly. I started. *Coquette* was the name of the soprano’s yacht.

“Well?” I replied. We stared at each other. General Hartzel had been growing brusque and ill-humored with me. I think he guessed at the romance.

“The King will be here tomorrow night.”

“Suppose I answer that by saying the King is here?”

“You will not do that. Your honor is engaged.”

“You have been teaching me to do without honor.”

“I must tell her tonight.”

I rose. “You will not. I will tell her.”

“You will seek to dissuade her!”

“I will tell her. It is my right, Hartzel.”

“You promise——?”

“I promise nothing. Man, do you think I will slink out of this like a whipped cur? I have cheated. I will confess.”

After the first ceremonial reception I slipped into the dark garden. My brain was hot. I wanted to feel the soft coolness of the night. In an avenue I stumbled upon the Prince Otho and the Russian Baron. They barred my way.

“Impostor!” cried the Prince. The news had leaked out. The Russian knew and had told his friend.

I took off my glove and struck him in the face.

“After the fourth waltz,” I said. “There is a moon. In the walled garden. And, gentlemen, whatever you may know, keep silence. Berlin will speak if you do.”

I sought Hartzel. He was not difficult to find. He was dogging my steps like a spy. I told him of my meeting in the garden, and asked him to be my second.

“He is a good swordsman,” he said. I think he was sorry.

“Then I sincerely hope the real Paul won’t miss his train. To have the throne vacant again would be annoying.”

“And you?” he asked.

“My dear General,” I said, with a smile, “when a man is giving up a pearl of infinite value he does not care much for the tarnished gold of his own life.”

The fourth waltz I danced with the Princess Marie.

“I wish to speak to you soberly, seriously, sedately, Marie. May I? Come to the little conservatory and sit out the thirteenth.”

“It is an unlucky number.”

“No number is unlucky that gives me your presence,” I said lightly.

In the moonlight we stripped to our shirts. It was nearly as light as day.

“This is a mistake,” my granite General said. He was thinking of the risk to his scheme and the ease with which both men could have been arrested.

“No, General. This may be reparation,” I answered.

Prince Otho was an excellent swordsman. That I knew at once. His wrist was supple and strong as steel. We engaged and fought slowly, cautiously. He had a dangerous, wicked riposte which I guarded twice, more by luck than by skill. Undoubtedly he was my master. I smiled grimly at this. I was sorry, because I wished to speak to Marie. And yet, perhaps, this was a better way. Ah, a scratch! I had turned too late, and the sting in my shoulder told me I was hit.

“He is hit! It is enough!” cried General Hartzel.

“A mere scratch!” I answered hotly, and we engaged again. It was evident the Prince was waiting for an opening to kill. Two opportunities for serious wounds he passed. Then suddenly he made a quick lunge over my guard. I stepped back quickly; he could not recover his guard; he fell back. Hartzel leaned over him.

“That ends it,” he said complacently. “Four weeks, at least, in bed. This is an accident, Baron.”

The thirteenth dance. The lights were very low. There was the heavy, thick scent of gardenias. The Chinese lanterns swayed curiously. When I pulled myself together they were still. The wound pricked unpleasantly.

Marie came.

“This is most unorthodox, Your Majesty,” she said mockingly. “Everyone is asking for you.”

“Will you sit down, dear?” I spoke very slowly. In truth the pain in my arm was like a red-hot steel needle. She sobered quickly. I could not see very well. I think she went white. She sat down meekly. I could see her big eyes, only her eyes.

“Paul!” she breathed.

“I am not Paul,” I said. “I am not King. I am only the King’s image, a poor counterfeit.”

“Paul!” she said again. Then she checked herself.

“He will be here tomorrow. My period of usefulness will be over. He—he was kidnapped. I came—because I was bored, because there was some chance of adventure, because an old man pleaded for his country. Now it is all over—the King comes, the King’s image is wanted no longer.”

“Paul, I want you,” she said in a low voice.

“I am not Paul. And—and, Marie, there is duty! A nation may groan under the tyranny of Russia unless—You understand, Marie. Our lives cannot always be ministers to our desires. We—we are caught in the toils; we can only obey, we can only do our duty, trusting that somehow it will be found good.”

“For us?” she asked.

“For your people.”

“You say that that is my duty, Paul?”

“Yes.”

“And you love me?”

“And I love you,” I answered. The lanterns were swinging madly now. Over their light was a new mist growing, growing. I bit my lip—but the throb of the wound was agony.

“I believe you, dear,” she said simply. “It—it seems hard that—that so much should rest upon one poor girl. I think I know what—you mean. The people shall be happy though the Queen’s heart break.” She rose and came

toward me. She caught me by my wounded shoulder and kissed me. And with all the agony of it that kiss I hold in my heart always as a dear memory.

When she went the lanterns whirled, the mist shut down on my eyes, and I fell. General Hartzel found me.

The next morning early, recovered of my swoon, I rode out of Tsalburg. General Hartzel rode with me a little way.

“If you had only been the real King,” he said, with more feeling than I thought possible, “and not——”

“And not the King’s image,” I filled in. “It is a pity when the clay image has a living heart.”

The Story of a Suppressed Populist Newspaper

BY THOMAS H. TIBBLES

People's Party Candidate for Vice-President

AT one time there were fifteen hundred weekly papers advocating the principles of the Omaha platform. Some of them had large plants, some only a few cases of type and a Washington press, but all were actuated by one purpose—to make conditions easier for those who toiled on farms, in shops, factories, mines and mills. Among those still fighting up to the first of April of this year was the *Nebraska Independent*. Many such papers were crushed by various devices, chief among which was that the great advertisers of the land, all being allied with Wall Street, refused to give them any business. Numerous instances could be cited where Populist papers were refused advertisements given to plutocratic papers not having one-tenth the circulation, and paid for at a higher rate than the proprietors of the Populist papers would have taken. In the files of the *Nebraska Independent* may be found scores of letters from advertising agents, who had been solicited for business, saying: “If you will make your paper an exclusively agricultural journal we will be glad to give you a good line of business, but we cannot patronize it as long as it advocates Populism.” Every reform editor has had the same experience.

Thirteen years ago the agricultural papers everywhere were publishing articles defending Populist principles. Then all at once such articles were seen in their pages no more, and immediately the papers were flooded with high-priced advertising. The religious press was caught in the same trap. It is strange that the devout readers of those papers never once had their suspicions aroused when they saw so many display advertisements of trusts, banks and promotion schemes in their modest little religious journals. Notwithstanding all such schemes, the *Nebraska Independent* lived and its circulation gradually extended into every state and territory. It became evident that to get rid of it other tactics would have to be employed. To destroy the paper was not the objective. It was to destroy the People's Party.

With the *Independent* in hostile hands the political fortifications built up by it in Nebraska and other states would be deserted and the Bryan, Belmont, Sheehan and Tom Taggart Democratic Party could walk in and take possession.

The main battle was fought in the Populist state convention August 10, 1904. The proposition to force a fusion with the Democrats under the lead of the most disreputable end of Wall Street, fresh from its victory in St. Louis, on the face of it was most absurd. But the doing of absurd things never ruffles the placid countenance of Mr. Bryan. The idea that there could be any real opposition to his imperial will in Nebraska, aside from the Republican Party, never seemed to enter his mind. Heretofore when Mr. Bryan entered a Democratic or Populist convention, the Fusion Populists and Democrats immediately bowed and worshiped. The only thing that convention had to do was to find out what Mr. Bryan wished and then proceed to do it with all possible haste. It became evident that this convention would have to be handled differently. Mr. Bryan all the winter, spring and summer had been denouncing Judge Parker as a “dishonest candidate, running on a dishonest platform,” and then he had come home from St. Louis, sat down at his desk and the first words that he wrote were: “I shall vote for Parker and Davis.” The Populists remembered how for eight years he had been coming to their conventions, and in his sweet and winning way telling them how noble they were to put principle above party and vote for men of another party if they thought they could advance reform by so doing. Many of them, who had always supported Mr. Bryan since he first appeared on the battlefields of politics, thought that the time had come when he should practice what he preached. Mr. Bryan realized that there was trouble ahead, but it was thought if the *Nebraska Independent* would support the Bryan plan that a fusion legislature could be elected that would send Mr. Bryan to the United States Senate.

The editor of the *Independent* was obstreperous. He had had enough of fusion with a party half of which was more disreputably plutocratic than the Republican Party, and whose “irrevocable” rules were so rigid that they required a man, upon a vote of a convention, to come out boldly before the people and advocate a policy he had denounced by pen and voice for eight years. All sorts of schemes were devised to bring this obstreperous editor into subjection to the imperial will of Mr. Bryan. The first was to send all

the leading men of the state, from the Chief Justice down, to use persuasion. That failed. Then Mr. Bryan's personal daily organ in the state tried a new deal. It poured out on Mr. Tibbles the most fulsome flattery day after day. It said if he would only say "fusion" every Populist in the state would obey his command. When all that failed Mr. Bryan came himself. The proposition that he made was that a fusion electoral ticket be put in the field composed of four Populists and four Democrats, Mr. Bryan saying that, "in the event of their election, each party could count the full vote as its own." The proposition was instantly rejected. Others followed. Mr. Bryan came to the *Independent* editorial-room four different times, using all his eloquence and persuasive powers to get the editor to consent to and advocate a fusion with a party that had nominated Parker, and whose campaign was put into the hands of the most disreputable gang that ever sought Wall Street favor.

Mr. Bryan gave orders that everything visible, clear to the political horizon, and other things invisible lying behind the floating clouds, should be offered to the Populist convention providing that the Populists would fuse. The battle was fought out on the convention floor. Many Democrats had secured seats as delegates. One Democrat came over from his own convention and answered to the call of Thurston County in the Populist convention which had no delegates present, and voted the fifteen votes that county was entitled to every time for fusion. Out of the hell-broth brewed in that all-night session there floated upon the fusion scum Bryan, Belmont, Sheehan, Tom Taggart and, remember this last name, George W. Berge.

Nearly the whole state ticket was given to the Populists—only three unimportant offices being conceded to the Democrats, and Berge—George Washington Berge—captured the prize infamy, the fusion nomination for Governor. Bryan would allow no other name to be mentioned in the Democratic convention, although there were two or three Democrats there who had spent time and much money during the previous eight years fighting Bryan's battles for him, and who had expressed a desire to receive a complimentary vote for that office. When Bryan speaks the *Nebraska Democrat* turns pale.

The *Independent* was still a thorn in the side of these fusionists. The editor openly declared that he never would vote for or support a Belmont-Bryan-Parker Democrat. Then it was that fusion itch for office and Bryan diplomacy joined forces to destroy the *Independent*. The plutocratic

Republican attacks upon it had been of no avail, and week after week it had proclaimed the doctrines of the People's Party for ten years. In an open fight against awful odds it had fought battle after battle, sometimes victorious and sometimes defeated, but it fought on. It took fusion treason, it took the work of men who constantly proclaimed themselves Populists, who insisted upon attending Populist conventions while their sole aim was to destroy the People's Party, to do what all the hosts of plutocracy had failed to do.

As soon as the vote for fusion had been announced in the convention as prevailing, more than half the delegates present—whole counties had been voted for fusion when only one or two delegates were in the city—rose and left. The next morning they hired a hall and discussed the proposition of putting a straight Populist ticket in the field, but when it was remembered that the fusionists had the legal organization and the ticket would have to go on the ballot under some other name than People's Party the project was abandoned. The result was that 20,000 Populists voted the Republican ticket, 30,000 stayed at home and refused to vote, and a little over 20,000 voted the Populist national ticket. The Senate of the Nebraska Legislature was solidly Republican; the House had only nine fusionists in it. Mr. Bryan saw to it that they all cast their votes for a straight Democrat for United States Senator. All that was necessary to get the fusionists to do that, both those who called themselves Democrats and those who called themselves Populists, was for them to imagine that they heard a far-off rumble that sounded like the voice of Bryan saying: "Vote for a Democrat."

When the conventions were over and the campaign committees appointed, the fusionists found that it was a difficult thing to make a campaign in Nebraska. Something must be done to get the *Independent* to fight the battle for them, but the *Independent* still declared that it would not support a Parker Democrat. Then, sad to relate, the editor of the *Independent* got taken in himself.

The chairman of the Democratic State Committee, a brother-in-law to Bryan, came to Mr. Tibbles declaring that he represented Mr. Bryan and was speaking in Bryan's name, and made the following proposition:

If Mr. Tibbles would spend most of his time out of the state during the campaign, and let the *Independent* support the fusion ticket, all of whose

nominees except three were Populists, Mr. Bryan on his part would agree to go to Arizona or Colorado and get sick. He would continue to keep sick until the close of the campaign, so sick that he would not be able to make any political speeches at all. An exception was made in regard to Indiana. It was said that Mr. Bryan had promised to make three speeches in Indiana in support of his old personal friend who was running for Governor in that state, but it was further stipulated that these three speeches should not be political speeches, but repetitions of Mr. Bryan's lecture on "Ideals."

Mr. Bryan went to Arizona and sent home a letter saying that he was worse and would not be able to deliver any political speeches during the campaign. That letter was printed in the Lincoln daily papers and was shown to Mr. Tibbles as proof that Mr. Bryan was keeping his contract.

The chairman of the Democratic State Committee went to New York, saw Parker, Sheehan, Belmont, Tom Taggart and the rest of the band of financial and political pirates. He came home with money for campaign expenses. Then Mr. Bryan hired a special train and started out speech-making in Nebraska and in other states. The surprising rapidity with which his lung healed has never been equaled in all the history of medicine. But when the votes were counted it was learned that wherever Mr. Bryan spoke, whether from the rear end of his car, on a platform by the railway side, or in theatre or hall, a tidal wave of Republican votes followed him, although he pleaded with his Democratic hearers to be "regular." Hundreds of thousands of Democrats listened to this man, who for eight years had been denouncing Wall Street and all its ways, and was now consorting with the most disreputable part of Wall Street, urging them to vote to keep it in power. Humiliated, sad at heart, their idol carrying the banner of the enemy, in the enemy's ranks, they turned their backs in scorn upon Mr. Bryan, went to the polls and voted the Republican ticket. If they were to have Wall Street and plutocracy, they wanted the old, genuine article, not "something just as good." The fusionists declared that wherever Watson or Tibbles spoke they made votes for Roosevelt. They did not make one Roosevelt vote where Bryan made a thousand.

Mr. Berge—George Washington Berge—received a large vote for Governor. That was because Mickey, the Republican, who was running for re-election, was cordially hated by the whole Republican Party. Thirty thousand Republicans voted for Berge, and then he was defeated. But Berge

is a fusionist. He wants office, and especially the office of Governor of Nebraska.

It seemed necessary, if Mr. Bryan was to prove his undying love for the Democratic Party, to convince all Eastern Democrats that he would forever prove “regular” no matter who was nominated or what the platform was, and it seemed to the fusionists, if they were to have any of the spoils of victory when the national Government was captured, that the People’s Party must be destroyed. It must never hold another state or national convention. They all agreed that the party had done a wonderful work for the nation, that its principles were being everywhere adopted, but it must be crucified, officially pronounced dead and buried, and the first step toward that object was the destruction of the *Nebraska Independent*.

Mr. Berge is a lawyer. He never has had a day’s experience in a newspaper office. He announced that he would start a paper in Lincoln in opposition to the *Independent*. Then a proposition was made to the proprietor of the *Independent* to sell out. A very large price was offered. When the proprietor faced these facts he began to get discouraged. He had grown up in Lincoln. He had associated with these fusionists for years. The fight which he saw in the near future with these men was an unpleasant thing to contemplate. The cost of running a great newspaper plant is large. When it was known that the home advertising would in part be lost, and also a large share of the job work, the moment the editor defied Bryan and the fusionists, the outlook was gloomy. To those whom the *Independent* had always fought in the city and state were to be added hundreds of others who had passed as friends. And the proprietor became discouraged.

It is somewhat discouraging to go to a convention ostensibly composed of men of your own party and see the most active members of it engaged in a scheme to destroy your party. These have been the conditions in every Populist convention in the state of Nebraska since 1890. The only thing that prevented the party from being destroyed sooner was the *Nebraska Independent*. The fusionists became more and more convinced of that fact, and the scheme was invented to publish a paper in opposition in the same city, which, while claiming to be Populistic, would work for the destruction of the party. Credit for the invention belongs to George Washington Berge. The hope was entertained that when the People’s Party was destroyed all

the Populists would go into the Democratic Party, and George Washington Berge would be Governor and W. J. Bryan United States Senator.

The proprietor of the *Independent* was bound in the contract transferring to George Washington Berge the title to the paper, not to engage in the business of publishing a reform paper for five years, but the fusionists found that it would be impossible to put any shackles on the editor. He intends to fight on. Just as all the world is beginning to accept Populist principles he does not propose to sheathe his sword and stand by, a passive spectator. The greatest battle of the age is to be fought. He “is going up against” that crowd again.

The columns of the *Independent* have been an open forum for any man who thought he had something that would benefit humanity. In the columns of the paper he could always voice his sentiments. Besides that, it has been a journal of economics, sociology, philosophy, ethics, finance, single tax, land, Government and all the decent news. Now it has gone into the hands of an ordinary Western lawyer who never read a standard work of authority on any one of these subjects. It is to be a personal organ after the fashion of the one that W. J. Bryan publishes in the same town. W. J. Bryan is the most accomplished orator of the day. He has personal acquaintances in every state and territory. Millions have met and shaken hands with him. George W. Berge has some acquaintances outside of Lancaster County, Nebraska, and besides that, Berge is a Populist engaged in destroying the Populist Party. These are his elements of success.

The Populists of the different states and territories who have been readers of the *Independent* will in the near future have a place to express their views and read discussions of the great problems that are pressing for solution. We will be heard. For years not a great daily would print a line in defense of the fundamental principles of Populism. Now magazines are making fortunes for their proprietors who have admitted some of these principles to their pages. Some of these magazines have a greater circulation than was ever known before anywhere in the world for monthly periodical literature. The People’s Party is not dead. The *Nebraska Independent* will rise from its ashes stronger and better than ever before. The vilest, rottenest, worst smelling spot in all the preserves of plutocracy is that place where the fusionist roams, seeking to destroy the organization that gave him the only opportunities of his life.

Pole Baker

BY WILL N. HARBEN

Author of "The Georgians," "Abner Daniel," etc.

SYNOPSIS OF PREVIOUS CHAPTERS

In a small Georgia town a friendship has grown up between Pole Baker, reformed moonshiner and an unusual and likable character, and young Nelson Floyd, who was left as a baby in a mountain cabin by an unknown woman just before her death. Floyd, in the face of many trials and temptations, has worked his way up in the world and made a man of himself. Jeff Wade appears at the store, in which Floyd has become a partner, to avenge on him a rumored injustice to Wade's sister. Pole Baker's tact prevents a duel by making Floyd see that the unselfish course is for him to avoid a meeting. Cynthia Porter comes to the store, alarmed for Floyd's safety. On his way home to his family Pole falls a victim to his besetting sin of drink. Cynthia rejects the suit of the Rev. Jason Hillhouse and refuses to act on his warnings against Floyd's attentions. At a corn-shucking given by Pole, Floyd wins the right to kiss Cynthia, and on their way home claims his privilege without actually asking to marry her and proposes in vain that, since her mother dislikes him, she meet him at times on signal in the grape-arbor. That night, while Cynthia is regretting even her slight weakness, her suspicious and tactless mother half accuses her and hints that the worry over Cynthia and Floyd has caused her to fear an attack of insanity.

CHAPTER VII

ON the following Saturday morning there was a considerable gathering of farmers at Springtown. A heavy fall of rain during the night had rendered the soil unfit for plowing, and it was a sort of enforced holiday. Many of them stood around Mayhew & Floyd's store. Several women and children were seated between the two long counters, on boxes and the few available chairs. Nelson Floyd was at the high desk in the rear, occupied with business letters, when Pole Baker came in at the back door and stood near him, closely scanning the long room.

"Where's the old man?" he asked when Floyd looked up and saw him.

"Not down yet; dry up, Pole! I was making a calculation and you knocked it hell-west and crooked."

"Well, I reckon that kin wait. I've got a note fer you." Pole was taking it from his coat pocket.

"Miss Cynthia?" Floyd asked eagerly.

"Not by a long shot," said Pole. "I reckon maybe you'll wish it was." He threw the missive on the desk and went on in quite a portentous tone: "I come by Jeff Wade's house, Nelson, on my way back from the mill. He was inside with his wife and children, an' as I was passin' one of the little boys run out to the fence and called me in to whar he was. He's a queer fellow! I saw he was tryin' to keep his wife in the dark, fer what you reckon he said?"

"How do I know?" The young merchant, with a serious expression of face, had torn open the envelope but not yet unfolded the sheet of cheap, blue-lined writing paper.

"Why, he jest set thar in his chair before the fire, an' as he handed it up to me he sorter looked knowin' an' said, said he: 'Pole, I'm owin' Mayhew & Floyd a little balance on my account, an' they seem uneasy. I wish you'd take this here note to young Floyd. He's always stood to me sorter, an' I believe he'll git old Mayhew to wait on me a little while.'"

"Did he say that, Pole?" Floyd had opened the note, but was looking straight into Baker's eyes.

"Yes, he said them words, Nelson, although he knowed I was on hand that day when he paid off his bill in full. I couldn't chip in thar before his

wife, an' the Lord knows I couldn't tell him I had an idea what was in the note, so I rid on as fast as I could. I had a turn o' meal under me an' I tuck it off an' hid it in the thicket t'other side o' Duncan's big spring. I wasn't goin' to carry a secret war message a-straddle o' two bushels o' meal warm from the rocks. An' I'd bet my hat that scrap o' paper means battle."

Floyd read the note. There was scarcely a change in the expression of his face or a flicker of his eyelashes as he folded it with steady fingers and held it in his hand.

"Yes, he says he has got the whole story, Pole," Floyd said. "He gives me fair warning as a man of honor to arm myself. He will be here at twelve o'clock to the minute."

"Great God!" Pole ejaculated. "You hain't one chance in a million to escape with yore life. You seed how he shot t'other day. He was excited then—he was as calm as a rock mountain when I seed him a while ago, an' his ride to town will steady 'im more. He sorter drawed down his mouth at one corner an' cocked up his eye, same as to say: 'You understand; thar hain't no use in upsettin' women folks over a necessary matter o' this sort.' Looky here, Nelson, old friend, some'n has got to be done, an' it's got to be done in a hurry."

"It will have to be done at twelve o'clock, anyway," Floyd said calmly, a grim smile almost rising to his face. "That's the hour he's set."

"Do you mean to tell me you are a-goin' to set thar like a knot on a log an' 'low that keen-eyed mountain sharpshooter to step up in that door an' peg away at you?"

"No, I don't mean that, exactly, Pole," Floyd smiled coldly. "A man ought not to insult even his antagonist that way. You see, that would be making the offended party liable for wilful, cold-blooded murder before the law. No, I've got my gun here in the drawer, and we'll make a pretense at fighting a duel, even if he downs me in the first round."

"You are a darn fool, that's what you are!" Pole was angry without knowing why. "Do you mean to tell me you are a-goin' to put yore life up like that to gratify a scamp like Jeff Wade?"

"I'd deserve to be kicked off the face of the earth," Floyd responded with firmness, "if I turned tail and ran. He seems to think I may light out; I

judge that by his setting the time a couple of hours ahead, but I'll give him satisfaction. I'm built that way, Pole. There is no use arguing about it."

"My God, my God!" Pole said under his breath. "Hush! Thar comes Mayhew. I reckon you don't want him to know about it!"

"No, he'd be in for swearing out a peace warrant. For all you do, don't let him on to it, Pole. I want to write a letter or two, before Wade comes. Don't let the old man interrupt me."

"I'll feel like I'm dancin' on yore scaffold," the farmer growled. "I want my mind free to—to study. Thar! He's stopped to talk to Joe Peters. Say, Nelson, I see Mel Jones down thar talkin' to a squad in front o' the door; they've got the'r heads packed together as close as sardines. I see through it now. By God, I see through *that*!"

"What is it you see through, Pole?" Floyd looked up from Wade's note, his brow furrowed.

"Why, Mel's Jeff Wade's fust cousin; he's on to what's up, an' he's confidin' it to a few; it will be all over this town in five minutes, an' the women an' childern will hide out to keep from bein' hit. Thar they come in at the front now, an' they are around the old man like red ants round the body of a black one. He'll be on to it in a minute. Thar, see? What did I tell you? He's comin' this way. You can tell by the old duck's walk that he's excited."

Floyd muttered something that escaped Pole's ears, and set to work writing. Mayhew came on rapidly, tapping his heavy cane on the floor, his eyes glued on the placid profile of his young partner.

"What's this I hear?" he panted. "Has Jeff Wade sent you word that he was comin' here to shoot you?"

Pole laughed out merrily, and, stepping forward, slapped the old merchant familiarly on the arm. "It's a joke, Mr. Mayhew!" he said. "I put it up on Mel Jones as we rid in town; he's always makin' fun o' women fer tattlin', an' said I to myse'f, said I, 'I'll see how deep that's rooted under yore hide, old chap,' an' so I made that up out o' whole cloth. I was jest tellin' Nelson, here, that I'd bet a hoss to a ginger-cake that Mel 'ud not be able to keep it, an' he hain't. Nelson, by George, the triflin' skunk let it out

inside o' ten minutes, although he swore to me he'd keep his mouth shet. I'll make 'im set up the drinks on that."

"Well, I don't like such jokes!" Mayhew fumed. "Jokes like that and what's at the bottom of them don't do a reputable house any good. And I don't want any more of them. Do you understand, sir?"

"Oh, yes, I won't do it ag'in," answered Pole in an almost absent-minded tone. His eyes were now on Floyd, and despite his assumed lightness of manner the real condition of things was bearing heavily on him. Just then a rough-looking farmer, in a suit of home-made jeans, straw hat and shoes worn through at the bottom, came back to them. He held in his hand the point of a plow and looked nervously about him.

"Everybody's busy down in front," he said, "an' I want to git a quarter's wuth o' coffee." His glance, full of curiosity, was now on Floyd's face. "I want to stay till Wade comes, *myself*, but my old woman's almost got a spasm. She says she seed enough bloodshed durin' the war, an' then she always liked Mr. Floyd. She says she'd mighty nigh as soon see an own brother laid out as him. Mr. Floyd sorter done us a favor two year back when he stood fer us on our corn crop, an', as fer me, why, of course, I _____"

"Look here, Bill Champ," Pole burst out in a spontaneous laugh. "I thought you had more sense than to swallow a joke like that. Go tell yore old woman that I started that tale jest fer pure fun. Nelson here an' Wade is good friends."

"Oh, well, ef that's it, that's different," the farmer said. "But from the way Mel Jones talked down thar a body would think you fellers was back here takin' Mr. Floyd's measure fer his box. I'll go quiet my wife. She couldn't talk of a thing all the way here this mornin' but a new dress she was goin' to git an' now she's fer hurryin' back without even pickin' out the cloth."

"No, I don't like this sort o' thing," old Mayhew growled as the customer moved away. "An' I want you to remember that, Baker."

"Ah, you dry up, old man!" Pole retorted, with a mechanical laugh. "You'd live longer an' enjoy life better ef you'd joke more. Ef the marrow

o' my bones was as sour as yourn is I'd cut my throat or go into the vinegar business."

At this juncture Captain Duncan came in the store and walked back to the trio.

"Good morning," he said cheerily. "Say, Floyd, I've heard the news, and thought if you wanted to borrow a pair of real, good, old-fashioned dueling pistols, why, I've got a pair my father owned. They were once used by General——"

"It's all a joke, Captain," Pole broke in, winking at the planter and casting a look of warning at the now unobservant Mayhew.

"Oh, is *that* it?" Duncan was quick of perception. "To tell you the truth, I thought so, boys. Yes, yes"—he was studying Floyd's calm face admiringly—"yes, it sounded to me like a prank somebody was playing. Well, I thought I'd go fishing this evening, and came in to get some hooks and lines. Fine weather, isn't it? But the river's muddy. I'll go down and pick out some tackle."

He had just gone when an old woman wearing a cheap breakfast shawl over her gray head, a dress of dingy solid black calico and a pair of old, heavy shoes approached from the door in the rear.

"I got yore summons, Mr. Mayhew," she said in a thin, shaky voice. "Peter, my husband, was so downhearted that he wouldn't come to town, an' so I had to do it. So you are goin' to foreclose on us? The mule an' cow is all on earth we've got to make the crop on, and when they are gone we will be plumb ruined."

The face of the old merchant was like carved stone.

"You got the goods, didn't you, Mrs. Stark?" he asked harshly.

"Oh, yes, nobody hain't disputin' the account," she answered plaintively.

"And you agreed faithfully if you didn't pay this spring that the mule and cow would be our property?"

"Oh, yes, of course! As I say, Mr. Mayhew, I'm not blamin' you-uns. Thar hain't a thing for me an' Peter to do but thrust ourselves on my

daughter and son-in-law over in Fannin, but I'd rather die than go. We won't be welcome; they are loaded down with children too young to work. So it's settled, Mr. Mayhew—I mean ef we drive over the mule an' cow thar won't be no lawsuit?"

"No, there won't be any suit. I'd let this pass and give you more time, Mrs. Stark, but a thing like that can't be kept quiet through the country, an' there are fifty customers of ours over your way who 'ud be running here with some cock-and-bull story and we'd be left high and dry with the goods to pay for in market and nothing to show for it. We make our rules, Mrs. Stark, and they are clearly understood at the time the papers are signed."

"Never you mind, Mrs. Stark, I'll fix that all right." It was Nelson Floyd who was speaking, and with a face full of pity and tenderness he had stepped forward and was offering to shake hands.

The little woman, her lips twitching and drawn, gave him her trembly hand, her eyes wide open in groping wonder.

"I don't understand, Nelson—Mr. Floyd. You mean——?"

"I mean that I'll have your entire account charged to me and you can take your time about paying it—next fall or the next, or any time it suits you. I'll not press you for it, if you never pay it. I passed your place the other day, and your crop looks very promising. You are sure to get out of debt this coming fall."

"Oh, Nelson—I—I don't know what to do about it. Mr. Mayhew says _____"

"But I say it's all right," Floyd broke in as he laid his hand softly on her shoulder. "Go down in front and buy what you need to run on. I'll assume the risk, if there is any."

Mayhew turned suddenly; his face was white and his lip shook.

"Do you mean to say that you are going to step in and——?"

"Step in nothing," Floyd said calmly. "I hope I won't have to remind you, sir, of our clearly written agreement of partnership in which it is plainly stated that I may use my judgment in regard to customers whenever I wish."

“You’ll ruin us—you’ll break us all to smash, if you do this sort of thing,” Mayhew panted. “It will upset our whole system.”

“I don’t agree with you, sir,” Floyd answered, “but we won’t argue about it. If you don’t intend to abide by our agreement then say so and we will part company.”

Mayhew stared in alarm for a moment, then he said:

“There’s no use talking about parting. I only want to kind of hold you in check. You get your sympathies stirred up and make plunges sometimes when you ought to act with a clear head. You say the crop looks well; then, it’s all right. Go ahead, Mrs. Stark. Anything Nelson does is agreeable to me.”

“Well, it’s mighty good of you both,” the old woman said, wiping tears of joy from her eyes. “No, I won’t buy anything today. I’ll ride out to the farm as quick as I can and tell Peter the good news. He’s mighty nigh out of his senses about it.”

Mayhew followed her down into the store. It was as if he were ashamed to meet the quizzical look which Pole Baker had fixed upon him. He had no sooner turned his back than Pole faced Floyd and asked: “How does she stand by your ticker?”

Floyd looked at his watch. “It’s a quarter-past eleven,” he said.

“The hell it is!” Pole went to the back door and looked out at the dreary stable-yard and barn. He stood there for several minutes in deep thought. Then he seemed to make up his mind on something that was troubling him, for he suddenly thrust his hand into his hip-pocket and drew out a revolver and rapidly twirled the cylinder with his heavy thumb.

“Yes, I ’lowed I’d swore off from shootin’ scrapes,” he mused; “but I shore have to git in this ’un. I’d never look Sally an’ the childern in the face agin ef I was to stand still an’ let that dead shot kill the best friend me an’ them ever had. No, Poley, old boy, you’ve got to enlist this mornin’, an’ thar hain’t no two ways about it. I’d take a drink on that, but a feller’s aim hain’t wuth a dang when he sees double.”

His attention was suddenly attracted to Floyd, who had left his stool and was putting a revolver into the pocket of his sack coat. Pole shoved his own

cautiously back into his pocket and went to his friend's side.

"What you goin' to do now?" he asked.

"I have just thought of something that ought to be attended to," was Floyd's answer. "Is Mel Jones still down there?"

"Yes; I see 'im now through the left-hand window," said Pole. "Do you want to see 'im?"

"Yes." Floyd moved in the direction indicated and Pole wonderingly followed. Outside on the pavement at the corner of the store Mel Jones stood talking to a group of eager listeners. He stopped when he saw Floyd, and looked in the opposite direction, but in a calm voice the young merchant called him.

"Mel, may I see you a minute?"

"Certainly." The face of the gaunt farmer fell as he came forward, his eyes shifting uneasily.

"I got a message from Jeff Wade just now," said Floyd.

"Oh, did you? Is that so?" the fellow exclaimed.

"Yes; he says he has a private matter to settle with me, and says he'll be here at the store at twelve. Now, as you see, there are a good many people standing around—women and children, and somebody might get hurt or frightened. You know where Price's spring is, down behind the old brick yard?"

"Oh, yes; I know where it is, Floyd."

"Well, you will do me a favor if you will ride out to Wade's and tell him I'll meet him there. He could reach it without coming through town, and we'd escape a lot of prying people who would be in the way."

"That's a good idea," said Jones, his strong face lighting up. "Yes, I'll go tell 'im. I'm glad to see that you are a man o' backbone, Floyd. Some 'lowed you'd throw up the sponge an' leave fer parts unknown, but Jeff's got to tackle the rale stuff. I kin see that, Floyd. Minnie Wade raised a lots o' devilment, an' my wife says whatever rumors spread about her was her own fault. But Jeff cayn't be expected to see it through a woman's eyes. I wish you was goin' to meet a man that wasn't sech a dead shot. I seed Jeff

knock a squirrel out of a high tree with his six-shooter that three men had missed with rifles.”

“I’ll try to take care of myself, Mel. But you’d better hurry up and get to him before he starts to town.”

“Oh, I’ll git ’im all right,” said the farmer, and he went out to the hitching-rack, jumped on his horse and galloped away.

The group Jones had been talking to now drew near, their eyes and mouths open.

“It’s all off, boys,” Pole said, with one of his inscrutable laughs. “Explanations an’ apologies has been exchanged—no gore today. It was a big mistake all round.”

This version soon spread, and a sigh of relief went up from everybody. Fifteen minutes passed. Pole was standing in the front door of the store, cautiously watching Floyd, who had gone back to his desk to write a letter. Suddenly Pole missed him from his place.

“He’s tryin’ to give me the slip,” Pole said. “He’s gone out at the back door and has made fer the spring. Well, he kin *think* he’s throwed old Pole off, but he hain’t by a jugful. I know now which road Jeff Wade will come by, an’ I’ll see that skunk before Nelson does or no prayers hain’t answered.”

He went out to the hitching-rack, mounted, and, waving his hand to the few bystanders who were eying him curiously, rode away, his long legs swinging back and forth from the flanks of his horse. A quarter of a mile outside of the village he came to a portion of the road leading to Jeff Wade’s house that was densely shaded, and there he drew rein and dismounted.

“Thar hain’t no other way fer ’im to come,” he said, “an’ he’s my meat—that is, unless the damn fool kin be fetched to reason.”

CHAPTER VIII

There was a quilting party at Porter’s that day. Cynthia had invited some of her friends to help her, and the quilt, a big square of colored scraps, more or less artistically arranged in stars, crescents and floral wreaths, occupied

the centre of the sitting-room. It was stitched to a frame of four smooth wooden bars, which were held together at the corners by pegs driven into gimlet holes and which rested on the backs of four chairs. The workers sat on two sides of it and stitched, with upward and downward strokes, toward the centre, the quilt being rolled up as the work progressed.

Hattie Mayhew was there, Kitty Welborn and two or three others. As usual they were teasing Cynthia about the young preacher.

"I know she's the apple of his eye," laughed Kitty Welborn. "He really can't, as you said the other night, keep from looking at her during preaching. I noticed it particularly one Sunday not long ago and told Matt Digby that I'd be sure to get religion if a man bored it into me with eyes like his."

"I certainly would go up to the mourners' bench every time he called up repentant sinners," said Hattie Mayhew. "I went up once while he was exhorting and he turned me over to Sister Perdue, that snaggle-toothed old maid. He didn't even offer his hand."

Cynthia said nothing, but she smiled good-naturedly as she rose from her chair and went to the side of the quilt near the crudely screened fireplace to see that the work was rolled evenly on the frame. While thus engaged her father came into the room, vigorously fanning himself with his old slouch hat. The girls knew he had been to the village, and all asked eagerly if he had brought them any letters.

"No, I clean forgot to go to the office," he made slow answer as he threw himself into a big armchair with a rawhide bottom, near a window on the shaded side of the house.

"Why, father," his daughter chided him, "you promised the girls faithfully to call at the office. I think that was very neglectful of you when you knew they would be here to dinner."

"And he usually has a good memory," spoke up Mrs. Porter, appearing in the doorway leading to the dining-room and kitchen. She was rolling flakes of dough from her lank hands and glanced at her husband reprovingly. "Nathan, what *did* you go and do that way for, when you knew Cynthia was trying to make her friends pass a pleasant day?"

“Well, I clean forgot it,” Porter said, quite undisturbed. “To tell you the truth, thar was so much excitement on all hands, with this un runnin’ in with fresh news, an’ that un sayin’ that maybe it was all a false alarm, that the post-office plumb slipped out o’ my head. Huh, I hain’t thought post-office once sence I left here! I don’t know whether I could ’a’ got in thar anyway, fer the Postmaster hisse’f was runnin’ round like a camp-meetin’ chicken with its head cut off. Besides, I tell you, gals, I made up my mind to hit the grit. I never was much of a hand to want to see wholesale bloodshed. Moreover, I’ve heard of many a spectator a-gittin’ shot in the arms an’ legs or some vital spot. No, I sorter thought I’d come on. Mandy, have you seen anything o’ my fly-flap? When company comes you an’ Cynthia jest try yoreselves on seein’ how many things you kin put out o’ place, an’ I’m gittin’ sick an’ tired o’——”

“Nathan, what’s going on in town?” broke in Mrs. Porter. “What are you talking about?”

“I don’t know what’s goin’ on *now*,” Porter drawled out as he slapped at a fly on his bald pate with an angry hand. “I say I don’t know what’s goin’ on *now*; but I know what was jest gittin’ ready to go on. I reckon the coroner’s goin’ on with the inquest ef he ain’t afeared of an ambush. Jeff Wade——” Porter suddenly bethought himself of something, and he rose, passed through the composite and palpable stare of the whole room and went to the clock on the mantelpiece and opened it. “Thar!” he said impatiently. “I wonder what hole or crack you-uns have stuck my chawin’ tobacco in. I put it right in the corner of this clock, right under the turpentine bottle.”

“There’s your fool tobacco!” Mrs. Porter exclaimed, running forward and taking the dark plug from beneath the clock. “Fill your mouth with it; maybe it will unlock your jaw. What is the trouble at Springtown?”

“I was jest startin’ to tell you,” said Porter, diving into his capacious trousers pocket for his knife and slowly opening the blade with his long thumbnail. “You see, Jeff Wade has at last got wind o’ all that gab about Minnie an’ Nelson Floyd, an’ he sent a war-cry by Pole Baker on hossback as fast as Pole could clip it to tell Floyd to arm an’ be ready at exactly twelve o’clock sharp.”

“I knew it would come,” said Mrs. Porter, a combination of finality and resignation in her harsh voice. “I knew Jeff Wade wasn’t going to allow that talk to go on.” She was looking at her daughter, who, white and wide-eyed, stood motionless behind Hattie Mayhew’s chair. For a moment no one spoke, though instinctively the general glance went to Cynthia, who, feeling it, turned to the window looking out upon the porch, and stood with her back to the room. Mrs. Porter broke the silence, her words directed to her daughter.

“Jeff Wade will kill that man if he was fool enough to wait and meet him. Do you think Floyd waited, Nathan?”

“No, he didn’t wait,” was Porter’s answer. “The plucky chap went ’im one better; he sent word by Mel Jones to tell Wade that it would be indecent to have a rumpus like that in town on a Saturday, when so many women an’ childern was settin’ round in bullet-range, an’ so, if it was agreeable he’d ruther have it in the open place at Price’s spring. Mel passed me as he was goin’ to Jeff with that word. It’s nearly one o’clock now, an’ it’s my candid opinion publicly expressed that Nelson Floyd has gone to meet a higher Power. I didn’t want to be hauled up at court as a witness, an’ so, as I say, I hit the grit. I’ve been tied up in other folks’s matters before this, an’ the court don’t allow enough fer witness fees to tempt me to set an’ listen to them long-winded lawyers talk fer a whole week on a stretch.”

“Poor fellow!” exclaimed Hattie Mayhew. “I’m right sorry for him. He was so handsome and sweet-natured. He had faults, but they may have been due to the hard life he had when he was a child. I must say I have always been sorry for him; he had the saddest look out of the eyes of any human being I ever saw.”

“And he knew how to use his eyes, too,” was the sting Mrs. Porter added to this charitable comment as her sharp gaze still rested on her daughter.

There was a sound at the window. Cynthia, with unsteady hands, was trying to raise the sash. She finally succeeded in doing this and placing the wooden prop under it. There was a steely look in her eyes and her features were set, her face pale.

“It’s very warm in here!” they heard her say. “There isn’t a bit of draught in the room. It’s that hot cook stove, mother; I will—I——”

She had turned and walked from the room.

Mrs. Porter sighed as she looked after the departing form.

“Did you notice her face, girls?” she asked. “It was as white as death itself. She looked as if she was about to faint. It’s all this talk about Floyd. Well, they *were* friends. I tried to get her to stop receiving his attentions, but she thought she knew better. Well, he has got his deserts, I reckon.”

“And all on account of the talk about that silly Minnie Wade!” cried Kitty Welborn, “when you know as well as I do, Mrs. Porter, that Thad Pelham—” The speaker glanced at Nathan Porter and paused.

“Oh, you needn’t let up on yore hen-cackle on my account,” that blunt worthy made haste to say. “I’ll go out an’ look at my new hogs. You gals are out fer a day o’ pleasure, an’ I wouldn’t interfere with the workin’ of yore jaws fer a purty.”

Mrs. Porter didn’t remain to hear Kitty Welborn finish her observation, but followed her daughter.

In the next room, which was the dining-room, an old woman sat at a window. She was dressed in dingy black calico, her snowy hair brushed smoothly down over a white wrinkled brow, and was fanning herself slowly with a turkey-feather fan. She had Mrs. Porter’s features and thinness of frame.

“Mother,” Mrs. Porter said, pausing before her, “didn’t Cynthia come in here just now?”

“Yes, she did,” replied the old woman. “She *did*. And I just want to know, Mandy, what you all have been saying to her? I want to know, I say?”

“We haven’t been saying anything to her as I know of,” said the farmer’s wife in slow, studious surprise.

“I know you have, I say, I know you *have*!” The withered hand holding the fan quivered in excitement. “I know you have, for I can always tell when that poor child is worried. I heard a little of it, too, but not all. I heard them mention Hillhouse’s name. I tell you, I am not going to sit still and let

a whole pack of addle-pated women tease as good a girl as Cynthia is plumb to death.”

“I don’t think they were troubling her,” Mrs. Porter said, her face drawn in thought, her mind elsewhere.

“I know they *were*,” the old woman insisted. “She may have hidden it in there before you all, but when she came in here just now she stopped right near me and looked me full in the face, and never since she was a little baby have I seen such an odd look in her eyes. They looked like they were about to burst with tears. She saw me looking at her, and she come up behind me and laid her face down against my neck. She quivered all over, and then she said, ‘Oh, Granny! Oh, Granny!’ and then she straightened up and went right out at that door into the yard. I tell you, it’s got to let up. She sha’n’t have the life deviled out of her. If she don’t want to marry that preacher, she don’t have to. As for me, I’d rather have married any sort of man on earth when I was young than a long-legged, straight-faced preacher.”

“You say she went out in the yard?” said Mrs. Porter absently. “I wonder what she went out there for.”

Mrs. Porter went to the door and looked out. There was a clothesline stretched between two apple trees nearby, and Cynthia stood at it taking down a tablecloth. She turned with it in her arms and came to her mother.

“I just remembered,” she said, “that there isn’t a clean cloth for the table. Mother, the iron is hot on the stove. You go back to the girls and I’ll smooth this out and set the table.”

The eyes of the two met. Mrs. Porter took a deep breath. “All right,” she said. “I’ll go back to the company, but I’ve got something to say, and then I’m done for good. I want to say that I’m glad a daughter of mine has got the proper pride and spunk you have. I see you are not going to make a goose of yourself before visitors, and I’m proud of you. You are the right sort—especially after he’s acted in the scandalous way he has and—and laid you, even as good a girl as you, liable to be talked about for keeping company with him.”

The girl’s eyes sank. Something seemed to rise and struggle up within her, for her breast heaved and her shoulders quivered convulsively.

“I’ll fix the cloth,” she said in a low, forced voice, “and then I’ll set the table and call you.”

“All right”; Mrs. Porter was turning away. “I’ll try to keep them entertained till you come back.”

CHAPTER IX

Beneath a big oak Pole stood holding his bridle-rein and waiting, his earnest gaze on the long road leading to Jeff Wade’s farm. Suddenly he descried a cloud of dust far ahead and he chuckled.

“He’s certainly on time,” he mused. “He must ‘a’ had his hoss ready out in the thicket. Mel made good time, too. The dern devil is thirstin’ fer bloodshed. Mel’s that sort. By gum, that hain’t Wade; it’s Mel hisse’f, an’ he’s certainly layin’ the lash to his animal.”

In a gallop Jones bore down on him, riding as wildy as a cowboy, his broad hat in one hand, a heavy switch in the other. He drew rein when he recognized Baker.

“Did you deliver that message?” Pole questioned.

“Oh, yes, I finally got him alone; his wife seems to suspicion some’n, and she stuck to ‘im like a leech. She’s a jealous woman, Pole, an’ I don’t know but what she kinder thought Jeff was up to some o’ his old shines. He was a sorter tough nut before he married, you know, an’ a man like that will do to watch.”

“Well, what did he say?” Pole asked.

“Why, he said ‘all hunkydory.’ The spring plan ketched him jest right. He said that one thing—o’ bloodyin’ up the main street in town—had bothered him more than anything else. He admired it in Floyd, too. Jeff said, ‘By gum! fer a town dude that feller’s got more backbone than I expected. He’s a foe wuth meetin’, an’ I reckon killin’ ‘im won’t be sech a terrible disgrace as I was afeared it mought be.’”

“But whar are you headin’ fer in sech a rush?” Pole asked.

Jones laughed as he put his hat carefully on his shaggy head and pressed the broad brims up on the sides and to a point in front. “Why, Pole,” he

answered, “to tell you the truth, I am headed fer that thar spring. I’m goin’ to acknowledge to you that, as long as I’ve lived in this world, I hain’t never been on hand at a shootin’ affair. Mighty nigh every man I know has seed oodlin’s of ’em, but my luck’s been agin me. About the most excitin’ thing I ever attended was a chicken fight, and so I determined to see this un. I know a big rock jest above that spring, and I’m a-goin’ to git thar in plenty o’ time. You let me git kivered all but my eyes, an’ I’ll run the resk o’ gettin’ hit from thar up. Whar you makin’ fer, Pole?”

“Me? Oh, I’m on the way home, Mel. I seed the biggest rattlesnake run across this road jest now I ever laid eyes on. I got down to settle his hash, but I didn’t have anything to hit ’im with, an’ I’m done stompin’ at them fellers sence Tobe Baker, my cousin, over at Hillbend, got bluffed on the knee.”

“Well, so long!” Mel laughed. “I’ll hunt rattlesnakes some other time. Are you plumb shore you hain’t got the jimmies agin’, Pole? Take my advice an’ don’t tell about seein’ snakes; it sets folks to thinkin’. Why, I seed you once in broad daylight when you swore black spiders was playin’ sweepstakes on yore shirt front.”

“So long, Mel!” Pole smiled and waved his hand. He made a fair pretense at getting ready to mount as Mel galloped away in a cloud of dust. The horseman was scarcely out of sight when a pair of fine black horses drawing a buggy came into view. The vehicle contained Captain Duncan and his daughter Evelyn. She was a delicate, rather pretty girl of nineteen or twenty, and she nodded pleasantly to Pole as her father stopped his horses.

“You are sure that thing’s off, are you, Baker?” the planter said, with a genial smile.

“Oh, yes, Captain.” Pole had his eyes on the young lady and had taken off his hat, and stood awkwardly swinging it against the baggy knees of his rough trousers.

“Well, I’m very glad,” Duncan said. “I know you told some of the crowd back at the store that it had been settled, but I didn’t know whether it was reliable or not.”

Pole’s glance shifted between plain truth and Evelyn Duncan’s refined face for a moment, and then he nodded. “Oh, yes, it was all a mistake,

Captain. Reports get out, you know; and nothin' hain't as bad as gossip is after it's crawled through a hundred mouths an' over a hundred wigglin' tongues."

"Well, I'm glad, as I say," the planter said as he jerked his reins and spoke to his horses.

As he whirled away Pole growled. "Damned ef I hain't a-makin' a regular signpost out o' myself," he mused, "an' lyin' to beat the Dutch. Ef that dern fool don't come on purty soon he'll—but thar he is now, comin' on with a swoop—looks like his hoss is about to run from under 'im, his dern legs is so long. Now, looky here, Pole Baker, Esquire, hog-thief an' liar, you are up agin about the most serious proposition you ever tackled, an' ef you don't mind what you are about you'll have cold feet inside o' ten minutes by the clock. You've set in to carry this thing through or die in the attempt, an' time's precious. The fust thing is to stop the blamed whelp; you cayn't reason with a man that's flyin' through the air like he's shot out of a gun, an' Jeff Wade's a-goin' to be the devil to halt. He's got the smell o' blood, an' that works on a mad man jest like it does on a bloodhound—he's a-goin' to run down some'n. The only thing in God's world that'll stop a man o' that sort is to insult 'im, an' I reckon I'll have that to do in this case."

Jeff Wade was riding rapidly. Just before he reached Pole he drew out his big silver open-faced watch and looked at it. He wore no coat and had on a gray flannel shirt open at the neck. Round his waist he wore a wide leather belt, from which, on his right side, protruded the glittering butt of a revolver of unusual size and length of barrel. Suddenly Pole led his own horse round, until the animal stood directly across the narrow road, rendering it impossible for the approaching rider to pass at the speed he was going.

"Hold on thar, Jeff!" Pole held up his hand. "Whar away? The mail hack hain't in yet. I've jest left town."

"I hain't goin' after no mail!" Wade said, his lips tight, a fixed stare in his big, earnest eyes. "I'm headed fer Price's spring. I'm goin' to put a few holes in that thar Nelson Floyd, ef I git the drap on him 'fore he does on me."

“Huh!” Pole ejaculated; “no, you hain’t a-goin’ to see him, nuther; that is, not till me’n you’ve had a talk, Jeff Wade. You seem in a hurry, but thar’s a matter betwixt me an’ you that’s got to be attended to.”

“What the hell do you mean?” Wade demanded, a stare of irritated astonishment dawning in his eyes.

“Why, I mean that Nelson Floyd is a friend o’ mine, an’ he ain’t a-goin’ to be shot down like a dog by a man that could hit a nickel a hundred yards away nine times out o’ ten. You an’ me’s close together, an’ I reckon chances ’ud be somewhar about equal. I hain’t a brag shot, but I could hit a pouch as big as yourn is about as easy as you could me.”

“You—you—by God, do you mean to take this matter up?”

Jeff Wade slid off his horse and stood facing Pole.

“Yes, I do, Jeff; that is, unless you’ll listen to common sense. That’s what I’m here fer. I’m a-goin’ to stuff reason into you ef I have to make a new hole to put it in at. You are a-goin’ entirely too fast to live in an enlightened Christian age, an’ I’m here to call a halt. I’ve got some things to tell you. They are a-goin’ to hurt like pullin’ eye-teeth, an’ you may draw yore gun before I’m through, but I’m goin’ to make a try at it.”

“What the——?”

“Hold on, hold on, hold on, Jeff!” Pole raised a warning hand. “Keep that paw off’n that cannon in yore belt or thar’ll be a war right here before you hear my proclamation of the terms we kin both live by. Jeff, I am yore neighbor an’ friend. I love you mighty nigh like a brother, an’ I’m here to tell you that, with all yore grit an’ good qualities, you are makin’ a bellowin’ jackass o’ yoreself. An’ ef I let you put through yore present plans, you’ll weep in repentance fer it till you are let down in yore soggy grave. Thar’s two sides to every question, an’ you are lookin’ only at yore side o’ this un. You cayn’t tell how sorry I am about havin’ to take this step. I’ve been a friend to yore entire family—to yore brothers, an’ yore old daddy when he was alive. I mighty nigh swore a lie down in Atlanta to keep *him* out o’ limbo when he was arrested fer moonshinin’.”

“I know all that!” growled Wade; “but God——”

“Hold yore taters now, an’ listen! You mought as well take yore mind off’n that spring. You hain’t a-goin’ to git at Nelson Floyd without you walk over my dead body—an’ thar’s no efs an’ ands about that. You try to mount that hoss, an’ I’ll kill you ef it’s in my power. I say I’ve got some’n to tell you that you’ll wish you’d listened to. I know some’n about Minnie that will put a new color on this whole nasty business; an’ when you know it, ef you kill Nelson Floyd in cold blood, the law will jerk that stiff neck o’ yourn—jerk it till it’s limber.”

“You say you know some’n about Minnie?” The gaunt hand which till now had hovered over the butt of the big revolver hung down straight. He stood staring, his lip hanging loose, a sudden droop of indecision upon him.

“I know this much, Jeff,” Pole said, less sharply. “I know you are not after the fust offender agin yore family honor, an’ when I prove *that* to you I don’t believe you’ll look at it the same.”

“You say—you say——?”

“Listen now, Jeff, an’ don’t fly off the handle at a well-wisher sayin’ what he thinks has to be said in justice to all concerned. The truth is, you never seed Minnie like other folks has all along. You seed ’er grow up an’ she was yore pet. To you she was a regular angel; but other folks has knowed all along, Jeff, that she was born with a sorter light nature. Women folks, with the’r keen eyes, has knowed that ever since she got out o’ short dresses. Even yore own wife has said behind yore back a heap on this line that she was afeared to say to you. Not a soul has dared to talk plain to you, an’ even *I* wouldn’t do it except in this case o’ life an’ death.”

Wade shook back his long, coarse hair. He was panting like a tired dog. “I don’t believe a damn word of what you are a-sayin’!” he muttered, “an’ I’ll make you prove it, by God, or I’ll have yore life-blood!”

“Listen to me, Jeff,” Pole said gently. “I’m not goin’ to threaten any more. Believe me or not, *but listen!* You remember when Thad Pelham went off to Mexico a year or so ago?”

Wade made no reply, but there was a look of dawning comprehension in his great, blearing eyes.

“I see you remember that,” Pole went on. “Well, you know, too, that he was goin’ with Minnie a lot about that time—takin’ her buggy-ridin’ an’ to

meetin'. He was a devil in pants; his whole family was bad. The men in it wouldn't go in the gate o' heaven ef a woman was winkin' at 'em on the outside. Well, Thad started fer Mexico one day, an' at the same time Minnie went on a visit to yore brother Joe in Calhoun.

"She went thar a year ago," Wade said, "fer I bought 'er ticket at Parley."

"She told *you* she went to Calhoun." Pole's eyes were mercifully averted. "I met her an' Thad in Atlanta."

Wade caught his breath. He shook from head to foot as with a chill.

"You say—Pole, you say——?"

Pole pulled at his mustache and looked down.

"Well, I reckon they wasn't down thar to attend a Sunday-school convention, Jeff—they didn't have that look to me. But I was so worried fer fear I mought be doin' a woman injustice in my mind that, after they left me—to make sure, I went in the office o' the hotel an' made sure."

Suddenly Wade put out his hand and laid it heavily on Pole's shoulder. "Looky here, Baker," he said, "if you are lying to me, I——"

"Hold on, *hold on*, Jeff Wade!" Pole broke in sternly. "Whenever you use words like them you smile! So fer, this has been a friendly talk, as I see it; but you begin to intimate that I'm a liar, an' I'll try my best to make you chaw the statement. You're excited, but you mustn't go too fur."

"Well, I want the truth, by God, I want the truth!"

"Well, you are a-gittin' it, with the measure runnin' over," Pole said, "an' that ought to satisfy any reasonable man."

"So you think then, that Nelson Floyd never done any—any o' the things folks says he did—that 'twas jest report?"

"Well, I ain't here to say that, nuther," said Pole most diplomatically. "But la me! what a stark, ravin' fool you was about to make o' yoreself, Jeff!" Pole went on. "You started to do this thing today on yore sister's account, when by doin' it you would bust up her home an' make her life miserable."

“You mean——?”

“I mean that Joe Mitchell, that’s been dead stuck on Minnie sence she was a little gal, set up to her an’ proposed marriage. They got engaged an’ then every old snaggle-toothed busybody in these mountains set in to try to bust it up by totin’ tales about Floyd an’ others to ’im. As fast as one would come Minnie’d kill it, an’ show Joe what a foolish thing it was to listen to gossip, an’ Joe finally told ’em all to go to thunder, an’ they was married an’ moved on his farm in Texas. From all accounts they are doin’ well an’ are happy; but la me; they wouldn’t be that a-way long ef you’d ’a’ shot Nelson Floyd this mornin’.”

“You say they wouldn’t, Pole?”

“Huh, I reckon *you* wouldn’t dance a jig an’ sing alleluia ef you was to pick up a newspaper this mornin’ an’ read in type a foot long that yore wife’s brother, in another state, had laid a man out stiff as a board fer some’n that folks said had tuck place some time back betwixt the man an’ her.”

“Huh!” Wade’s glance was now on Pole’s face. “Huh, I reckon you are right, Pole, I reckon you are right. I wasn’t thinkin’ about that.”

“Thar was *another* duty you wasn’t a-thinkin’ about, too,” Pole said. “An’ that is yore duty to yore wife an’ childern that would be throwed helpless on the world ef this thing had ’a’ come off today.”

“Well, I don’t see *that*, anyway,” said Wade dejectedly.

“Well, *I* do, Jeff. You see, ef you’d ’a’ gone on an’ killed Floyd, after I halted you, I’d ’a’ been a witness agin you, an’ I’d ’a’ had to testify that I told you, in so many words, whar the *rale* blame laid, an’ no jury alive would ’a’ spared yore neck.”

“I reckon that’s so,” Wade admitted. “Well, I guess I’ll go back, Pole. I won’t go any further with it. I promise you not to molest that scamp. I’ll not trade any more at his shebang, an’ I’ll avoid ’im all I kin, but I’ll not kill ’im as I intended.”

“Now, you’re a-talkin’ with a clear head an’ a clean tongue.” Pole drew a breath of relief and stood silent as Wade drew his horse around, put his foot into the heavy wooden stirrup and mounted. Pole said nothing until

Wade had ridden several paces homeward, then he called out to him, and beckoned him back with his hand, going to meet him, leading his horse.

“I just thought o’ some’n else, Jeff—some’n I want to say. I reckon I wouldn’t sleep sound tonight, or think of anything the rest o’ the day, ef I don’t git it off my mind.”

“What’s that, Pole?”

“Why, I don’t feel right about callin’ you to halt so rough jest now, an’ talkin’ about shootin’ holes in you an’ the like, fer I hain’t nothin’ agin you, Jeff. In fact, I’m yore friend now more than I ever was in my life. I feel fer you *’way down inside o’ me*. The look on yore face cuts me as keen as a knife. I—I reckon, Jeff, that you sorter feel like—like yore little sister’s dead, don’t you?”

The rough face looking down from the horse filled. “Like she was dead an’ buried, Pole,” Wade answered.

“Well, Jeff”—Pole’s voice was husky—“don’t you ever think o’ what I said a while ago about shootin’. Jeff, I jest did that to git yore attention. You mought ’a’ blazed away at me, but I’ll be derved ef I believe I could ’a’ cocked or pulled trigger on you to ’a’ saved my soul.”

“Same here, old neighbor,” said Wade as he wiped his eyes on his shirt sleeve. “I wouldn’t ’a’ tuck them words from no other man on the face o’ God’s green globe.”

When Wade had ridden slowly away Pole mounted his own horse.

“Now, I’ll go tell Nelson that the danger is over,” he said. Suddenly he reined his horse in and sat looking thoughtfully at the ground.

“No, I won’t,” he finally decided. “He kin set thar an’ wonder what’s up. I was in a hair’s breadth o’ the grave, about to leave a sweet wife an’ kids to starvation jest beca’s e of him. No, Nelsy, old boy, you look death in the eye fer a while; it won’t do you no harm.”

And Pole Baker rode to the thicket, where he had hidden his bag of cornmeal that morning, and took it home.

(To be continued.)

A Phase of the Money Problem Bankers Dare Not Discuss

BY ALBERT GRIFFIN

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"The Hocus Pocus Money Boon"*

BECAUSE of limited space, this paper contains little more than principles, facts and conclusions, without argument—and the subject is considered from the practical man's standpoint rather than that of the theorizer. The one monetary proposition to which all schools agree is that "money is the medium of exchange." To be used as such is its one and only universally admitted purpose—and no other characteristic is essential. No matter of what it consists, whatever is *willingly* used by people as their medium of exchange is money, and should be so recognized by everyone—but unfortunately, the greater part of it is not.

There is honest money and dishonest money. None is strictly honest that is not as good as the best—for exchange purposes. Ideal money has the same exchange value at all times, and everywhere—and the best money is that which is nearest the ideal. Without discussing what it should consist of, I hold that the material ought to be more substantial than a banker's "confidence" that he will always be able to pay the most of his debts with mere debits and credits. As business cannot be done without money, and as each person needs enough of it to enable him to exchange his services and products for the services and products of others, it goes without saying that there ought to be enough to supply each and all liberally—and that no man, or set of men, should be allowed to affect materially this supply for selfish purposes.

To most people, the soundness of the "quantitative theory" of money is self-evident. Concisely stated, it is that, whenever the quantity of money in circulation increases faster than the exchanges to be made with it, commodities tend to rise in price—and *vice versa*—which is but the

application to money of the inexorable law of supply and demand. While the soundness of this theory is generally admitted, every business man knows that sometimes facts seem to disprove it. In 1890, when the failure of Baring Brothers so nearly precipitated a panic throughout this country, the quantity of visible money in circulation was increasing; and the same fact was true in April, 1893, when the proceedings agreed upon at the conference between Secretary Carlisle and prominent New York bankers precipitated a fearful panic on the next business day—and yet, in both of these cases, the apparent conflict resulted from the suppression of a part of the facts.

Now for the explanation: In comparing the size or weight of two masses the whole of each must be contrasted with the whole of the other, and in comparing two actively operating forces all of the factors of each must be considered together, without regard to names. But, strange to say, three-fourths of what is being used and paid for as money, and which really does the work of money, and does nothing else, is denied the right of being called money by some doctrinaires—and also by bankers, when talking to the public. Although between May 1 and October 1, 1903, the volume of metallic and paper money actually increased, this something which had been doing the work of money was contracted \$500,000,000 in New York City alone—but as it was not called money its relation to the results was not generally recognized.

Deposit banks are little more than clearing-houses; and the laws permit their owners to pay nine-tenths of their debts with money literally made by themselves—out of nothing—which they coolly call “liquid capital,” or “bank credit,” although it is neither capital nor credit. The real nature and far-reaching effects of this modern practice are not clearly understood by one in twenty even of the bankers themselves—and none of them dares discuss it publicly. The most of those that do not fully understand it *feel* that there is something wrong about it; and those that do understand it know that, if people once begin to study “the system,” they will demand radical changes in it—or its entire abolition.

Government reports for 1904 put the volume of metallic and paper money then in existence at \$2,829,273,316—or \$31.16 per capita; and the Comptroller’s report shows that the banks whose reports he consolidated were earning interest on more than \$6,278,000,000 of money that had no

existence—or \$76.47 per capita. This stuff is what, for a dozen years, I have called “hocus pocus money.” It consists of nothing but, in the language of Professor Sidgwick, rows of figures on bank books; and yet it affects business, prices and values, exactly as that amount of real money would. Invisible, intangible and mythical, it is nevertheless very real—filling the land with prosperity, joy and song today, and disaster, tears and despair tomorrow, it is the most potent economic power ever known. Business men gladly accept it as money. *The courts treat it as money.* And, although, for technical reasons, most political economists do not do so, I insist that, to all intents and purposes, it is money, and should be so recognized. Indeed, until this shall be done, it will be impossible to frame a monetary system that will always work equitably and beneficently.

Between 1896 and 1904, as officially reported, the increase in the volume of visible money was, in millions, \$1,322,000,000—or \$9.75 per capita; but the quantity of hocus pocus money in use increased \$5,275,000,000—or \$43.42 per capita—the quantity of both kinds then actually in use being \$107.63 per capita. This shows that four-fifths of the increase in the medium of exchange consists merely of the right given favored people to draw checks on banks to pay which no real money has been deposited.

In 1888, 5,866 bank reports showed that they were then collecting interest on \$3.41 for each dollar of their capital available for “commercial loans”; but last year’s reports of the 13,772 national, state and private banks and loan and trust companies show that their aggregate capital (including surplus, undivided profits and bank-notes) amounted to \$2,927,000,000. This was everything their owners had put into their business, and of it \$2,743,000,000 had been paid out for bonds, stocks, real estate, real estate mortgages, etc., leaving only \$183,000,000 available for “commercial loans.” And yet their “loans and discounts” aggregated \$6,431,000,000, or \$35.07 of “commercial loans” for every dollar of their not otherwise invested capital. If this is not “*getting something for nothing*” on a stupendous scale, I should like to know what would be so considered.

Remember, that these figures include all of the reported banks. Individual cases are incomparably worse. On December 2, 1899, the National City Bank, of New York City (the principal of the several hundred Standard Oil banks), had \$6,709,216 of capital, surplus, etc.; its investments

of capital aggregated \$27,270,738; its available capital was therefore \$20,561,519 *less than nothing*; and yet it was then actually earning interest on \$60,906,034 of “loans and discounts,” making \$81,467,553 of hocus pocus money. And remember further that, to make people more dependent on banks for this kind of money with which to do business, the volume of real money is kept as small as possible. This is the real reason why bankers engineered the contraction of the currency after the war and the demonetization of silver. But for them no class of business men would have consented to either of those economic crimes.

Here are a few more important facts:

1. Interest has to be paid *to the banks* on every dollar of hocus pocus money as long as it lives.

2. It lives, on an average, only about two months.

3. Every payment of a note or draft extinguishes the hocus pocus money involved in that transaction and contracts its volume that much, making it the most constantly and wildly fluctuating money ever known.

4. Whenever, for any reason, bankers fear a demand for an unusual amount of real money they make fewer “loans” and “call in” some that are outstanding, which destroys that part of the “liquid capital” that was in actual use as a medium of exchange and cramps the money market.

5. Bankers sometimes do these things unnecessarily, for the purpose of making a “bear market”; but it is also true that business conditions sometimes compel them to do so, as was the case in 1857 and 1873.

6. If the banks had on hand as much money as they reported (which is not always true), they, in 1888, owed \$6.01 for every dollar they reported; and last year the proportion was \$9.98 to \$1. The sixty-two national banks in the central reserve cities are required to keep nearly 25 per cent. of their deposits on hand in cash; the 285 in the other reserve cities only 12½ per cent., and the 5,065 in non-reserve cities only 6 per cent. State bank requirements vary greatly, private banks and loan and trust companies are under few or no restrictions, and the loan and trust companies keep only about 2 per cent.

7. Less than one-tenth of the “deposits” in banks are real money—the others being mere promises of the banks to pay money to those who have

bought (with notes) the right to draw checks against them—and it is simply impossible to so regulate the system as to prevent it from frequently working disastrously.

8. Contracting the volume of any kind of money that is willingly accepted by producers always causes suffering. Indeed, modern conditions require a large annual increase in the volume of money; and, with an insufficient supply of real money, it is not now possible to prevent the use of hocus pocus money.

9. It is well known that, when their interests seem to require it, great bankers defy the laws made to restrain them.

10. There ought to be places in which people can deposit money and know it will remain there until checked out by themselves.

For ten years I have called attention to the fact that there never has been, in this or any other country, a widespread commercial panic that was not caused *solely* by the sudden contraction of the hocus pocus money then being used by banks, and have challenged contradiction; but this challenge has never been accepted. Hocus pocus money *is the one and only seriously disturbing factor that has always and everywhere preceded* these catastrophes. Other causes aggravate them, but, with it eliminated, panics would be impossible, because it is this sudden, absolute destruction of the bank's manufactured "liquid capital," used by so many as their medium of exchange, which paralyzes their business operations and makes "the bottom drop out of the market," as it were.

No words are lurid enough to portray properly the terrible evils and personal suffering that its use causes, and I submit that it is time people should begin to consider earnestly the question, Had we not better insist that some kind of real money shall be substituted for the unreal now in use, and thus permanently remove the cause that so often produces such baleful results? Conditions were never so favorable for doing this as they are now. No election is pending; the two great parties are lazily talking on similar platforms; all financial organs insist that the country is prospering; and, although people are deeply stirred, they are not excited.

The use of hocus pocus money, and its evil results, have increased steadily from the beginning of the deposit banking system. From time to

time methods change, but every change increases the power and profits of the few—and the helplessness of the many. The gravest of these changes began to be felt about a decade ago. Leading bankers had always used some of their hocus pocus money for the promotion of their own schemes, but from that time the Rockefellers, Morgans and others have been systematically getting control of the principal deposit banking institutions, and using, not only a rapidly increasing proportion of their depositors' real money, but also more of the hocus pocus money made possible by those deposits. Mr. Lawson and others have shown how this has been done on a gigantic scale, in specific cases, and of all unfossilized, sober-minded people I ask, can 999 business men afford to permit the thousandth man to continue appropriating to his own use the hocus pocus money their own deposits have made possible—and, in addition, help him to keep the volume of real money ruinously small? Indeed, would it not be idiotic folly to do so?

To me the problem appears to be: How can hocus pocus money be safely eliminated—or so restricted as to be harmless—and the quantity of real money so increased that all will, at all times, be able to exchange their products and services; that commercial panics and long periods of business depression will become impossible; and that a few men in each community will no longer have the power to ruin all who refuse to obey their orders?

Space will not permit me to tell here how this can be done, but I will say that, fortunately, this greatest and most overshadowing of the economic problems that confront humanity is the easiest of all to solve; that, as bankers are the controlling spirits in—or back of—nearly all trusts and combines, settling the money problems will make the solution of all the others easier; that it can be done without wronging anyone, or imposing additional burdens on the people; and that economic and social conditions would improve during the entire process.

But suppose that some of my conclusions may not be correct, does not the experience of the last hundred years prove, beyond controversy, that our banking and financial systems must be radically unsound in some very important particulars? And, if so, should we not insist upon their prompt improvement—or the substitution of better ones?

Every business man knows that, if the banks were required to keep larger reserves always on hand, they would be safer places of deposit. And they are equally well aware that the more real money there is in circulation the more prosperous and happy are the people. And the vitally important question is, not how far or how fast shall we go, but, shall we not begin to move steadily and determinedly in the direction of less danger and more permanent prosperity?

A Leaf From a Protective Tariff Catechism

(OVERHEARD IN A PROTECTIVE KINDERGARTEN)

BY JOEL BENTON

Q. WHAT is Protection?

A. It is placing a duty upon foreign goods, of many kinds, to enable American makers of similar goods who “plead the baby act” to get higher prices for those goods than they otherwise would. It is compelling all the people to pay taxes to a few of the people.

Q. Why is this favor given to the few people?

A. On account of the fact that they pay so much higher wages than foreign manufacturers do and to compel them to pay still higher wages.

Q. Is this necessary?

A. It is very necessary to the Republican Party; for it gives it an issue and its chief cause for existence. When it saw accomplished, by the fortune of war, the freedom of the slave, what could be more natural and glorious than its ready espousal of anti-freedom for commerce?

Q. Are “protective” duties always just equal to the difference between our wages and foreign wages?

A. That is what our argument implies; and, if our argument is true, that is all we can ask. But how is a noble army of patriots to be maintained, and how can election expenses be met if we do not—in our tariff—treble and more than quadruple this difference often?

Q. Are high wages given by our manufacturers without an equivalent advantage in return?

A. It is true of wages, as of other things—that they are ordinarily worth their price, so that our *high-priced* labor is really labor of *low cost*. But it is

a mighty convenient subterfuge to keep this fact out of sight and by this means hoodwink the poor laborer for his vote.

Q. Do manufacturers keep a lobby at Washington for securing a tariff that makes them pay *high* wages and yet sell their goods at *low* prices?

A. That is what we very often say, substantially.

Q. Can our manufacturers sell goods abroad?

A. They do very largely over other tariff walls, and bear the expense of transportation and insurance and secure handsome profits. But the question is too delicate a one to enlarge upon.

Q. Does Mexico have a protective tariff?

A. She does. The plea for it there is that it is a defense against our *high-priced* labor. The Mexican peons work for very *low prices* and at a more than correspondingly *high cost*. It is one of the beauties of Protection that, whether labor costs little or much, you can plead for it for either reason.

Q. Does Protection help Agriculture?

A. It puts a tariff on hay, grain, potatoes, eggs, etc. Very little of any of these commodities are imported by us. When they are imported to any extent the farmers are the chief buyers, as they are of peas, beans and other seeds for planting. By paying the duty on all these things themselves they not only feel certain there is a duty, but they have the satisfaction of knowing they are not forgotten in the great “protective” scheme.

Q. Why is Protection called the American System?

A. This was the question Daniel Webster asked Henry Clay, who so named it, when they were not in accord upon the tariff. Webster was puzzled by the name, for he knew the system was European and medieval; but “American” sounds well and makes us consistent in berating foreign things and ideas.

Q. How does Protection help commerce?

A. Commerce is so foreign we don’t need to help it. So we let it go to the miserable foreigners—what we permit to exist. It is really better to pay the two hundred million dollars we pay them yearly to carry our goods than to let that amount of money pervert our high and noble doctrine.

Q. What is meant by having the tariff “revised by its friends”?

A. That, as the English say, is a good “half-crown phrase.” But its real meaning is to oppose revising the tariff in any way whatever. Several elections have been carried by this plea, and we are still working it for all it is worth. Of course no one goes to have his shoes mended to a shoemaker who is in favor of their holes and lack of heels, and no one selects depredators of hen-roosts to watch chicken thieves; but we must not defer to ordinary rules when “the noble citadel of Protection” is in danger.

Q. Is it understood that to change the tariff injures business?

A. We always say that, and charge to Free Trade the calamity that ensues.

Q. Suppose someone tells us there has been no Free Trade, and if Free Trade existed there would be no tariff to change, and therefore no injury from tariff changes?

A. Then is the time to look wise and say little. For our main object is to make Protection the source of all good and Free Trade the cause of all evil.

Q. How did it happen that, when hides were freed from duty in 1872—and even by the McKinley bill—they were taxed under the Dingley bill?

A. Well—but—let’s see. Why shouldn’t hides enjoy prosperity? It’s certain the big cattle dealers, who use the Government pastures without cost, profit by the duty, while we can claim it helps the farmers.

Q. Why are works of art tariff?

A. Not because the artists ask for Protection. They’re such curious people that they all oppose it. So we choose to be benevolent to them in spite of their eccentric behavior.

Q. What other peculiar tricks have our Protection wise men?

A. A pretty good one is to say that we are not tied up to any present or definite “schedules,” but to remember constantly that, if any change is made in the tariff, it must be one that goes up and never one that goes down. It was a great mistake for Garfield to say, “I believe in a Protection that leads to Free Trade.”

Q. What is Reciprocity?

A. It is—well, suppose you should build a bonfire and then pour water on it, or build a levee on the Mississippi and then punch holes through it. It is a part of our consistent scheme. Blaine knew, and who can dispute Blaine?

Q. What is Free Trade?

A. It is any scale of duties for any purpose that is the least bit lower than the Dingley bill. Everything that preceded that “bravest tariff ever made” is Free Trade. If some day Protection should climb to loftier heights, those who should oppose it by the lower Dingley bill would be Free Traders.

Here a boy, who got surreptitiously into the class, asked this unauthorized question:

Q. But you say this country has prospered under almost unbroken Protection. Now, since everything tariff-like before the Dingley bill is either Free Trade or Free Tradish, why is not all our prosperity up to the passage of that owing to Free Trade?

A. A boy cannot be expected to understand the flexibility of our nomenclature or the grandeur of a great principle. We are struggling to help “American Industries.” Must so little a thing as mere consistency stand between us and our friends? Boys should be seen and not heard.

Q. What is meant by American Industries?

A. Mainly manufactures. Of course these, and all protected interests, represent only from 5 to 8 per cent. of the real and total industries of the country. But they are the ones having large capital and power—the ones that can hire attorneys and maintain a lobby, and that have abundant “fat for frying” when important elections are at hand. Doesn’t “American Industries” sound well, if you only mouth it right, and roll it from the editorial pen and the platform often enough?

Q. How about the industries that are left out, or get merely nominal Protection?

A. The question is quite irrelevant. What more can they ask than to live in a “protected” country and be saved from Free Trade?

Q. Why do we protect woolen goods, and then de-protect manufacturers by “protecting” wool?

A. For the same reason that the boy cuts off a shoestring on one end and ties the cut-off piece on the other end. It amuses the boy and very likely helps us to get rid sooner of a foreign shoestring.

Q. Mention the value of Protection to American shipping.

A. It doesn't hurt it; for, by its aid and the help of our navigation laws, there is none to hurt. The way to have ships is first to make it impossible for us to build them, and then give enough subsidy to make it possible. Now you see the little joker and now you don't. Didn't President Harrison almost shed tears when he hauled up the American flag on a steamer rescued from a foreign register? It isn't possible to have Protection and have everything, but isn't it lovely to make things impossible at much expense and then make them possible at more expense, and at last call in a President and have a melodramatic time about it? Besides all this, it employs money and promotes labor.

Q. Does Protection make wages *high* and goods manufactured *low*?

A. That is what our philosophers maintain. Manufacturers are so anxious to exist here, and it is so necessary that we should have them, that they must pay high for their labor and sell its product low. To avoid paying but a little for labor, and to be prevented from selling their goods at high prices, they are even willing to maintain expensive lobbies at Washington and contribute large sums for electing Protectionists to Congress, to say nothing of "hypnotizing" doubtful or opposing senators.

Q. Can the first part of the above answer be really so?

A. It must be. A Protection journal had for its headlines on a Protection article the other day the statement that for many years Protection had done for manufacturers just this: It has made the wages they give *high* and the prices they get *low*, and so they would be splendidly off if it were not for the shadow of that wicked Wilson bill.

Q. Does prosperity then consist in enlarging your expenses and reducing your income?

A. It always does in Wonderland and Topsy-Turvydom, and under Protection.

Q. But do not "protected" manufacturers import laborers?

A. Manufacturers are held by us to be benevolent. Of course they import laborers, in order that there may be more here to get the benefit of our higher wages.

Q. How about invention under Protection?

A. It isn't necessary. So long as you can run the old ramshackle machinery, and be defended by the Government, you are saved the trouble of inventing newer and better methods. Some way might possibly be found if Yankee wit were once to be let loose, whereby we could compete with other nations in our manufactures, so that everybody would admit it, and then what would become of Protection? Remember constantly it isn't the welfare of the people that is paramount; it is Protection.

Q. Protection being so much more necessary than free government, free soil, free speech, and so cherubically philanthropic when compared with the dreadfulness of British Free Trade, the question arises, How shall we maintain its propaganda?

A. We must first of all be very careful to say that Free Trade is British. Of course Magna Charta, including trial by jury and many other good things, are British too, but we mustn't lose so good a stock argument. It is true, also, that England has prospered far more under Free Trade than she ever did under Protection. But the glorious Blaine accounted for that by saying that Free Trade might be good for England, but it must never come here. In other words, two and two make five or six over there, but here they fail to make four.

Q. What next must we do?

A. As our country has been very prosperous from its commencement, and we have had more or less Protection within that period, the best way is to say that all this has happened "under Protection." It has happened *under* other things, too, both good and evil, because it couldn't happen *over* them. But never let us forget that it was all caused by Protection. The very slight fact that our country was most prosperous when we had very low revenue duties is purely accidental and irrelevant. In Mr. Blaine's history of his career in Congress he described the period of our greatest prosperity. But there was no election in view then, and he was careless enough to say that this period coincided with what is called the period of the Free Trade tariff

of 1846. It was a dreadful mistake, because the statement was altogether too true, and Protection has no use for that which is merely true.

Q. There are other arguments, are there not?

A. A very decisive one is to call Free Trade a theory. For it is a theory of the Creator, who seemed to favor the idea of commerce along with civilization. But He, of course, left something for men to find out. The Chinese found out in the twelfth century that a big wall around their country would keep off nations that were savage and hostile; but the Republican Party have gone the Chinese one better and have walled off trade. No doubt some college Free Trader will ask you ironically if it is really the man who walks on his feet who is the theorist and innovator, and if the one who walks on stilts, and who tries to get everyone else on stilts, and who thinks it is a mistake that people were not born already stilted—as nations should have been already walled—is not one. But levity like this is what a great cause must not notice.

Q. What more must be said?

A. We must take pains to compare the United States with some foreign country. As we have already shown that everything good that has occurred here is wholly owing to Protection, we must take some foreign country and charge all that is bad there, such as the costly armies, the despotic or kingly rule, the dense population, the illiteracy, etcetera, to Free Trade. There are no really Free Trade countries in Europe except England, and possibly Belgium. They are protective in part. But they are foreign, and that is sufficient for the argument. Only put the excess of our benefits over theirs to the benefit of Protection, and all will be right.

Q. What shall we say about cheapness and dearness?

A. Didn't the Apostle Paul say we must be all things to all men? If we do seem to oppose somewhat the solidarity of humanity, we meet in our arguments a variety of mental difficulties. Our Apostle Harrison went for dearness by not wanting to find a cheap coat, for fear he should find a cheap man under it. Another Apostle thought "cheap and nasty go together." At the final period of a Presidential election, however, it is better to say that Protection makes things cheap, and our editors almost always take that cue. To be sure, if cheapness were our intention, Protection could not be

established, and we could not cry out against “cheap pauper labor.” The arguments must therefore be shuffled—and cheap and dear must sometimes be taken and at other times denied. The question is more or less of a crux, but it is the beauty of the noble doctrine of Protection that all trivialities of this sort it majestically sweeps away. Not being amenable to any of the laws of human reason, it is not disturbed by such trifles as truth and consistency.

Q. But can’t we say the foreigner pays the tax?

A. We certainly can and we do. But this argument needs very cautious handling. Sometimes duties are collected through the Post-Office, when the cat is let out of the bag and the duty comes directly to the man to whom the package is addressed. If he asks to have it charged to the foreign country his goods came from, even a Republican postmaster will sometimes laugh at him. Such perverse incidents as this are what Artemus Ward might call “in-fe-lick-et-us”—very.

Q. How was it when Congress removed the tax from sugar?

A. Well—sugar isn’t everything. It won’t do to be too one-sided. We could not resist telling the public then that we had removed a heavy burden from *its* shoulders. We really hated to tax the foreigners so much.

Q. What can be argued about the terms Protection and Free Trade?

A. Argument is superfluous here. The very word Protection is an assumption that meets all our requirements. It forecloses argument and shuts off dispute. Who doesn’t wish to be “protected”? And how charming it sounds to say we are protected from burglars, from enemies and from the horrors of trade—that is, trade with a foreigner. It must be always understood that if you could stand near the Canada or Mexico boundary and make a good bargain on the other side—say, the purchase of a horse for fifty dollars less than you could purchase him in your own country—you would inflict upon yourself and your country just so much loss. But if you buy the horse here at a price higher by fifty dollars, or over a tariff, with the fifty dollars added, you enrich both yourself and your country. On this doctrine, which is our fundamental one, we must and can stake everything, and against it the frothy waves of Free Trade will beat in vain.

Q. Why is not Free Trade also a felicitous term?

A. Things that are in themselves good, and that are made free and abundant, are, we must admit, generally to be approved. Abundant health or abundant friendship or abundant money we have not yet thought it wise to consider objectionable. But there are exceptions to all rules. Abundant trade—or Free Trade—which is trade done voluntarily by shrewd and sane men in order to procure abundant money, is different. To have it otherwise would upset our whole system of philosophy. What was this land of the free made for, if its main purpose were not to put shackles on trade? What we want is to eat our own cake and have it too; to sell everything we can to foreigners and buy nothing from them, and finally to get fat by stewing in our own juice.

The term Free Trade—to refer to the original question—is now so asphyxiated by us, by our contempt of it, that it suggests a Pandora's box of horrors the moment we mention it. To speak of it in this contemptuous way is really one of our strong arguments. What we want is to scream it out as a horror, to make it a bugbear. It is like telling children of some dreadful bogey lying in wait for them in the dark, or like Dr. Johnson's experiment with the fishwoman of Billingsgate, when he called her a hypothenuse, a triangle, a parallelopipedon, and several other mathematical things of which she had not the faintest knowledge and which she consequently supposed were very bad.

No, whatever else we do, let us stick to our insistent and persistent screech against Free Trade.

Monopoly; The Power Behind the Trust

BY JOSEPH DANA MILLER

HOW comes it that a power in its unimpeded operations beneficent—namely, the force or forces of combination or co-operation—becomes under certain conditions so injurious to modern industry? Why is a union of two factories or many factories, of two companies or many companies, a signal to the community of anticipated extortion? And why should the development of natural laws—those of combination and co-operation—provoke a public demand for regulation, and those who avail themselves of these operations be deemed amenable to punishment?

We may grant that a perfected combination which should succeed in forestalling any given commodity would be criminal. The law from its very beginnings has so regarded all such attempts. It is conceivable that, under certain conditions, a mere agreement between individuals might perfect a combination clearly within the provision of the law compelling its forcible dissolution. But this is not conceivable under modern conditions where wide distribution of capital and free labor exists. Law, indeed, may create such monopolies, which it may by popular demand be called upon to destroy, undoing with one hand what it has done with the other. State-created monopolies have existed often in history—as notably in the reign of Queen Elizabeth—but because these have been created by direct act they have been exceedingly unpopular. So, in periods of greater public intelligence, and where the people exercise larger powers of government, it became necessary to accomplish the same result by indirect means, by putting into operation some general law under which monopoly could find a shelter, and the secret sources of which could not be so easily traced.

For, contrary to the almost universal opinion, monopoly is weak. It demands protection. And from what does it demand protection? From the all-powerful natural law of competition. The curious Socialist notion that competition leads to monopoly is true only in the sense that monopoly, seeing how powerless it is when threatened by the forces of competition,

seeks the protection of such laws as it can secure, or which already exist, for the suppression of competition. And this brings us to the conclusion which is unavoidable that there are no monopolies save law-created monopolies.[\[1\]](#)

If this seem a novel proposition to the reader I will ask him not to grow impatient, for the demonstration will grow upon him as he reflects. It will seem novel, for if true all the laws and statutes for the regulation of combinations are so much waste of time and paper and the hours of legislatures and courts. In the acceptance of such explanation of the trust problem must go the rejection of many proposed remedies, among them the much-lauded one of “publicity.” While publicity is always to be commended and sought for in public or semi-public matters, it does not appear that laws enforcing publicity upon purely private industrial combinations are founded upon equity. Nor is it likely that publicity will assure us the possession of knowledge beyond what we already have through the work of independent investigators. Nor is it probable that enforced publicity will elicit impartial truth. This proposition is of a piece with the punitive theory in the treatment of the problem, a theory which has already led the people far astray. Men shrink instinctively from such stringent regulation, and this is a true index of the moral relation, if we may so speak, of this problem to legislation. But because they will not think clearly they return to the proposition of legal interposition.

Along with the remedy of “publicity” must go all laws, existing or proposed, limiting capitalization or stock watering. Beyond the fact that such laws would often force capitalization below the earning capacity—which is no unfair basis of capitalization—it must be said that the evils of stock watering are largely imaginary. It is true that over-capitalization may conceal from the public the real extent of monopoly profits, and is for this purpose, if for no other, often resorted to. But this of itself ought to constitute no valid reason for drastic legislation. Investors ought to be left free to take their own risks, and speculative ventures ought to be left free to fix their own capitalization, for otherwise perfectly legitimate, if largely speculative, business interests may be made to suffer injuriously to the interests of the community. But laying aside for the time all considerations of this kind, stock watering is only a symptom—a sign that monopolistic powers, and not legitimate business interests, are being capitalized.[\[2\]](#)

High capitalization, it is sometimes said, tends to increase price. It does offer temptation to increase of price, but nothing can put it within the power of combinations to increase price save the forces of monopoly. This power you do not increase or decrease by adding to the numbers of the counters, the considerations governing which are purely those of the stock-gambling fraternity.

National licensing of corporations to do business—a remedy proposed by Mr. Bryan and adopted by President Roosevelt—must also be dismissed. Obviously if the state has endowed corporations and armed them with letters of marque by authority of which they may prey upon commerce, it is the height of absurdity to ignore this feature of the question with talk about licensing them. In a very real sense they are already licensed, for it must be repeated that combinations do not create the monopoly, but merely avail themselves of the monopolistic powers created by society through acts of Government.

Of necessity all such laws must fail. This, it is scarcely necessary to say, has been the universal experience. And from future legislation no more is to be hoped than from past legislation, however well intentioned.

The reason why all this anti-trust legislation is futile is because, having created monopoly privileges, Government has appealed to the natural instincts of all men to seek these opportunities and benefits. Such laws are attempts to give effective form to the public's foolish anathemas against impulses shared by everybody, and are therefore as futile as the Pope's bull against the comet. When we understand that these great trusts are monopolies that Government has made, we will realize why it is that Government cannot unmake them by any other process than by removing the causes of their creation.^[3] Books prescribing such anti-trust legislation may continue to cumber the libraries of our lawyers, and streams of statutes may continue to pour from the lawmaking bodies of states and Nation, but these will be either positively harmful or wholly harmless, never effective.

We are, indeed, "fooling" with natural laws, and we can do so only at our peril. The law of competition and the law of co-operation or combination are what they have often been called, the centripetal and centrifugal forces of social economics. Competition is often a painful but really a merciful process; it weeds out the useless and the inefficient; selects

unerringly its business leaders; destroys, but where it destroys builds up; rescues from the mass the individuals and processes most fitted to survive, and out of chaos brings order. It replaces obsolete with more perfect organization, and where such organization becomes unwieldy it replaces organization with individuals, reverting to the earlier type of industry. Thus the country store is succeeded by the store in which is sold but one line of goods, and this is succeeded by the mammoth type of country store, the great city's department store; and the development of the last named type seems again to revert to the second—viz., a congeries of stores in which each is distinct from the other, each attaining a reputation for competitive excellence in one line of goods, thus illustrating in the retail trade the interplay of the forces of competition and combination.

Just as there is a limit fixed to the bounds of competition, so there is a limit to the bounds of combination. The maximum of combination and the maximum of efficiency are not the same. There is a point in the progress of combination beyond which it does not, or would not naturally advance—and that is when it reaches the maximum of efficiency. It seems very likely that the element of monopoly in society today forces combination far beyond the point of the most efficient co-operation.

These natural laws may not be “regulated.” Such laws are not for regulation, but for obedience. We may impede, we may interrupt their operation, but only to our injury. The most we can do is to regulate our institution by these laws, as we trim a sail to the wind and tides; we do not attempt to “regulate” wind and tides; and these laws of co-operation and competition are of the same order—natural laws which to disobey is to be destroyed.

We hear much superficial talk about “the wastes of competition.” The Socialists play into the hands of the trust apologists who defend them on the ground that competition leads to waste. Beyond the fact that competition has never yet been fully tried, that it has never yet been wholly free, and that such waste as it entails is inseparable from the natural process which weeds out the incompetent, the antedated and the unskilled—a process of which the waste is but incidental to the conservation—is that these combinations do not seek primarily to escape the waste of competition so much as to avail themselves of those artificial laws which prevent competition from doing its perfect work.

The term expressing the opposite of competition is not combination, but monopoly. Professor Jenks, in his work, "The Trust Problem," falls into this error when he speaks of combinations in the retail trade as overcoming the "friction" of competition, instancing associations of hardware dealers, druggists, etc. Here, he says, we have an element of combination from which he assumes the element of competition has been eliminated. But his error is in the analogy he seeks to establish between such agreements from which the element of competition cannot be expelled, and agreements which are based upon the control of some special privilege created by law, and of which the great railroad and industrial trusts are examples, and which people have in mind when they talk of the "trust problem."

Clearly no monopoly exists nor can be made to exist in the retail trade. Agreements may be made, but they will be broken; and the fact that they can be broken by isolated individuals who can thus separate themselves from the combination, and by their separation cause it to dissolve, is proof that the monopoly element does not exist. For the monopoly element in the possession of the great trusts is the potent weapon with which the combinations can compel the recalcitrant member to return, or beat him into starvation. From mere agreements in the retail trade, such as Professor Jenks instances, the primary element of monopoly being absent, desertions are fatal, and for this reason such combinations are never effective as means for extortion, though they do often arrest the sacrifices of keenly competing retailers. And the illicit intrusion of such examples is a favorite trick of the trust apologist, who, when the evils of the trust are pointed out, grows righteously indignant over the right of men to combine—which nobody seriously disputes—or points out with superfluous wealth of illustration how combination effects the cheapening of production—which nobody ever really denies. For the same reason labor unions cannot be considered as effective monopolies—though the trust apologist does not forget them in his special pleas—for the reason that they possess no effective legal privilege.

But to avoid a possible misunderstanding let us now answer a query which may have risen in the mind of the reader. Is competition or combination the beneficent law of industry? Both; for one is the complement of the other. They exist together, and together they effect the industrial progress of the world. But monopoly is the negation of both, since further combination or co-operation is no longer possible where

monopoly is complete. And where there is competition there will be combination, healthy, rational, continuous, and competition will determine its development and direction. The defense of the trust based upon the economic benefits resulting from the elimination of the unskilled is a defense of the principle of combination present under free competition, and is in no sense a defense of monopoly of which what we know as the “trust” is the manifestation. Such discussion, together with much talk of the wastes of competition, which helps to swell so many pretentious works on the trust problem, is so much irrelevant “padding.”

That the trusts avail themselves of all possible economies in production has often been urged in their defense. Certainly such economies are not needed to secure a monopoly in possession, nor does it seem that the greatest incentives to their adoption are present. The sacrifice of inventions rather than their use by these great monopolies is proof that they do much to prevent such economies. A monopoly can be induced to accept only with difficulty improved devices which under the spur of competition it would gladly avail itself of. Thus in the Post-Office, which is a monopoly, though a Government monopoly, improvements are introduced only with the greatest difficulty.

If combination can of itself effect monopoly, why are huge sums set aside by these great corporations to influence legislation? Why are contributions made to the campaign funds of the two great parties? Is it not because these combinations seek to perpetuate their monopolistic privileges? It may be said that it is contributed to effect the defeat of “strike bills.” But what would a business partnership, not in some way dependent upon previously existing legislation, care about “strike bills”? Why does the American Sugar Refining Company (according to the testimony of Mr. Havemeyer) contribute in some states to the Republican campaign fund, and in other states to the Democratic campaign fund?

As an example of the kind of defense urged by the trust apologists here is a work entitled, “The Trust; Its Book,” containing articles from the pens of Charles R. Flint, James J. Hill, S. C. T. Dodd, Francis B. Thurber, and others. It is a plea of “confession and avoidance.” The authors fight shy of even the hated term monopoly, and content themselves with defending the right of combination. Not one of them appears to think that the popular outcry against trusts is founded on anything but utter ignorance; and they

therefore devote themselves to showing the advantages of large scale production—as if that were the question. All this seems purely disingenuous. It is hardly conceivable that men who know so well the effects of monopoly, who know how potent has been the use by combination of existing laws securing the possession of special privileges, should write this way from any other motive than to becloud the issue. We can acquit them of intentional deception far less readily than the professors of political economy. The latter may be at once exonerated, since it is incredible that men who have become involved in the self-created subtleties of modern economics should retain sufficient clearness of comprehension to see anything in its proper relation.

If it be true that there are no monopolies save law-created monopolies, it only remains for the state to undo the work it has done. The means by which the state, consciously or unconsciously, has fostered monopolies may be removed, and a new, and up to this time untried, method for remedying the evils of trusts be set in motion.

Before we can agree to this, however, we must understand what monopoly is. Briefly stated, it is the power to charge more than a competitive price for a commodity or service. This power can be permanently secured by the favor of Government, and in no other way. An agreement between individuals cannot accomplish it, since such agreements, even if they include all individuals in interest, which is impossible, or at all events inconceivable, would infallibly be broken. The only way such agreements may be made effective is for Government to make powerless, or nearly so, the potential competitive elements or individuals in interest. This it does in several ways, or to be explicit, chiefly in three ways.

By Land Laws,

Tax Laws,

Laws Regulating (or that fail to regulate) the use of the steam highways of the country.

I know of no other source of monopoly unless it be our patent laws. But these being—originally at least—rewards of invention, the injury results from their misuse.[\[4\]](#) Even the misuse of patent laws is not one of the chief

potent influences in the perpetuation of monopoly. But without, in most cases, adding to the power of monopoly, which derives its strength from other causes, it puts in the hands of the great combinations the power to arrest progress. The value to society of an invention is in its use. Under present misuse of patents, inventions are held out of use and are often bought up and destroyed for the purpose of depriving competitors of the use of like improvements, or because such inventions would often reduce the machinery in present use to the value of old iron. Clearly, if industrial progress is to be made to yield its full results, some change in our patent laws is imperatively called for. Were the law of competition allowed to work freely, the use of such inventions, even under present patent laws, would be determined largely by the law of self-preservation. For the sources we have indicated are also the sources to a degree of the patent monopoly. In a competitive market for the use of an invention the inventor would be less likely to part with his invention, even under the present patent system. Where the bidding is artificially restricted the inventor sells at a disadvantage. Monopoly has the inventor at its mercy. But however this may be, nothing less than the free use of an invention to everyone willing to pay a royalty to the inventor for its use will do justice to the inventor and meet, at the same time, the interests of the great public and the necessary demands of industrial progress.

Certain superficial economists, misled by recent manifestations in trust building, have hastily concluded that the problem it presents is a new one. For example, Collier, in his work on the subject, says: "The problem of the trusts is a momentous one, yet it is unqualifiedly a new one." Of course it is not new. It is the same old problem of monopoly, and the so-called trust problem is but a phase of it. It is the problem of monopoly crystallized. The evils of the trust rivet the public attention, not because they are more real than the evils of monopoly *per se*, but because they are more obvious. In some respects the trust, by combining certain elements of monopoly, tends to make monopoly more perfect and its operations more harmful. But it simply avails itself of monopolistic institutions—that is to say, it is built upon land, railroad or tax monopoly; it takes to itself certain privileges which society has created and which have hitherto been appropriated and exercised by individuals. It therefore immediately makes these evils concrete. The trust is thus a manifestation, and the people, with their

customary thoughtlessness, attack the manifestation rather than the thing itself—the fruit of monopoly rather than the tree.

The great combinations which suggest themselves when we think of the trust problem—is there one of them which does not owe its existence to some monopoly privilege? What would the Standard Oil Company be but for its control of rights of way, sources of supply, railroad terminals and the preferential benefits it is enabled to secure? What is the Steel Trust but a network of artificial privilege? Has not Mr. Charles E. Russell clearly shown, in his recent articles in *Everybody's Magazine*, that the Beef Trust draws its life-blood from its monopolization of railroad privileges? What would the Sugar Trust be without the favors it receives from the tariff in its control of the raw material? Could the Tobacco Trust exist save for the power of taxation which strangles competition?

Those mentioned include nearly all the greater trusts. A more detailed demonstration of the truth we are insisting upon could be given, but the reader can himself carry this line of analysis further. He will find that it explains the existence of every oppressive combination, and that it leaves little unresolved or unexplained. It may happen that injurious combinations will present themselves in which this element of monopoly does not clearly appear. But these are by-monopolies, so to speak, and their sources of power may be traced to indirect association with the giant monopolies.

Let us admit all the good there is in aggregated capital. Let us take the trust advocates at their word that industry should be left free of all meddling, repressive or restrictive legislation. Is there, then, a common ground upon which we can meet? To think so is to delude ourselves. For their objection is not so much to mischievous laws of this sort as to interferences with things as they are. Their plea for *laissez faire* is hollow and insincere; true *laissez faire* would render every combination of capital innocuous for evil; there would be no mammoth aggregations of wealth in the hands of single individuals and no plethoric incomes.

The law of competition, let the Socialists prate as they will, gives only to those who earn. But from the denial of this law (of competition) flows all existing inequality in the distribution of wealth. There are, it is true, great swollen fortunes, which seem unconnected with these artificial laws of monopoly. Some of these, while clearly not the result of greater enterprise

or greater ability, seem to be due to cunningly arranged devices independent of existing monopoly laws. But this is so in appearance only. There are no such made-to-order arrangements of industrial combination that can be used for extortion. Competition is too keenly scrutinizing for such arrangements to go undetected. The inevitable day when imitation shall overtake them can only be permanently postponed by seeking the shelter of monopoly.

Some of these gigantic fortunes are the result of stock speculation. But these are incidental, and are the profits and losses of the gambling fraternity—a game really played with the counters of monopoly, like “chips” in a poker game, and the transference of which from one to another enriches or depletes the finances only of those who play. They do not concern the man who refrains from taking part in the game, and whether it be played with railroad stocks or industrials is no great matter. If these gamblers sometimes use the moneys on deposit in public institutions—as Mr. Lawson has asserted they do—that also is another question, though a momentous one.

With the dissolving of these giant combinations which would result from the removal of the laws of monopoly would disappear the great host of gamblers and stock jugglers. The great fortunes that result from the granting of legislative favors would also disappear, since there would be no longer any legislative favors to grant. And so with many other unjust possessions. And with them would be banished forever much that corrupts our social and political life.

[1] In his definition of a trust Mr. John Moody, author of the “Truth About Trusts,” says: “When men form corporate organizations, or make agreements, they do not form monopolies. They may take advantage of monopoly in one way or another, but they do not create it. The monopoly itself is a social product, which exists with the consent of society, and men in business take advantage of it where found, just as they take advantage of other factors for the purpose of achieving their ends.”

[2] Charles M. Schwab, in his testimony before the Industrial Commission at Washington in excuse of the apparently excessive capitalization of the Steel Trust, estimated as the approximate valuation of plants, mills,

machinery and transportation properties the sum of \$380,000,000, but the value of the ore, coal, natural gas and limestone properties he put at the enormous sum of \$1,100,000,000.

[3] This is vaguely recognized by the trust advocates and those who have written on the subject. Professor Jenks, who is one of the most temperate and discriminating, says: "So far as the industrial combinations are the result of special advantages granted to individuals or corporations, whether by the state or by others, it is probable that in most instances the evil effects would be lessened, if not completely removed, by the removal of such discriminating powers." Which is barely more than an involved method of stating that the removal of a cause will also result in removing the effect.

[4] Undoubtedly the control of patents is an effective source of monopoly in very many instances. Some of the large combinations have succeeded in obtaining control practically of all the patents used in certain lines of manufacture. That this is a potent source of power one instance alone may suffice to prove. Professor Jenks tells us that all of the barbed wire made in this country at the present time, as well as the wire fencing, is in the hands of the American Steel and Wire Company because that company has all the valuable patents, with one or two exceptions, in those lines of manufacturing.

The Heritage of Maxwell Fair

BY VINCENT HARPER
Author of "A Mortgage on the Brain"

(Conclusion)

SYNOPSIS OF PREVIOUS CHAPTERS

Maxwell Fair, an Englishman who has amassed a colossal fortune on 'Change, inherits from his ancestors a remarkable tendency to devote his life to some object, generally a worthy, if peculiar one, which is extravagantly chivalrous. The story opens with Fair and Mrs. Fair standing over the body of a man who has just been shot in their house—a foreigner, who had claimed to be an old friend of Mrs. Fair. Fair sends her to her room, saying: "Leave everything to me." He hides the body in a chest, and decides to close the house "for a trip on the Continent." Fair tells the governess, Kate Mettleby, that he loves her; that there is no dishonor in his love, in spite of Mrs. Fair's existence, and that, until an hour ago, he thought he could marry her—could "break the self-imposed conditions of his weird life-purpose." They are interrupted before Kate, who really loves him, is made to understand. While the Fairs are entertaining a few old friends at dinner, Kate, not knowing that it contains Mrs. Fair's blood-stained dress, is about to hide a parcel in the chest when she is startled by the entrance of Samuel Ferret, a detective from Scotland Yard. He tells her that he, with other detectives, is shadowing the foreign gentleman who came to the Fair house that day and has not yet left it. He persuades Kate to promise that she will follow the suspect when he leaves the house and then report at

Scotland Yard. As soon as Ferret is gone she lifts the lid off the chest, drops the package into it, and, with a shriek, falls fainting to the floor. Mr. and Mrs. Fair run to her aid. On being revived Kate goes to Scotland Yard, where, in her anxiety to shield Maxwell Fair from suspicion, she inadvertently leads the detectives to think that a crime has been committed at the Fair house. The two detectives are piecing together the real facts from the clues she has given, when Ferret is summoned to the telephone by his associate, Wilson, whom he had left on guard in the home of the Fairs. Fair tells Sir Nelson Poynter, at the latter's country place, that he has committed some crime, and explains that Mrs. Fair is not his wife—that a Cuban scoundrel had married her, already having a wife, and deserted her, and that he, Fair, had brought her and her children to England, giving her his name before the world, yet being her husband in name only. Sir Nelson and Fair's other friends, Allyne and Travers, begin to suspect his sanity.

“**B**UT what is the ridiculous idea that has turned your head? What sort of idiotic crime would you ask us to believe that you have committed? Come, sir, out with it—what's the charge against this villainous man?” asked Sir Nelson, with equal certainty and confidence.

“Only a trifle,” answered Fair. “Just a quiet little—murder!”

“That settles it,” shouted the good old fellow, thumping his knee with his clenched fist. “That settles it, sir. Sir Porter will have you in a straitjacket before night. Murder, eh? You burglar, forger, pirate—you!”

Fair waited until Sir Nelson had had his laugh, and then said with irritating persistency: “Quite another sort of jacket, I think, sir.”

“We'll see, we'll see,” retorted Sir Nelson, and then, abruptly changing the subject and his own expression, “but, I say, Fair, why have you never married Janet? She was, of course, free?”

“I don't wonder at the question,” Fair replied, relieved at the change. “That of course was the first question which presented itself to my mind.

But by the time that Janet came back into my life the old love had passed away—or perhaps I should put it another way—the love I now found myself bearing for her was of a different sort. I am a Fair, you know, Sir Nelson, and destiny demanded that the passion of my life be not like those of ordinary men. So Janet seemed to come to me not as a woman whom I might think of as a wife, but as a holy, consecrated, crucifying Idea which fate had destined should be the ‘Fair Folly’ of this generation. I think you know that each generation in our family has had its ‘folly.’”

“Yes,” answered Sir Nelson, shaking his head and letting his mind run back to the follies of the two generations of Fairs that he had known. “But your folly, my poor boy, has been so above the world’s standards of rational conduct that it is madness in our earthly eyes—or, perhaps, it is like the ‘foolishness of the saints,’ of which Saint Paul talks. But now, old hero—or madman—for reason’s sake, tell me of this accursed hallucination of yours—this blooming murder, you know. Have you killed the Pope or the Czar of Russia or Napoleon Bonaparte?”

“I appreciate your inability to accept the truth,” replied Fair. “But you must do so when I have told you all. You see, I have murdered so seldom that I was forgetting to tell you the details. Well, Sir Nelson, the rascal whom I——”

He was cut short by the sudden and alarming appearance of Kate Mettleby, who came running upon the terrace in traveling dress and quite out of breath. Both of the men rose and Sir Nelson watched Fair’s face with ill-disguised concern, which rapidly increased as Fair’s usual self-control gave place to evident uncontrollable nervousness and feverish excitement.

“Oh—Mr.—Fair,” gasped Kate, trying to get her breath; “thank God, you are here! I was—afraid—that”——

“Miss Mettleby,” interrupted Fair, advancing to meet her, “I supposed that you were halfway to Paris by this time. What has happened? You look ill.”

“Pardon me, sir,” answered Kate, “but—I’m out of breath—I ran.”

“Do you mind letting me see this young lady alone, Sir Nelson?” asked Fair, noticing that Sir Nelson stood, dazed and troubled, watching them.

“No, no—by all means,” quickly responded the old man eagerly. “I just wanted to see if she would not go in and refresh herself first. Allow me to advise Lady Poynter. The poor girl seems regularly done.”

“Oh, thank you, no, sir,” put in Kate, waving a protest; “I can stop only a moment. I must return to town on the next train, sir.”

“But you really can’t, you know,” said Sir Nelson. “You really must not think of returning without luncheon—it’s about ready, you know. I shall advise Lady Poynter that you are come,” and he hurried off.

“Well?” asked Fair when Kate looked up at him. “Tell me, Kate—and tell me quickly and without hesitation, for nothing can shock me now. So the worst of it—all of it—at once!”

“Where is Mrs. Fair?” Kate asked, with a look which begged piteously that the reply to her question be what she hoped. “She is here? Say that she is here!”

“Here?” cried out Fair, now thoroughly alarmed, a certain suspicion that had been gathering force shaping itself into something like certainty in his mind. “Here. Did she not start for Paris with you and the children? What can you mean?”

Kate struggled with the dreadful fears that were choking her.

“We all left the house together in the carriage and drove to the railway station, but there Mrs. Fair said that she wished to drive to a chemist’s shop, and we were to wait for her speedy return. She went off accordingly, and about twenty minutes later the carriage came back and John fetched this letter from Mrs. Fair to me. Take it and read it—it says that she desired me to take the children to Mrs. Barrington’s, and announced that she would communicate her change of plans to you. Oh, Mr. Fair, what does it all mean? I can bear little more of this suspense!”

“Poor old Janet!” groaned Fair, taking but not reading the letter which Kate handed to him. He walked up and down for a few seconds, then coming back to Kate said: “I see. I see it now. My God, what a woman! Wait here, dear, until I consult Sir Nelson, for we’ve got to act with life for the spur. This is a race, Kate—the maddest ever run!”

“But, Mr. Fair—Maxwell,” complained Kate, “tell me what it all means! I know about—that horror, you know, in the chest. I saw it. But no harm shall come to you, Maxwell, for I told them at Scotland Yard that it was not you—and they told me that they believed me.”

Fair jumped forward and could not believe what he heard, but the triumph on her poor little agonized face showed only too clearly that what she said was true.

“Scotland Yard?” he finally cried out. “Are you mad?” Then with a wild hysterical laugh that chilled her, he added: “So you kindly assured them that I was innocent, did you?”

“Yes,” she answered, failing to note the irony in his laugh, and conscious only of the loftiness of her motive. “Yes, for it would have broken my heart had they even whispered your name. Tell me! tell me! What is it? Whose body is that in the accursed chest? My mind is going—I can bear no more! Maxwell, I love you—I love you!”

“My poor little girl,” he said pityingly, looking down at her; “my Kate! We will talk it all over on our way to town—for I shall go back with you. Only you must be brave now. Remember that what I did with my hand I did not do with my heart, will you? My hand killed him; not my mind nor my will. Believe that, will you not, darling?”

“I will believe neither,” she cried bitterly. “You did not! you did not!”

“Hush!—they will hear you,” warned Fair, adding more gently: “Now wait here and say nothing to anyone. I will return at once—and we will catch the next train for town. Poor, poor Janet—good God, what work!”

He dashed into the house, and Kate sat as if dreaming on the garden seat. After trying to collect her thoughts and to fathom the deepening mystery which was overwhelming her, she suddenly caught sight of the torn letter which Mrs. March had dropped upon the seat. Acting mechanically and scarcely knowing what she was doing or that she was doing anything at all, she glanced at the piece of the letter which she had chanced to pick up—and at once her mind was awake. There was a name—a name and an address that startled her by their seeming incomprehensible coincidence with her thoughts at the moment. Hearing voices approaching before she had fully taken in the meaning of this new bit of perplexing tangle, she

thrust the scrap of paper into her pocket. The next instant she saw Fair coming out of the door, carrying his portmanteau. At his side was Mrs. March.

“I am so sorry,” Mrs. March was saying as they came up to her. “You have your bag—which means that you are not waiting for luncheon. Must you really rush off in this way? I wanted to speak to you ever so much.”

“Yes,” Fair replied, putting down the bag and consulting a time-table; “awfully sorry, but I have just heard that Mrs. Fair was unable to proceed to Paris this morning, and, of course, I shall be very anxious until I see her and learn the cause. I think you have met Miss Mettleby, Mrs. March?”

“Oh, how do you do?” smiled Mrs. March, giving Kate a warm hand grasp.

“Good morning, Mrs. March,” responded Kate, and then to Fair: “I think, if you don’t mind, sir, I’ll go along through the park by myself. We have some time, I think, before the train is due. Good morning.”

“Do,” urged Fair, and when Kate had disappeared he turned to Mrs. March not very cheerfully: “You wished to confess something or other to me? Do, if you love me, make it something uproariously funny—or else choose another father confessor. I’m a bit edgy this morning, you know.”

“Oh, I’m sure you will think it the merriest news,” replied Mrs. March, with beaming good nature. “Maxwell—I’m married!”

Fair looked at her, stupefied. One expression followed another on his face, and then, when he had secured his usual genial expression, he said: “Not really? Well, all I can say is—one man is happy. But explain.”

“Wasn’t it just like me to slip over to Brussels and be married quietly? You know I hate the regulation fuss. And heaven has given me the love of a man whom I am sure you will love and respect when you know him. All heart and soul and honor—a knight and a poet.”

“Believe me, my dear friend,” answered Fair, “I wish you all the happiness that your good heart deserves. When may we congratulate you in a public manner? And what are we to call you henceforth?”

“It will seem strange to call me by my new name, won’t it—and a foreign name, too? My husband’s name is Don Pablo Mendes, formerly of

Santiago de Cuba,” said Mrs. March, with a flush of happiness which blanched out and became the pallor of horror as she saw the effect on Fair.

He dropped the portmanteau, which he had picked up, stared as if stunned for a moment, and then with a tremendous effort to spare the wretched woman as long as possible, he said huskily: “I beg your pardon—the fact is, I am far from well—Good-bye!”

“I’m so sorry,” returned Mrs. March, satisfied that his singular conduct was really the result of a bad turn. “But tell me before you go, Maxwell—do you know my dear Spanish boy?”

“I can’t say that I do,” he stammered; “but really I shall miss my train—good-bye,” and before she could ask him anything more he was striding across the park.

“What strange behavior!” she said to herself as she watched him. “Maxwell of all men, too! The mirror of good form—and the one man who never fails to say the right thing at the right time. Ah, here he comes back to make the proper amends. Back so soon?” she asked as Fair rejoined her with his hat in his hand. “Forget something—or did you, like a good fellow, come back to say just one kind word?”

“Mrs. March,” he began, speaking with strange dignity and pain. “I have come back to implore your pardon. I lied to you. We shall never see each other again, and it was dastardly in me to try to shield myself from the horrible duty which as one of your oldest friends I owe you—the last thing, also, that I can ever do for you. You are a true woman and a great soul. Be great enough to face what I have now to tell you. I do know Pablo Mendes—and if you have not told any of your friends about your unspeakably deplorable marriage, for God’s sake do not tell them. You will understand why I say this, and bless me for saying it soon—you will thank me until your dying day. Your secret is, of course, sacred with me. Mrs. March, brace yourself now—life is a battle for us all—and victory is not for them that fight, but for them that bear—so hear me. You will never see your husband again. Give me your hand—so—are you ill? Courage now for a moment. Mendes is dead. I—Somebody, in there! Quick! Mrs. March has fainted!”

Not waiting to help carry her in, he bade Baggs tell Mr. Allyne and Mr. Travers to join him in town at once, and seeing that servants were already gone to fetch Lady Poynter, he sped along the avenue to overtake Miss Mettleby, whose skirts he saw through the shrubbery at some distance from the terrace. In ten minutes they were aboard the train.

CHAPTER XI

At about eight o'clock that evening Fair, who had dined with Allyne and Travers at the club, reached his own door and, letting himself in, waited for their arrival in the small smoking-room on the first floor of the deserted and gloomy mansion. As he opened the street door he thought that he heard hasty footsteps on one of the upper stories, but soon he was able to rid himself of the unpleasant fancy, and sat quietly reading until his friends should come.

This they did in a very few minutes—considerably to his relief—and the three groped their way up the dark stairs and along the passage to the library, which room Fair told them was to be the scene of their conference. As they peered in at the door the black woodwork of the library made the gloom seem greater than in the passage, and as they hesitated Fair said: "Strike a match, will you, Travers?"

"Right you are—if I don't break my neck first," answered Travers, finally managing to get the match lighted and holding it high over his head.

"There we are," said Fair. "Now I can find the electric light key."

He found it and turned on the current, flooding the room with light. The sudden translation from total darkness to brilliant light, and the general feeling of mystery and stealth with which the house seemed to be filled, gave all of the men an uncomfortable sense of being engaged upon uncanny business.

"I feel like a cross between a burglar and a blooming ass," said Allyne, to break the unbearable silence. "By Jove, Fair, my wealth is at your disposal, but I'll be hanged if you can borrow much more of my nervous energy! What's the beastly game, anyhow?"

“I do think,” added Travers, more seriously, “that we’ve followed you in the dark about as long as a decent regard for our feelings—as well as for your own interests—will permit. Seriously, old chap, I do not think we should allow you to go on in this way. Elucidate, like a good fellow.”

“On my honor, Dick,” replied Fair, speaking with great earnestness, “this is no fool’s errand that I have asked you and Allyne to undertake. It is the last favor that I shall ever ask you to do me. Sit down. I’ll go downstairs and see if I can’t scare up something to drink.”

“That’s the first rational thing you’ve said since yesterday,” said Allyne. “Go, by all means, old man, and make it brandy and soda.”

“Back in a moment,” answered Fair, disappearing.

“Honestly, Travers, what do you make of it?” asked Allyne when they were alone. “If it’s a joke he has carried it rather far. What is it?”

“Oh, Lord, I don’t know,” replied Travers wearily and with very genuine anxiety. “If it were any other man—but Fair is the coolest and sanest devil I ever knew. I don’t like this turn of affairs on my word. Money and women are the only two things that could bowl a chap over on his beam ends in this way, and Fair can show a clean slate under both of those heads—so I give it up. But I, for one, go no further.”

“Unless I am mistaken, his father or grandfather was mad,” whispered Allyne, pursing up his lips uncomfortably; “but I never thought Maxwell dippy—that is, you know, not unusually so. He is devilish queer.”

“In England,” answered Travers, with a sneer, “everyone is thought mad who manifests any trace of originality. In the city they think Fair a bit off his head because he does everything that sacred British methods decry—and grows rich at it. And in society they think him singular because he has such a childish way of telling the truth. You and I know that he makes friends in society just as he makes money in the city. No, I don’t think Fair is mad—I wish to heaven I could think so.”

Allyne was striding up and down the room by this time, and when he next reached Travers he stopped and said: “Confound it, Travers, he can’t have done anything so rum as all this melodramatic rot would make one think. Give him credit for too good taste for that, at least.”

“Oh, never fear,” replied Travers, rising; “I’ve made up my mind. I’ll give him half an hour more. If he does not chuck this mystery and give us the key in plain English, I’ll report the case to his solicitor and medical man.”

“Here, too,” grunted Allyne, with a nervous shrug of his shoulders. “What a creepy, deuced idiotic thing to bring us up here tonight! The house feels like a tomb! By George, I wouldn’t stop here alone for the world. Did you see that man across the way when we came in? He watched us as if we were a gang of coiners. Lord! If they were to— What was that?”

Travers, also, had heard the noise, whatever it was, and both men turned nervously toward the door and listened. It was repeated, but faintly.

“It sounded like footsteps on the floor above,” said Travers.

“But Fair said there is nobody in the house,” answered Allyne, adding, with a return of his usual spirits: “I say, Travers, just run upstairs and have a look round, will you, that’s a good fellow?”

“You go,” replied Travers, smiling, but more in earnest than he would have cared to admit. “You are younger than I, and—but here’s Fair.”

Fair came in, carrying a tray on which were a number of decanters and glasses, which he placed on the table before he saw with surprise that the others were evidently acting under a strain of some sort.

“I say, old man, were you upstairs a moment ago?” asked Travers, with a disquietingly anxious look.

“Upstairs?” asked Fair, with growing uneasiness. “Why, no. I was below—ever since I left you. Why?”

“Nothing,” answered Travers, trying to throw a careless tone into his words. “Allyne thought he heard—There it is again!”

All three had heard it this time—and all belied with their eyes the smile which they forced to their lips.

“Wind in the chimney,” muttered Fair, disavowing all belief in his own words by going, not to the fireplace, but to the door to listen. “There is nobody in the house, anyway,” he added, still listening at the door.

“It sounded like bare feet—Ugh—give us a drop of brandy,” growled Allyne, pretending to more alarm than he really felt.

Fair returned to the table after closing the door into the passage, and pouring a stiff drink for each of them, said, with a laugh: “Here you go. That will hearten you up a bit, Allyne. Why, you look as though you expected to see a ghost. Never fear, old chap. Something much more substantial than spirits is at the bottom of this cheerful occasion.”

“There was a beastly sly fellow over the way when we came in,” said Allyne as he sat on the end of the table to drink. “Why the deuce did he watch us like that?”

“He probably wants me,” answered Fair seriously, “although he does not yet know that it is I he wants. We can ask him to escort me to jail as we go out of the house presently.”

Travers put down his glass with a bang, spilling the liquor, jumped up and swung around at Fair, thoroughly disgusted and exasperated.

“Really, Fair,” he began, “I’ve had about enough of this. Aren’t you pressing your little joke a bit too far? I was just saying to Allyne that I would give you half an hour. At the end of that time I——”

Again there was the sound of footsteps above their heads, and Travers stopped and all three looked toward the door as the steps seemed to come down the stairs. Fair was the first to regain composure.

“You give me half an hour,” he said to Travers, “but I shall require only ten minutes. Have a cigar, and—damn it, Allyne, let up, you know. Lock the door if you like, but for heaven’s sake quit your funk.”

“Thanks awfully,” retorted Allyne, locking the door so quickly that Fair and Travers laughed genuinely this time. “There! Now we are cozy, aren’t we just? A corpse and an undertaker and a hangman are all we want to complete our merry little party.”

“Shut up, Allyne!” shouted Travers, watching Fair’s face. “Now, Fair, for the love of sanity—what’s the answer?”

Fair poured out another drink for himself, and pushing the bottles toward Travers, threw himself full length upon a lounge. Puffing slowly at his fresh cigar, he began speaking with perfect composure:

“You fellows remember a Cuban by the name of Mendes—the man of whom I have often spoken to you, do you not? You know—Don Pablo Mendes—a great chess player?”

“Certainly—you spoke of him only yesterday. Friend of Lopez? Yes—well, what of him?” asked Travers, and Fair turned his head toward Allyne, who seemed to be listening for noises and not to him.

“I saw you speak to him one night at the opera,” said Allyne, without taking his eyes from the door. “Looked like a twin brother of the devil—diamonds, yellow fingers, hair oil, et cetera. Proceed, to wit, go on.”

“Yes, that’s the man,” answered Fair, and then leaning over to flick the ashes from his cigar into the hearth, he added, without the slightest excitement or emotion: “Well—I murdered him yesterday, you know.”

“You are drunk,” sweetly remarked Travers, with a look of infinite relief, as of course Fair now was admitting that he had been twigging them.

“Murdered him, eh?” grunted Allyne, executing a series of manoeuvres that landed him on Fair’s chest. “Murdered a yellow cigarette twister, did you? What of that? Why, I strangled my grandmother last night.”

“By all that is holy,” Fair cried out hoarsely, “gentlemen, you sha’n’t go on in this way. If you will only allow me to tell my story, you will realize that I am a ruined man with death hanging over me, and, as my friends, I ask you to stand by me, to see that I face my fate and end my life in a way to prove that I was not altogether unworthy of two such friends. Will you do this?”

He turned his white, drawn face from one to the other beseechingly.

“Fair,” cried Travers, clutching his hand and speaking fast and like one who has passed beyond consternation into the very heart of abandonment, “if you are not mad, what does this mean? If you are in earnest—if this horrible thing is true—you know that Allyne and I would risk our lives to save yours, but why——?”

“Twenty times,” broke in Allyne, pushing Fair back into a seat. “We would risk twenty lives for you, old man; but if you have really rid the world of that unhung dog, why in the name of Mrs. Fair and the children, to say nothing of us and common sense, don’t you get away until we can get

your defense in order? Forgive my fool tongue, old man, for, of course, I could not believe that this was anything but some new sort of game. Did the blackguard attack you? Don't let the ugly business get on your nerves too much to let you see that this is no murder at all."

"Yes," put in Travers eagerly, groping through the dark to catch at any straw of hope or light. "And for God's sake leave the country until your solicitor can prepare your case. Come, now, explain."

"It's a simple story," began Fair more calmly now that he had got them to accept the situation. "The fool came here to extort blackmail—and I killed him. Mrs. Fair saw me, and, Travers, you saw my pistol, you remember—still warm and with one chamber discharged. The servants heard the shot. The man's body is still in the house, and nothing remains but to give myself up to the police. Lopez knows the history of my relations with his friend, and he will be only too glad to testify that I had threatened to kill Mendes, against whom I had a long-standing grudge. The case against me is complete, you see, so I prefer to end it all by surrendering myself at once."

"Not if we can stop you," shouted Travers fiercely. "And as for the pistol—unless you go regularly off your head and tell them that I saw it, they will never know it. And, of course, you know, your wife's testimony would not be taken against you, even if she should wish to give it."

"But she is not my wife," groaned Fair, looking up at him.

"What!" thundered Travers, significantly glancing at Allyne, who wheeled around to Fair and exclaimed: "Cæsar's ghost! Look here, Fair, you are rubbing it in rather too deep, you know."

"Oh, it will be a pretty story when it is told in the papers," muttered Fair, his hands thrust deep in his pockets and his legs stretched out in front of him.

"Perhaps it will," replied Travers, rising and going toward the door with his hat on, "but I don't propose to hear you tell it. My God, man, you can't expect us to hear it and then stand up and swear away your life! You're mad. My duty is clear. Good night. Allyne, ring me up at the club in an hour. This is—" He did not finish the sentence, but hurried to the door, which he had reached when Fair spoke.

“All right, old man,” he said, without turning to Travers, “if you choose to desert. I have faced tight places before. I’m game now.”

“No, hang it, Fair,” answered Travers, coming back from the door and confronting Fair, “you know that I will not leave you; but why must you ask Allyne and me to learn all this—when we could otherwise swear to the fact of your being what we have always known you to be—yes, know you to be now—for, by gad, you can’t get me to believe you.”

“Hang the swearing,” said Allyne, trying to laugh. “If they get me on the witness stand, I’ll let them know what I think of greasy foreigners, and my views as to sending them where they belong. Go on, Fair, and tell us what they did next.”

“Then sit down, Travers, and hear me out,” replied Fair, filling the three glasses and regaining an air of quiet.

“Blaze away,” answered Travers, dropping into a chair with resignation. “At the bottom of a hole one can’t fall lower—so go on.”

“Have a drink, both of you, and we’ll get on,” said Fair, and all three sipped their drink in silence for some minutes. Then Fair said:

“Many years ago the noble woman whom you know as Mrs. Fair was married to the wretched man whom I killed yesterday. She afterward discovered that he had a living wife, and she, of course, therefore, found herself a nameless outcast. She appealed to me, and for two reasons I offered her the protection of my name. I had loved her some years before, and I inherited from my fathers a sort of morbid craving to sacrifice my life to a cause or purpose which the reason and the prudence of all normally minded men would discountenance.”

“Surely wedding such a glorious woman as Mrs. Fair was scarcely what one could look at as a sacrifice of one’s life,” protested Travers when Fair paused for a moment.

“She is indeed a queen, a priceless woman,” murmured Fair quietly, “but her children are not my children—she never became my wife. She has been a sacred vocation to me, and while men envied me the love of such a wife, I was really living the life of a celibate because of a mad, but inexorable, fixed idea. You fail to understand this? So do I. I only know that nothing in heaven or earth could have deterred me from assuming the

position in which I have lived so long. This may be madness—but it is of the very essence of my being. And then I came to love another woman—and you may imagine what I suffered. But there was a satisfaction in it all which, of course, you men will be unable to comprehend. But, see the irony of fate. The only thing that made life possible has been dashed away from me. I lived supported by the thought that Janet and her children were saved from shame by my effacement, and now I must proclaim that they are not my flesh and blood, to shield them from the disgrace of being thought a murderer's kin. Isn't it horrible? But it is only fate's swift way of damning me for what I had just been so weak as to decide to do. I was about to let my love—the gnawing hunger of a real life—have way. I had decided, on this very day, to proclaim my love for— Fellows, for God's sake, never go back upon your destiny even if, as in my case, it should mean lifelong torture. After all, there may not be a hell after death, for there's one on this side of the grave—and I am in it.”

He dropped his head on the edge of the table. Allyne, whose heart was like a child's, could bear the sight of his agony no longer, and walked to the end of the room. Travers came over to Fair's side and laid his hand on his head.

“This is the most stupendous thing I ever heard of, Fair,” he said; “and if there is such a thing as justice, you shall not suffer.”

“There is a thing called justice,” replied Fair, looking up, “and therefore I must die.”

“Not if you will allow us to save you from yourself,” cried Allyne, returning to them. “My soul, man, no case can be made out against you unless you make it yourself. Do let us act for you. Counsel must be secured at once. Come, come, I know the very man.”

“Presently, presently,” answered Fair. “I telegraphed Marshall, my solicitor, that we would call at his chambers tonight at ten. But before we go I want you two to have the case in detail. I promise to be governed by you and Marshall when you have all the facts. That's reasonable.”

“Then there will be no difficulty, I promise you,” replied Allyne, with renewed good spirits. “Marshall has no romantic rubbish in his gray matter. Maxwell, you're a disembodied ghost of some crusader who hasn't heard

that Adam and Eve left Paradise some time ago for good. I drink to you, Sir Altruist.”

“Thanks, old chap,” said Fair, with moistening eyes.

“By Jove, I feel better,” exclaimed Travers, stretching his arms and holding Fair by both shoulders. “I’d like to be worthy of you, Fair.”

“Oh, come, I say, Dick,” protested Fair. “In a few weeks it will be deucedly awkward to be asked if you were not a friend of mine.”

“We’ll see about that,” retorted Travers defiantly. “Now, the details.”

While they sat, Fair walked to and fro before them with folded arms.

“Well,” he began, “for five years I was happy in seeing Janet and her two boys safe under the shadow of my broken heart; but about a year ago Lopez came to me and told me that some disreputable Cuban acquaintances of his had learned poor Janet’s secret, and that a paltry hundred pounds would keep them quiet. I, of course, sent him about his business and reported the matter to the police. The Cubans quietly got hold of Janet—just how I was never quite sure—and played upon her love for her children until they extorted one sum after another from her without my knowledge. At last they demanded a sum so vast that the poor girl was compelled to appeal to me. I told her to ignore their letters, and had them shadowed by detectives. We discovered that Mendes himself was at the head of a gang whose plan was to get the secrets of rich families for blackmailing purposes, his private fortune having been gambled away on the Continent. More than once Lopez or Mendes has ruined a woman of standing, and while pretending to remain a devoted lover, has told the other, who would at once begin the extortion of hush money. Mendes came here yesterday—and I shot him like a dog. Now Lopez will show that I was the paramour of my victim’s wife, and that my crime followed naturally upon Mendes tracking his wife to my house, and there learning that I had palmed her off as my wife for years. Those are the facts. Complete, wouldn’t you say?”

Allyne, always more susceptible to all emotions than Travers, frankly looked the horror he felt as he began to realize the truly desperate situation in which Fair now was; but Travers, after thinking for a few moments in silence, spoke out bravely: “Confound it, man, isn’t it a principle of law that a man is innocent until proven guilty? Who knows that you killed the

scoundrel? And if suspicion should be drawn toward you, why, then let them prove the charge if they can. And, anyhow, can't you plead that you killed him while protecting Mrs. Fair? The blackguard's character will make it difficult for Lopez to prove Mendes's alleged relations with Janet. I'd be hanged if I'd be hanged just for the fun of it."

"Ah, but my dear fellow," returned Fair, arguing out his point in his customary cool way, "you forget. It is known that he came to this house. It is known that he did not leave it. His body, my dear friend—his corpse, you know, is a nasty bit of evidence that we can't get rid of."

"Do you mean to say," answered Travers, face to face with the calm man, "do you mean to tell us that the—that the chap's corpse, you know, was in the house last night while you and Janet were entertaining us? If you are the man you are, surely no woman at any rate could have stood that."

"Ah, you don't know her," smiled Fair. "To save me—yes, to please me even, that woman would do anything—bear anything."

"And she jolly well ought to," put in Allyne, slapping Fair's back, and then with a nervous look about the room: "I say, what did you do with the—with that infernal thing, you know?"

"With the body?" asked Fair, with entire freedom from excitement. "It is here yet."

"Here?" cried Allyne angrily and sick with perplexity.

"In the house now?" asked Travers, scowling but not believing.

"Certainly," replied Fair quietly. "What could I have done with it last night? You all came in within a few minutes of the deed. Yes, it is in the house—it is in this room now."

"The devil you say!" exclaimed Allyne, facing about as if he feared that the dreadful thing was back of him somewhere.

"Rather a gruesome thing to joke about, isn't it?" asked Travers sadly, and still utterly unable to believe what he heard.

"Horrible—but true," answered Fair, with disconcerting calmness as he walked slowly over toward the chest by the fireplace, while Allyne and Travers watched him breathlessly. "It is here."

He seemed to take an eternity to do whatever it was that he intended to do, but finally as he stood over the chest he said, looking from one to the other: "If a man ever had a more terrible guest under his roof than mine, I pity him. Look!"

As he said this he suddenly stooped and raised the lid of the chest. The two now thoroughly horrified men were standing on either side of him. They all peered, shuddering, into the chest. *It was empty.*

"Gone?" moaned Fair, for the first time betraying uncontrolled horror.

"That settles it," shouted Travers, delirious with joy. "You see, you have been dreaming this whole cursed nightmare."

Meanwhile Allyne was running about the room, swinging a chair over his head and shouting like a madman. Coming back to Fair he sang out with hysterical laughter: "Rest and quiet—rest—and qui—et, sir—that's what we need. Ice on the head, hot water at the feet—and a month at sea. May I have the pleasure?" Before Fair could stop him he had waltzed him around the room. At last Fair broke away from him, and holding his hands to his splitting head, he brought them back to a full realization of the awful truth by the expression on his face.

"Hush!" he cried to Allyne. "For God's sake, Allyne, stop it. I swear on my honor that I put it into this chest. It has been discovered by somebody and removed today. I sat up all night in this room, so that it must have been taken away today. Come. That's the end. I might as well surrender without delay."

"But wait, wait," broke in Travers. "Who knew of it's being here? Who could have discovered it? Now don't be rash. Let us think before we act. How could it have been found? That is, if it ever was here."

"Oh, there are a thousand ways in which it might have been found," answered Fair, ignoring his unbelief.

"Did Mrs. Fair know about it?" asked Allyne, and was startled by the effect of his question.

Fair sprang up, thought for a moment, and then exclaimed: "By heaven, Allyne, that's it. My God! Do you know what that means?" He clenched his hands and glared at them, stupefied with grief.

“It means,” said Travers, “that she has disposed of it. It means that your chances are a thousand-fold better than before.”

“No, no!” shrieked Fair. “It means—but no—she could not be so unspeakably unkind to the children as to try to prove that she killed him. No. I give it up, then. Come, come, I can’t bear this much longer. I must get the relief of surrendering myself. Come.”

“If you attempt to give yourself up, by gad, I’ll have you locked up for a dangerous lunatic,” said Travers, with strange new determination as he noticed how rapidly Fair was breaking. “I tell you, Fair, that— Hark! That was that beastly footstep again. I’m not a coward, but this— Hark!”

They listened with tense faces. Again the sound. And again.

“That was certainly a footstep—upstairs, too,” whispered Travers. “Come Fair, this is no place for you now. Allyne, if he refuses to come with us, help me to force him out of this hole. Hear me? Now come.”

Fair struggled away from their grasp and ran to the door, saying: “I will go with you, but I am going upstairs first—alone.”

“You are going to do nothing of the sort,” replied Travers, again grasping his arm and pulling him back.

“Don’t come with me, please,” pleaded Fair; “I’ll be only a minute.”

“Never fear,” answered Allyne at his other arm; “I wouldn’t go up there with anybody—but you are not going up, either. Out with him, Travers.”

“Yes, come, old man,” begged Travers earnestly. “Notify the police that thieves are in the house, call the fire brigade—anything, but don’t be a fool and expose yourself to you don’t know what danger. Come!”

They strained at him, and presently Fair gave in, saying: “Very well, it is getting a bit on my nerves, I confess. Go to the top of the stairs before I turn out the light. All ready? There.”

He turned out the light and felt his way to the stairs, down which Travers and Allyne preceded him, and the next moment they stepped out into the blessed coolness and relief of the street.

The instant that Fair turned out the light in the library a man stole quickly in from the adjoining study and groped his way to the chest in the

total darkness. Just after the street door slammed two persons, who had been listening on the floor above the library, began whispering as they descended the stairs and approached that room.

Meanwhile Fair and his two friends called a cab and drove off eastward and soon were set down in the Strand near the law courts, proposing to make the remainder of their journey on foot.

CHAPTER XII

At sixty Marshall, Maxwell Fair's solicitor, found himself a bachelor, a solicitor with an income of twenty thousand pounds and a very decided attachment for his few wealthy clients and an aversion to new ones. Long past the necessity of accepting new clients, Marshall, like so many old Templars, asked for nothing but to be let alone among his books and cronies in the Inner Temple, and allowed to spend his brief holidays at his shooting-box by the Norfolk Broads.

It was with no very good grace, therefore, that he returned to town on that wet Sunday in response to an absurdly urgent telegram from Fair, whose usual business was exactly to old Marshall's taste, since it consisted of drawing perfunctory documents having to do with real estate, and never involving critical issues of any sort.

But the snug thousands which Fair's enormous interests brought to him annually made it impolitic to ignore his most uncharacteristic bit of hysterics. Accordingly, after dining in gloomy solitude at his quiet little chop-house, Marshall surprised his laundress by turning up at his chambers in the Inner Temple at nine o'clock on Sunday evening in a crusty temper. Fair would arrive at ten, so Marshall settled down for an hour with Browne's "Religio Medici," when to an irritating knock he sang out a curt, "Come in! come in!" and a lady entered.

"Mr. Marshall, I believe?" said the lady.

"Yes, madam," replied Marshall, rising; "but my business hours—In fact, I am engaged—just leaving, you know—and, besides, I expect a gentleman by appointment at any moment."

“I venture to think that, whatever his business may be, you will consider my case the one requiring immediate attention,” quietly answered the lady, seating herself, although the old solicitor had not suggested her doing so.

“Case? Case?” exclaimed Marshall. “Why, bless us all, I haven’t taken any new cases in years. Couldn’t think of it, madam.”

“But,” returned the lady vehemently, “a crime has been committed, and I——”

“Crime, you say?” shouted Marshall as if he were being insulted. “Good heavens, my good woman, do you imagine that I am interested in crime?”

“But Mr. Fair has, I think, some claim upon your advice and counsel?” replied the lady, with the assurance of one who trumps an ace.

“Mr. Fair has certainly every claim upon me,” answered Marshall, sitting down and becoming the cautious and alert barrister at once, “and I trust you will appreciate my unwillingness to discuss anything concerning my clients with strangers.”

“Strangers?” cried the woman, with such eagerness that Marshall began to fear all sorts of possible female entanglement. “Why, sir, I am his—I mean, I know Mr. Fair very well.”

“Really, madam,” protested the solicitor, now thoroughly certain that this woman and the urgent telegram were unpleasantly related. “Really, you know, I must beg you will call at some other time. Allow me to see you to your carriage.”

“It will be necessary for you to hear me,” replied the lady firmly. “I see that you do not remember me, but we have met before. You were at Mr. Fair’s place in Norfolk about five years ago. You were presented to Mrs. Maxwell Fair. Well, I am she.”

“Upon my word, dear madam,” exclaimed Marshall, jumping up, “I did, indeed, fail to recognize you. That’s a sign I’m getting old, is it not? This is an honor, really.”

“Alas, sir, I fear that you will think it anything but that,” replied Mrs. Fair nervously. “I desire to state before going into the matter which brought me here that I am not the wife of Mr. Maxwell Fair—Mr. Fair never married. I see that this fills you with amazement—pray, don’t misjudge

him. Believe me, Mr. Fair deserves your deepest regard and admiration. My children are not his children. He has been a father, a brother, a chivalrous protector—that is all.”

“But, my dear madam, this is quite beyond belief,” stammered the solicitor.

“It is the truth, as you will learn presently from him. I came here simply to tell you that, whatever Mr. Fair may say, my crime does not involve him, as it would of course do if I were his wife. Now for my story.”

“I must remind you, Mrs. Fair,” interrupted Marshall sternly, “that if your crime, as you choose to call it, is to the prejudice to Mr. Fair, I must decline to hear your statement, as, in the event of any issue arising, I must, of course, act on his and not on your behalf.”

“But it is not a question as between Mr. Fair and me,” answered Mrs. Fair. “The simple and horrible fact is I killed a man yesterday—a Cuban named Pablo Mendes—a wretch who had blasted my life. He dared to pursue me even into my protector’s house. He heaped the foulest insults upon Mr. Fair and the children and me—so, in a mad access of frenzy and horror, I shot and instantly killed him. I desire to give myself up to the police. What shall I do, sir?”

Marshall was walking up and down now with his hands clasped behind his back, and for several moments he did not answer. Then he said as he stood confronting her: “If there were no witnesses, and the man can be proved to have been your traducer and persecutor, it would not be difficult to set up a powerful defense. He invaded your house, demanded money, threatened you—or, wait, wait—I have it! On failing to extort the money, he attacked you, and you, having anticipated just such an assault, had taken the precaution to be armed—and shot him down for the blackguard he was. Why, my dear Mrs. Fair, a jury would acquit you without leaving the courtroom.”

“Ah, but the facts are not as you state them,” cried Mrs. Fair, rising and grasping the old man’s hand feverishly. “There was no attack. And, oh, sir, I did it! I did it! I say I! Take me to the police—and make them believe that it was I—or—or—well, I can’t tell you now, but unless you make them

believe me, something most horrible will occur. Do this—do this, Mr. Marshall, for God's sake."

"But we must consider this from every side," replied Marshall, getting Mrs. Fair into a seat again and continuing his walk. "Give me a little time to think it out. Could you manage to return early in the morning? You are evidently very ill. Rest will refresh you—and, moreover, nothing can be done wisely tonight."

"Very well—but tell me that you believe me—tell me that," implored Mrs. Fair, rising to go. She was indeed nearly at the end.

"Of course I must accept your statement," answered Marshall with much gentleness. "Yet it by no means follows that the consequences need be what you apprehend. Allow me to show you down to your carriage."

"Here is my statement," she said as she placed a document on the table and took the arm which the old solicitor offered her. "Act upon it, sir—it is a woman's last story—written in her blood and that of her children. Act upon it, sir, act upon it—no matter what Mr. Fair says."

"I promise nothing, madam," replied Marshall, leading her to the door. "You are in no condition to take the best or the wisest view of this most incredible affair. Depend upon it, I shall act only for your best interest and that of Mr. Fair. Come."

He led her down to the street and, after seeing her safely to her carriage, slowly retraced his steps into the quiet precincts of the Temple. When about to enter the door at the foot of his worn stairs, two men came walking quickly from the thoroughfare without, and one of them, recognizing him, said: "This is my friend Allyne—Lord Linklater's son, you know, Mr. Marshall. May we have a few minutes of your time?—very urgent matter!"

"Travers?" said Marshall as he caught sight of his face under the gas lamp. "What on earth brings you to this old graveyard at this time? I know your honored father, Lord Linklater, Mr. Allyne. Come up, gentlemen."

Once more the solicitor entertained no very pleasant conjectures as to the purpose of his visitors, whom he knew to be close personal friends of Maxwell Fair's. The whole departure was as upsetting as it was sudden.

“Rather a beastly time to intrude upon you, Mr. Marshall,” said Travers apologetically as they seated themselves in Marshall’s library.

“And on the beastliest sort of business,” put in Allyne.

Mr. Marshall, finding nothing particular to say, remained silent.

“We were asked to come here this evening by Mr. Maxwell Fair,” said Travers, explaining. “He will be here at ten o’clock.”

“Yes?” softly remarked the imperturbable lawyer; “then we will wait.”

“The deuce you say,” protested Allyne in spite of the signal from Travers. “Why, we came ahead of him expressly.”

“Shut up, Allyne,” broke in Travers. “Fair knows that we are here, Mr. Marshall—in fact, we came rather at his suggestion. He gave us full permission to speak to you.”

“I shall, of course, be very glad to hear anything that you may deem it desirable to tell me. Pray proceed,” said Marshall not very eagerly.

“Well, then, sir, it is with the utmost sorrow that we have to tell you that we are convinced poor Fair has become suddenly insane on a certain dreadful subject,” went on Travers, irritated by Marshall’s manner.

“Ah, there we shall have to move very slowly—very—slowly,” said Marshall when Travers stopped. “Mr. Fair is thought to be of unsound mind on a number of subjects by a number of persons. He is so successful, you know—so original, that others who are merely British fail to understand him. Moreover, Fair is unselfish, sympathetic, altruistic—and of course appears mad to our smug, hoggish world.”

“Damn it,” exclaimed Allyne, “that’s all, as you say, but the dear fellow has gone clean off his head this time, you know. You just wait until Travers gives you the details.”

“I am waiting,” answered Marshall calmly.

“Before we come to that,” said Travers in answer to Marshall’s look, “I believe, Mr. Marshall, that you knew Fair’s father, did you not?”

“Intimately—and his grandfather also. What of them?”

“What sort were they?”

“Very much like Fair—both were thought mad.”

“In what way? They were men of tremendous will power and fixity of purpose, were they not? I have reason for asking.”

“Quite so. They were idealists, dreamers, monomaniacs—but why?”

“I thought as much. The stuff martyrs are made of. Tell us about them, if you don’t mind, Mr. Marshall,” said Travers, unaccountably insistent.

“Very well,” began Marshall, really glad to be able thus to kill time until Fair arrived. “His grandfather got it into his head that he was bound in honor to extricate his publishers—he was an author, you know—from their financial difficulties, although it was clearly proved in court that they had only their own speculative folly to thank for their failure. Well, poor old Fair lost his all and even mortgaged the Norfolk estates. In spite of his solicitors, he pressed forward eagerly to ruin, and died perfectly happy in the knowledge that he had lived up to his ideal. Mad—stark mad!”

“By Jove, it sounds like Fair all over again!” exclaimed Allyne.

“Yes,” went on the old lawyer, warming to his favorite work of decrying idealism of every sort. “Yes, gentlemen, and our Mr. Fair’s father was no better than his grandfather. He spent the first half of his life in freeing the estates from their heavy encumbrances—and the second half in throwing away all that he had accumulated in the first. His specialty was young geniuses—any kind of young genius, musical, literary, artistic. Any chap who could not get an editor to print his stuff could count on Fair bringing out an *édition de luxe* at his own expense. And any young woman had but to get her mother to tell him with tears in her eyes that she had wonderful musical promise and away she would go to Germany to be educated—of course at Fair’s expense. You probably know that he died in lodgings in Mile End, where he had removed in order to live among those whom he, poor old dreamer, imagined would appreciate his sympathy. He left our Mr. Fair nothing but the estates heavily mortgaged again.”

“And Maxwell is a chip of the old block,” commented Travers when the solicitor stopped. “But Mr. Marshall, he has done more than either his father or grandfather in the way of self-effacement. His life is one long tragedy for an idea. That is bad enough. But now he proposes actually to destroy himself for it. Unless we can prevent it, he will die.”

“Good heavens,” cried Marshall, unable to treat the terrible intensity on Travers’s face with his customary calmness. “It’s not quite so bad as that. What, in the name of reason, is the man about now?”

“Listen,” said Travers, glad to have at last roused the stoical man of law from his leathery, noncommittal expression, “Fair declares that he has committed a crime which will send him to the gallows— Why, what ails you?”

Travers stopped and stared at the lawyer, who was strangely delighted by his last few words. Marshall’s acute mind had evidently been scouting.

“Nothing,” replied Marshall, regaining his quiet manner; “I was thinking of a similar case that once came to my notice. Go on.”

“There is no evidence against him, and yet the wretched victim of his own high-flown notions is determined to go ahead to destruction. For God’s sake, sir, help us to prevent this, even by placing him in a madhouse.” Travers saw that his words touched the old man, but that professional caution and habitual reserve were restraining him from avowing his purpose, whatever it might be.

This angered Allyne, who broke in with the sneering comment: “The law keeps no end of rascals from getting their richly deserved medicine. I think it’s a jolly beastly outrage if it can’t prevent an innocent man from hanging himself.”

“The ways of the law,” answered Marshall, with cold judicial accent, “the ways of the law, Mr. Allyne, are not as our ways. The law proceeds without sentiment or bias, and must go straight to its object in the light of fact.”

“But, I tell you, the facts can’t be as Fair states them to be, don’t you know,” retorted Allyne hotly, galled by the lawyer’s coolness and formality.

“Then Mr. Fair has nothing to fear,” quietly replied Marshall. “It is ten o’clock. Fair is a punctual man—he will be here immediately. Suppose that we allow him to explain himself.”

“I’ll be hanged if I will let him go too far. Why, gentlemen, this is monstrous! Do you mean to say, Marshall, that you——?”

A knock interrupted Allyne, and immediately Fair came in, looking not at all as though he could possibly be the subject of his friend's anxiety.

"I'm awfully sorry," Fair began, "to learn from your laundress, Marshall, that my telegram brought you back to town from the country. I promise you it won't happen again."

"Nonsense," returned Marshall, studying Fair closely, "I was only too glad of an excuse to come back to town. You know, we old Templars don't enjoy the country—been caged here too long for that. Sit down, dear fellow. What can I get up for you—sherry?"

"Thanks, nothing for me. Perhaps the others——"

"Lord, no!" roared Allyne before Marshall could ask.

"Well, then, to the point," said Fair, seating himself calmly and lighting a cigar with the air of a director of a company about to discuss the treasurer's report. "Travers has told you, Marshall?"

"Nothing," answered the solicitor. "We were discussing peculiarities of temperament. I was just telling your friends what people used to say of your father. You know, we are all mad on some subject."

"I see," replied Fair, smiling. "Allyne has mentioned madness and madhouses, I should say, about once every five minutes all day long."

"Yes, and we mean it," thundered Allyne. "At it now. This is rum."

"I can put the facts before you in a word, Marshall," said Fair.

"Do so. I am all attention," returned the lawyer, settling back into his chair with a puzzling look, in which there was certainly a trace of amusement not easily explained.

"Some Cuban gentlemen have been extorting blackmail from certain aristocratic families," went on Fair in a monotone, "and they had, without my knowledge, frightened Mrs. Fair into paying them considerable sums. The leader of the gang, one Pablo Mendes, came to my house yesterday, and finding him in the library with Mrs. Fair I killed him."

"Proceed," said Marshall when Fair paused to note the effect of his announcement, speaking with so much coolness that Fair jumped up and went on fiercely: "I tell you, I shot him down like a dog—murdered him in

cold blood. The servants heard the report of the pistol. Travers came in a moment after the shooting and saw the pistol still warm. I hid the man's body in a chest in the library, from which it was taken by somebody today—so any effort on my part to delay the hand of justice would be ridiculous. What shall I do?"

"Nothing!" exclaimed Marshall. Then he added, as if regretting the unguarded word: "That is, I can't advise you until I know more. Go on."

"That's the game, Marshall," put in Allyne, pleased by the lawyer's manifest incredulity. "Fair, you idiot, do you fancy that everybody has gone off his head just because you have?"

"Oh, please, Mr. Allyne," said Marshall deprecatingly.

"You take this rather coolly, I must say, Marshall," remarked Fair when Travers had succeeded in pushing Allyne into a chair.

"I find coolness conducive to clear thinking," replied Marshall.

"Well, then, I have nothing further to say. I have murdered a man. I have neither the heart nor the wish to set up a defense. Were I to clear myself by technicalities, it would become the duty of the police to try to establish the guilt of someone else. Would you have me sit by quietly, while they drew the net of skilfully devised circumstantial evidence around some innocent person? And to whom else could suspicion point? My servants—or, God help her, the woman who is known as my wife, and who is the noblest soul I ever met? If you cannot meet my arguments, I shall go at once to the police and surrender myself."

"There will be plenty of time for all that," replied Marshall, showing so little feeling that Allyne was on the point of breaking out again. "The police would not believe your story, I fear. You see, my dear fellow, your case is by no means unique. Only a very little while ago one very much like it was brought to my attention. A murder—or at all events, a death, had occurred. Suspicion pointed strongly to one of two persons—a gentleman of eccentric character, and the woman whom he had loved in early youth. Now mark the dramatic interest. Each of them confessed the crime to save the other, but, of course, as they both could not have been guilty, the court refused to entertain the charge against either. There was no evidence except the bogus confession of the two. I mention this case only to show you that too hasty

action on your part now may spoil everything—and you may not be allowed the luxury of hanging.”

“But, Marshall,” said Fair, “the cases are not even remotely similar. Others will testify that I had the most powerful motives for my crime, and, unless I should be dastard enough to lie, nobody else can be suspected. Lopez knows that Mendes was my enemy. Janet knows that I was in the room when the murder was done. Travers knows that a pistol, which he identified as mine, had been discharged a few minutes before he saw me—at the very time that the servants heard the report in the library. Moreover, somebody discovered the body of my victim where I had hid it. On top of all this I confess the awful fact. What more can the law possibly require? You believe what I tell you, do you not?”

“Not one word of it!” fairly cried Marshall.

“Marshall,” Fair replied with terrible earnestness, “you say you doubt my word. Such a statement must be explained.”

“Certainly,” returned Marshall, now thoroughly in control of his feelings. “I will explain. I doubt your story because of its inherent improbability. Further, I doubt it because I knew your father, because I know yourself, and am aware that not even a shameful death on the gibbet could deter you from any purpose which you had come to think your destiny. Again, I doubt it because I know who the real murderer of Mendes is.”

The three men who heard these last slow, calm words sprang to their feet together, Fair quivering with a nameless horror, and his two friends delirious with joy.

Fair steadied himself against the lawyer’s table and said: “Marshall, this is not the time when you can play with me. I tell you to your face, that when you say that you know who the murderer is, you lie.”

The old man showed how deeply the insult cut into him, and facing the young man with his own face as white as Fair’s, he retorted: “Your father’s son can go very far with me, but no man can give me the lie. Recall that word, Fair.”

Travers looked imploringly at Fair as he replied.

“I do recall it—and beg your pardon,” said Fair eagerly. “I also demand an explanation of your singular conduct.”

“If you will all sit down,” replied the solicitor, “I will prove that I am right. But before I do so I want to say that in all my life I never heard of such sublime devotion, such utterly disinterested heroism. Gentlemen, nothing will ever be more of an honor to us than to be called the friends of Maxwell Fair.”

“Hear, hear!” shouted Allyne, but Travers said quietly to Marshall: “I fear this is scarcely kind of you just now—look at his face.”

The old lawyer looked at Fair, and going over to him grasped his hand.

“Forgive me, boy,” he said, “but I meant each word. To end this dreadful business I have merely to state that the unhappy creature who sent the scoundrel to his doom came here not an hour ago and made a full confession.”

“And on my honor I swear that every word she said was false,” said Fair.

“You, at least, believe me?” asked Marshall, turning to Travers.

“Most assuredly,” replied Travers.

Fair wheeled round at him, saying: “My God, are you men English gentlemen and going to allow an innocent woman to be hanged in order to save me?”

“I seem to hear your father speak in you,” remarked Marshall, “yet there is this difference, Fair. He would have died for a great purpose, but never for a lie or to defeat the ends of justice.”

Fair winced at this, and Travers said: “That’s the line, Marshall.”

“Not a word he has said can move me,” went on Fair, rising. “I want no man’s forced friendship. I have decided on a course. You choose to allow me to pursue it alone. Good-bye.”

He spoke with such feeling, and moved toward the door with so much majesty, that none of them attempted to stop him.

Before he reached the door it was opened and a closely cropped head appeared, and a soft, insinuating cockney voice said: "Beg pardon, I'm sure. Ferret, gentlemen; Ferret, of Scotland Yard."

"You see, Marshall, others are not as incredulous as you. I am the man you want, Mr. Ferret," said Fair as the detective came in and sat down.

"I'll attend to you, sir, in a minute," replied Ferret jauntily. "Perhaps these gentlemen will try a cigar in the gardens for a few minutes."

"Oh, never mind them," quickly returned Fair; "they know all. Proceed."

"But you see, sir, they *don't* know all," replied Ferret.

"I think, Fair, that we would better let this man speak to you alone," said Marshall, rising.

Ferret interposed: "I shall ask you to stop, if you don't mind, Mr. Marshall."

"As you like," answered Marshall.

Travers and Allyne went downstairs after shaking Fair's hand with very much mixed feelings.

Marshall and Fair turned to Ferret when the door was closed, and Fair said sternly: "I see that you have been rather impudently examining that sworn statement on the table there. It will save time if I tell you that it is false. The lady wrote it under a nervous strain. It is totally false."

"Sure. It's just as false as your own statement, Mr. Fair," replied Ferret, winking knowingly at the solicitor, who failed to appreciate the fellow's humor and resented his apparently unconscionable impertinence.

"What the devil do you mean?" asked Marshall angrily, yet with relief.

"I mean," answered the cool one, "that, thanks to my little chum, it now becomes my painful duty to admit that I suspected Mr. Fair until about two hours ago. I now know that Mrs. Fair's statement is false—and likewise Mr. Fair's also. It's the other gent's statement that is the true one."

"The other gentleman's statement?" asked Fair fiercely. "Why, man, there was no other man in the room when the shot was fired."

“Oh, I say, come now, Mr. Fair,” smilingly protested Ferret. “The gent as fired the shot was there, you know. You see, Mr. Marshall, it was this way. Mendes had threatened Mrs. Fair, and she went out and got the pistol, and at that moment Mr. Fair came into the room. Mendes shot himself, and Mr. Fair, hearing the shot and seeing the smoking pistol in Mrs. Fair’s hand, snatched it away from her and declared that it was he and not her that did the killing. She came here tonight and swore it was her, and now he comes and swears it was him. But Mendes swore just as he was dying that it was himself—and the priest will testify to that.”

“But, my heavens, man, Mendes died at once. I hid his body in——”

“In the chest,” interrupted the detective, grinning. “Yes, I know all about that. But, you see, Mendes did not die. He came to while you were at dinner. Our fellows followed him to his lodgings in Soho—and today my chum got hold of a letter that gave her the address, and she and I were with him when he died an hour ago—yes, and Mrs. Fair is there now.”

While he was speaking Fair sank back into his chair, as if unconscious of what was passing, but when Ferret paused he sprang up, crying, “Marshall, did you ever hear of anything so unspeakably glorious as Janet’s devotion?”

“Yes—once,” answered Marshall, with streaming eyes. “Your own, Fair.”

“But, Ferret,” went on Fair, when he had recovered his voice, “who is the chum who so materially assisted you? And where is Mrs. Fair now?”

“Mrs. Fair is by Mendes’s bedside. My chum is——”

The door opened and Kate Mettleby came hurrying in, breathless and worn. Ferret finished by saying: “My chum, gentlemen.”

“Oh, Mr. Fair,” began Kate, after Fair had presented Marshall to her with a word of explanation, “have you heard? Janet is with him—with Señor Mendes—it was awful—it was unbearably touching.”

“He is the father of her children, Kate,” said Fair gently, when Marshall and Ferret quietly stole out, leaving them together.

“Yes, I know—and—Maxwell—there is something—oh, how can I tell you? She came in and knelt by his bed with his head in her arms when the

priest told her that he was dead. She knelt there half an hour, and when it was time for us to start to come here to meet you—Maxwell, can you bear it?—when I went and touched her shoulder and told her to come away—she—was dead.”

Kate’s head fell upon her folded arms on the table and her body shook with the strain of the awful day’s events. Fair suffered her to cry herself into a quieter state. Then he stooped and laying his hand on her head, he said: “Kate, the children have no mother now.”

THE END

All Gain

TAPESON—How much did he make out of that stock company he formed?

TICKERLY—All that was put into it.

Educational Department

THERE are thousands of boys and girls, some in the schools and colleges, some not, who are anxious to learn to develop themselves and RISE. Many, many things they yearn to know which the class-room teachers do not teach. Many a subject they are eager to study, if somebody will but show the way. Often there are speeches to be made, essays to be written, debates to be prepared, and the boys and girls simply do not know how to start about it. For instance, they are suddenly required to write or speak on the question: "Should the Government own and operate the railroads?"

They have never read anything about it, perhaps. Therefore they inquire: "Where can we get some literature on the subject?" These young people do not want someone else to write their speeches or essays; they want nothing more than to be told where to get the materials to work with—the data upon which to construct their own argument.

When I was a boy I felt the need of that kind of help very keenly. How was I to know what books contained the information sought? Who could tell me? I soon found that teachers did not love to be bored by inquiries of that character, and therefore I had to browse around in the library at random for what was wanted. If the book needed was there, I generally found it, after wasting much time in the search. If it was not there, as frequently happened, I was at my row's end. I had to debate without the full preparation which should have been made.

To help out many a student who may be troubled as I used to be, I am going to improvise and conduct in this Magazine a modest little Educational Department. Primarily it is meant for the young people. But the rule will be made as flexible as I feel like making it. Age limits are not fair—no matter whether Osler was joking or not. It is not my plan or purpose to write anybody's speech or essay; but, where there is a subject of real importance to be discussed by word or pen, I am willing to direct the preparation of the student by telling him or her where the necessary information can be had. It

would, perhaps, not be improper for me to suggest some general ideas on the subject to be discussed—these ideas to be worked out and put in form by the student. Often I may render good service to the boys and girls by telling them where the books they need can be bought at the lowest price. It took me many years to learn how to buy books, and it is a thing worth knowing—unless you have more money than I ever had.

The letters written to me in this department will be published as written; but the names of the writers will be withheld. Therefore, no correspondent need be embarrassed in making inquiries. My replies will be given in the Magazine.

Hereafter all letters asking for information—historical, literary, political, economic—will be answered through the EDUCATIONAL DEPARTMENT.

T. E. W.

UNIVERSITY SCHOOL, STONE MOUNTAIN, GA., April 17, 1905.

Hon. Thos. E. Watson, Thomson, Ga.

DEAR SIR: Would you kindly contribute to your magazine an article something like this:

“Should a young man enter politics?”

I have always had a strong desire to enter politics, and have thought the matter over a long time, but have as yet failed to reach a conclusion. If you can do me the very great favor to advise me on this line you may feel assured of my hearty appreciation.

Faithfully your friend,

C—— W——.

It all depends on the motive. A young man who feels the inclination to enter politics for the purpose of contributing his share to honest administration should, by all means, do so.

Government does not take care of itself any more than a cotton crop does. Both require cultivation, management, head-work and hand-work.

We can never have good government unless good men become interested in politics. Perhaps there is not a nobler calling known to man than that of working for the public welfare in matters governmental—and this is politics.

A high-minded, warm-hearted philanthropist, like Mr. J. G. Phelps-Stokes, of New York, acts admirably when he ministers to the poor in the slums; but his work is still more effective when he gives his thought and his work to the removal of those abuses of government which produce the greater part of the miseries of those slums.

The grandest task which human intellect can set for itself today is the redemption of the government from the usurpers who have used the machinery of government to enrich themselves and to plunder their less fortunate brothers.

It is true that Henry Clay advised his sons, “Be dogs rather than politicians,” but this exclamation was made when Mr. Clay was in a fury of disappointment because he could not get to be President.

It is true that John C. Calhoun and Daniel Webster died broken and disappointed men, but Mr. Webster had also set his heart upon being President, and Mr. Calhoun had devoted himself to an impossible program.

If a young man enters politics for the mere sake of getting office or personal advancement, his motives are sordid, and his life will be worth nothing to his fellow-man and nothing creditable to himself; but, if in conjunction with honorable ambition, he entertains the earnest desire to be useful to the community in which he lives by exercising his energies in political work, there is a glorious field for him.

If this combination of motives inspires you, my young friend, by all means yield to your inclination and “enter politics.”

DICKINSON COLLEGE, CARLISLE, PA., April 1, 1905.

Mr. Thomas Watson, 121 West Forty-second Street, New York City.

DEAR SIR: Being in the midst of preparations for a scholastic debate to be held here on the —th, kindly permit me to ask your views on the following: Our question is, “*Resolved*, that the Government should own and control all the railway lines.”

What, in your opinion, are the strongest arguments to sustain the affirmative side of this question?

Thanking you for this favor, I remain,

Very respectfully,

E——.

The strongest arguments in favor of government ownership of railroads are:

First. Under modern conditions, the railroads are simply the public highways over which freight and passengers must pass, and public highways should never be owned by private citizens.

If freight and passengers go by water route, they must use navigable rivers, bays, gulfs, oceans. These public waterways belong to the public, and all men admit that they should.

Under modern conditions, freight and passengers are compelled to go by rail. We have to use the railroads whether we want to or not. In traveling any distance, it is no longer possible for the public to transact business by the use of the dirt roads, consequently the transportation lines are public in their nature and their uses, and should belong to the public.

They were not built by private capital, as a rule. In almost every case the railroads were paid for by public and private donations, and the charters granted represented simply a license issued for a public purpose; and of course that license can be revoked at any time, just compensation for vested interests first having been paid.

Second. As now operated, the railroads are ruinously oppressive in their charges. Enormous sums of money are being wrung from the people to pay dividends on watered stock—a fictitious value which has no existence except in ink on paper.

Third. Under the present system, the railroads have co-operated with excessive tariff rates in building up the trust, which publicly says to the people: "Pay my price for food, or starve"; "Pay my price for tools to work with, or let your fields become deserts."

By the secret rebate, by discriminations of one kind or another, the independent operator has been driven out of the field everywhere and the tyranny of the trusts established.

Fourth. It would remove the greater part of the corruption which is the bane of our politics.

Railroad corporations maintain their lobbyists at the capital of the nation and at the capital of every state. They corrupt representatives, judges, aldermen, editors, politicians.

They finance national and local campaigns; their filthy finger-prints are to be found on almost every page of our public record.

The only possible way to get rid of this is to remove the motive. Put the railroads where the Post-Office Department is, and there will be no more motive for rebates, discriminations and wholesale bribery than there is in the operation of the Post-Office Department.

Fifth. Government ownership would make the service uniform, simplify it in every way and save vast sums by the consolidation of all the various lines into one great national system.

It would not need so many high-priced presidents, high-priced lawyers and high-priced lobbyists.

One very intelligent writer upon this subject, C. Wood Davis, figures out a saving of \$160,000,000 on this item by consolidation.

Government ownership would abolish deadheadism.

Under our present system, the men who are most able to pay their way on the railroad ride free. The man who is least able to pay, not only has to pay for himself, but in the long run has to pay also for the deadheads who ride free. This will become obvious to anybody who will think about it for a moment.

Sixth. It would take away the power of the railroads to destroy any individual, any business or any community. It would save the thousands of lives which are now lost every year for lack of double tracks, safety appliances and reasonable hours of labor.

It would enable the cotton grower of the South to exchange his products with the corn grower of the West in such a way that the railroad would not get more for hauling the corn than the man who raised it got for it when he sold it.

At present the Southern farmer pays seventy-five and eighty cents per bushel, cash, for corn which the farmer of the West sold for thirty-five cents. The transportation companies get the lion's share of that enormous difference.

It would put an end to strikes, and would put into the hands of the people a weapon with which they could destroy any combine among capitalists in any article of commerce.

Among other things, it would save the tremendous sum of \$65,000,000 which the Federal Government now pays to the railroads every year for the carriage of the mails, and that saving could be applied to extending the Rural Free Delivery to the remotest parts of the country.

If the Government owned the railroads and carried its own mails in steel cars, the Post-Office Department would show a profit instead of a loss, and railway mail clerks would be able to insure their lives. At present they cannot insure their lives, for the reason that the Government allows them to be hauled around in flimsy dry-goods boxes, whose cost of construction is less than the annual rent which our Government pays for their use and which invariably get smashed to splinters whenever there is a collision.

LOCUST GROVE, GA., April 21, 1905.

Hon. Thomas E. Watson, Thomson, Ga.

MY DEAR SIR: As affirmative debaters on the subject: "*Resolved*, That the democratic principles of the United States are in danger of being superseded by those of an aristocracy," we have secured very valuable help from your

articles in the April number of TOM WATSON'S MAGAZINE, and knowing that you, being a student of political economy, could give us some personal suggestions, we would appreciate your sending us material on the subject at our expense.

Very respectfully yours,

— — —.

A Democracy—it being the government of all by all and for the benefit of all—cannot continue to be a true democracy unless the laws conform to the democratic standard laid down by Thomas Jefferson—namely, “*Equal and exact justice to all men, without special favors to any.*”

An Aristocracy is a government in which the few make the laws for their own benefit, and rule the country for their own good.

Therefore it must be apparent to the most casual student that if we, by law, confer special favors upon any class of our citizens, we are building up an aristocracy and are departing from democratic principles.

(1) For instance, the power to create money and to regulate the volume thereof is a sovereign power belonging to the state.

In countries ruled by kings that power has always been one of the prerogatives of the crown, as was the power to make war and peace, to negotiate treaties and to levy taxes. It was recognized that the king could not continue in the full exercise of his kingly authority if he parted with the tremendous power of creating money.

Not until the English crown rested upon the head of the most dissolute of the Stuarts, Charles II, and he had become the slave of an abandoned woman—who was in turn the tool of a grasping corporation, the East India Company—was the power to create money transferred from the king to a corporation.

Ever since that day Great Britain has suffered from this surrender of sovereign power, and it was this mistake of the king which Alexander Hamilton, either through mistake or by design, adopted when he came to frame a financial system for the American people.

It was his express purpose to create an aristocracy of wealth, and he must have realized that when he took from the government the power to create money and put it into the hands of a private corporation he was creating an aristocracy of wealth.

The national banks of today represent an aristocracy of wealth, supported by the governmental function of creating currency.

There are, in round numbers, 5,000 national bankers who have in circulation \$400,000,000 of their “promises to pay,” which the law practically makes legal tender.

In other words, their “*promises to pay*” are used as money.

There are 80,000,000 natural persons in this country; there are 5,000 corporations called national banks! The 80,000,000 natural persons may sign promissory notes for five dollars each, and these notes are simply commercial paper, having no circulation as money. The 5,000 national banks sign their promissory notes to the same amount—\$400,000,000—and these notes constitute, for all practical purposes, a national currency—a national money.

The law gives them the special privilege of getting rich on what they owe. They have also the more dangerous power of enlarging and contracting the volume of currency, thus unsettling values, destroying markets and producing panics, as they did in 1893.

(2) The democratic principle of equal and exact justice to all men requires that the government should derive its revenue from a system of taxation which deals fairly with every citizen. Each man should contribute to the support of the government in proportion to his ability. And taxes should not be laid for the purpose of building up one man’s business at the expense of another’s.

Our tariff system, from which the government derives the greater part of its revenue, violates democratic principles.

Its purpose and result is to build up manufacturers at the expense of everybody not engaged in manufacturing. It gives the manufacturer a price which he could not get without the law which insures him the monopoly of the home market. *All the world can compete with our laborers by sending immigrants to our shores; all the world can compete with our farmers; but*

nobody is allowed to compete with our manufacturers, AND THE RESULT IS THE TRUST, under which Americans combine to rob the helpless American citizen, who is not allowed to buy his food or his clothing or tools to work with from anyone except the American manufacturer.

By this system, which lays the taxes on the things which man buys, a citizen who is worth only a few hundred or a few thousand dollars pays just as much to the support of the Federal Government as is paid by the man who is worth tens of millions of dollars.

Consequently the inevitable tendency of the tariff system is to create a class which controls the government for its own enrichment; *in other words, an aristocracy.*

(3) Consider our corporation laws. Early in the history of our Government Chief Justice John Marshall decided that a charter granted to a corporation was a contract and could not be changed by the sovereign power of the state. This decision was not good law, and no good lawyer has ever considered it so. John Marshall had a great mind, but he was one of the rankest partisans that ever lived. He stretched every constitutional power in the effort to build up what Hamilton wanted—an aristocracy of wealth.

Just as a natural person is born into a community and lives in it subject to having his status changed by the will of the majority, expressed in a legal way, so a corporation, born into a community through its charter, should have been required to take the same chance of having its status changed, in a legal way, by the will of the majority.

A railroad corporation comes to the legislature and procures a charter to build a railroad; *but the state cannot compel the corporation to build that railroad.* In other words, the state cannot compel the execution of the powers granted under the charter; therefore *such a charter lacks the very first element of a contract, because a contract is one in which each party can be compelled to perform his part or pay consequent damages.* But, in pursuance of the decision of John Marshall in the Dartmouth College case, our state and national governments have erected a rule of the corporations, and they are now more powerful than the governments which created them.

The great transportation companies exercise the power to tax, and the people, who pay the taxes, have no representation in the councils of those

who levy the taxes. This surely constitutes an aristocracy of the most powerful kind.

The railroads have the power to tax the life out of any industry, out of any section, out of any city or town; *with rebates and discriminations they build up the Trusts which plunder the people.*

By reason of the fact that they enjoy the privilege of taxing other people, *they pay no Federal taxes to support the government.* Whatever they may pay in the way of tariff on material which they use in the construction of roadbeds and rolling stock, they simply charge up to expense account and levy their rates so as to make the utmost possible profit over and above what they have paid out. The public cannot escape the freight rates and the passenger rates which the corporations levy. The public cannot help itself. The public is made to pay, in those freight and passenger rates, every dollar of tax which the railroads have paid to the state and Federal governments. Therefore, as in the case of the national banks and the manufacturers, we have a great class of corporations given special powers by law which are exercised at the expense of the masses of the people, and which escape all the burden of supporting the national Government by reason of the immunities and privileges which the law has made for their exclusive benefit.

Here, then, we have a complete illustration of aristocracy—the government of the few, by the few and for the few, instead of the ideal of Jefferson and Lincoln, “government of the people, by the people and for the people.”

The man who makes a corner in wheat thinks he can relieve all the suffering he caused by endowing a bed in a hospital.

The Track Walker

BY THEODORE DREISER

Author of "Sister Carrie"

TRACK WALKER KILLED

WESTFIELD, N. J., April 14.—John Long, a New Jersey Central track walker, was killed by a train today.

IF you have nothing else to do some day when you are passing through the vast network of tracks of, for example, the great railway running northward out of New York, give a thought to the man who walks them for you, the man on whom your safety, in this particular place, so much depends.

He is a peculiar individual. His work is so very exceptional, so very different from your own. While you are sitting in your seat placidly wondering whether you are going to have a pleasant evening at the theatre or whether the business to which you are about to attend will be as profitable as you desire, he is out on the long track over which you are speeding, calmly examining the bolts that hold the shining metals together. Neither rain nor sleet can deter him. The presence of intense heat or intense cold has no effect on his labors. Day after day, at all hours and in all sorts of weather, he may be seen placidly plodding these iron highways, his wrench and sledge crossed over his shoulders, his eyes riveted on the rails, carefully watching to see whether any bolts are loose or any spikes sprung. Upward of two hundred cannon-ball flyers rush by him on what might be called a four-track bowling alley each day, and yet he dodges them all for perhaps as little as any laborer is paid. If he were not watchful, if he did not perform his work carefully and well, if he had a touch of malice or a feeling of vengeance, he could wreck your train, mangle your body and send you praying and screaming to your Maker. There would be no sure way of detecting him.

Death lurks in this tunnel. Here, if anywhere, it may be said to be constantly watching. What with the noise, which is a perfect and continuous uproar, the smoke, which hangs like a thick, gloomy pall over everything, and the weak, ineffective lights which shine out on your near approach like will-o'-the-wisps, the chances of hearing and seeing the approach of any particular train are small. Side arches, or small pockets in the walls, are provided for the protection of the men, but these are not always to be reached in time when a train thunders out of the gloom. If you look sharp you may sometimes see a figure crouching in one of these as you scurry past. He is so close to the grinding wheels that the dust and soot of them are flung into his very soul.

And yet for all this the money that is paid these men is beggarly small. The work that they do is not considered exceptionally valuable. Fifteen cents an hour is all that they are paid, and this for ten to twelve hours' work every day. That their lives are in constant danger is not of any point in the matter. They are supposed to work willingly for this, and they do. Only when one is picked off and his body mangled by a passing train is the grimness of the sacrifice emphasized, and then only for a moment. The space which such accident gets in the public prints is scarcely more than a line.

And now what would you say of men who would do this work for fifteen cents an hour? What estimate would you put on their mental capacity? Would you say that they are only worth what they can be made to work for? One of these men, an intelligent type of laborer, not a drinker, and one who did not even smoke, attracted the writer's attention by the punctuality with which he crossed a given spot on his beat. He was a middle-aged man, married, and had three children. Day after day, week after week, he used to arrive at this particular spot, his eye alert, his step quick, and when a train approached he seemed to become aware of it as if by instinct. When finally asked by the writer why he did not get something better to do he said, "I have no trade. Where could I get more?"

This man was killed by a train. Sure as was his instinct and keen his eye, he was nevertheless caught one evening, and at the very place where he deemed himself most sure. His head was completely obliterated, and he had to be identified by his clothes. When he was removed another eager applicant was given his place, and now he is walking in the tunnel with a

half-dozen others. If you question these men they will all tell you the same story. They do not want to do what they are doing, but it is better than nothing.

The House of Cards

SO high I built it, high—

With love and tenderness to make it strong,
And thought me—foolish, blind—
That I should keep it all the ages long.

So firm I built it, firm—

And joyed when raging storms around it blew
To see how stanch it stood,
My house of cards, in every part so true.

So fair it was, so fair—

And how I loved it with its gables high
Piercing horizon's rim,
And with the lark far to the quiet sky.

So much I loved, so much—

I almost thought when close within its gate,
That Heaven had naught to give.
One dashed it down—and I am desolate.

RUTH STERRY.

Royal Road to Wealth

COBWIGGER—If you take advantage of your opportunities you will be in comfortable circumstances.

FREDDIE—What must you do in order to get rich, dad?

COBWIGGER—Take advantage of other people's opportunities.

The Say of Other Editors

“A FREE BREAKFAST TABLE”

THE recent suggestion of a tariff tax on coffee, probably put out as a feeler, is responsible for the resurrection and reintroduction of the once familiar but never appropriate phrase at the head of this article. It was never appropriate; it was always a sarcastic sneer, rather than a statement of fact, because the memory of the most aged citizen runneth not to the time when “a free breakfast table,” a breakfast table untaxed as to itself, its equipment and the food and drink it bore, could be found in any American home. At this time, under the tariff of 1897, what could be more preposterously absurd than the notion that a tax on coffee would be a decree of banishment for that alleged boon?

The *Post*, being an advocate and defender of the policy of protection, although a condemner and contemner of the outrages incident to the stand-pat policy, is in no hurry to witness the advent of “a free breakfast table”; but the *Post* prefers that such a crass absurdity, such a stinging satire as this old shibboleth, should be returned forthwith to the dust and darkness from which it was dragged when the coffee tax proposition appeared.

The truth is, you go to breakfast clad in taxed garments, wearing no single article that is not taxed in the tariff; you sit in a chair that is taxed as to all the various materials that enter into it, and taxed as a whole; the table itself is similarly taxed, and we can think of no article on it that is free. Your tablecloth, your napkins and your napkin rings are all in the tariff schedules. Your fish or meat, your vegetables and fruit, your bread, your butter, your rolls, your griddle cakes, your sugar and syrup, your salt, vinegar, pepper, mustard, olive oil and all other condiments show up in the list of things taxed. So is it with your china or other crockery, and your knives, forks and spoons.

And your coffee is free only as to the raw bean. It is roasted over a taxed fire and in a taxed roaster, is stored in taxed receptacles and

transported by taxed horses in taxed wagons; when retailed, it goes out in taxed bags, to be deposited in other taxed vessels. Having been ground in a taxed mill, your cook prepares it for the table by using a taxed coffee pot. If you use cream in your “free” coffee you must use taxed cream; if you use sugar in it you must use taxed sugar.

This is the “free breakfast table” whose exit will come if a duty is imposed on the raw coffee bean!—*Washington Post*.

THAT familiar old hymn, “In This Wheat By and Bye,” has lost its attractions for Jawn W. Gates and his accomplices.—*New York American*.

FAR-SIGHTED CARLOS MORALES

THE United States is now in Santo Domingo; President Roosevelt, with a stroke of the pen, has fixed Don Carlos Morales firmly in the saddle. That cheerful and ingenious bandit begins to enjoy the unearned increment of the “status quo.” He can read now with a smile of the erstwhile terrible preparations of Jiminez and Barba. He can sit in his palace and rake in 45 per cent. of the customs revenues of his republic, collected for him and scrupulously accounted for. That was what Morales wanted, and he is happy. Domestic malice, foreign levy—nothing can touch him further.

If Cipriano Castro had one-tenth of the ingenuity of his brother bandit of the black republic he would have seen long ago that his present policy is foolish. Instead of making faces at the United States, Castro should have been busy inducing the foreigners in his country to set up a concurrent roar. He should have acknowledged the validity of claims of any kind and to any amount, the bigger the better. Then, at the psychological moment, he should have pointed to the imminent danger to the Monroe Doctrine, and begged the United States to enter and preserve order, collect his revenues and pay him a share of the proceeds.

If there is any other Central or South American dictator who is shaky on his pins, now is the time he should apply for relief. Let him take a lesson from Morales and imitate that “prudent and far-seeing statesman.” Forty-

five per cent. of the revenues, in clean, hard coin, without work or worry, is better than all the revenues with danger of revolution and dismemberment.

Step up, gentlemen! The United States has a big navy, and it has nothing to do at home. Our duty is to protect our weak and struggling sister republics, and now that the Senate is out of the way, we propose to do it. We shall take right hold, and leave to the future the problem of how to let go.—*Washington Post*.

A MAN was killed at Lancaster, Ontario, while trying to rob a bank. There are still a few of the old-time robbers who have not learned that the proper method of robbing a bank is to work from the inside.—*New York American*.

A GOOD sign of awakening conscience is evident by the protest from the ministers against accepting Rockefeller's money that has been wrested from the people by indirection. The great success of the Standard Oil robberies has spawned upon the country hundreds of such corporations that plunder the public with even more skill than the Standard. If the church accepts this donation it will be as fatal to it as the thirty pieces of silver were to Judas. This protest against the gift by these ministers is a most courageous act. The Standard Oil tactics may lose every one of them their pulpits. The Standard Oil management will stoop to any kind of dirty work to perpetuate the system. They are attempting now to ruin Lawson, and, with all his astuteness and his millions of wealth to back him, they may succeed in doing so. The people should stand by Lawson to a man, and the congregations of these ministers that have dared to affront Rockefeller should see that none of his poisoned arrows reach them.—*The Forum, Denver, Col.*

CHRISTIAN CIVILIZATION

WE hear much of Christian Civilization, but we do not see so much of it. Let us consider briefly the Christian world:

Russia—Anarchy, rapine, bloodshed, pauperism and starvation.

Austro-Hungary—Disease, strife, strikes, poverty and pauperism of millions.

Italy—Overpopulation, dire poverty, with millions of the people actual beggars, excessive taxation and a practically bankrupt treasury.

England—Army of unemployed, a vast section of the population in a poverty so appalling that it makes one's heart bleed to read the details.

Ireland—Practically a nation of paupers, not of their own volition either, but as a result of evil laws and customs which have destroyed the hopes of a gallant people.

Spain—Once the proud leader of nations, reduced to the rags and sores of Lazarus.

United States—In the grasp of graft, the people being robbed of their earnings at every turn by a lot of as conscienceless pirates as ever scuttled a ship, and a government apparently impotent.

Everywhere we find more or less the same evil conditions.

Our so-called Christian Civilization is as much like the genuine article as the Texas long-horn is like a thoroughbred Holstein.—*The Commonweal, Atlanta, Ga.*

I INTERPRET Dr. Osler to mean: Young man, get a move on you if you want to amount to anything. If you are a failure at forty, you have missed your vocation; your experience may serve you to good purpose, but if you are dependent at sixty, why, "off with your head!"...

Our President says it is very wicked for the mail-carriers to organize and have a man lobby for them; still worse to organize and defeat a Congressman who was blocking their efforts to get better wages and conditions of employment. Why don't the President call a halt on the corporation lobby (some of them having known offices in Washington with as many as ten clerks) who defeat men and measures. Let this be denied, but we do know that corporations fix nominating conventions where

nominations are equivalent to election; especially naming those who say: “I am in the hands of my friends.”—*Ohio Liberty Bell*.

THE Government issues money and loans it to the national banks at one-half of 1 per cent. per year. This is old party doctrine, for it has prevailed under the rule of both old parties. The People’s Party favors issuing the money direct to the people without the intervention of banking corporations. On this question do you agree with the Populists or old parties?—*Missouri World*.

WOULDN’T it be amusing if an individual owned the New York Post-Office, paying sweatshop wages to letter-carriers, working them all hours, discharging them without reason—putting girls in their places as much as possible—and charging twenty-five cents for a letter halfway across the continent?

Wouldn’t it be beautiful if a J. P. Morgan or Mr. August Belmont of the race-track *could* own all the industries and real estate of New York?

How nicely Mr. Morgan would capitalize such properties in Steel Trust fashion! And what a nice time Mr. Belmont would have with the labor unions! There would be plenty of work for strike-breakers.

The American people believe in public ownership of all properties actually created by the public—and public ownership they are going to have.—*New York Evening Journal*.

THE slave-owners of today do not realize that they own slaves. And the slaves do not realize that they have owners. Formerly one man owned one, a dozen or a hundred slaves. Occasionally even more than that. Now a hundred thousand men each own a part of every slave. The great mass of the people are slaves to unjust systems, and everyone who profits by these systems is part owner of everyone who loses by them. If there could be a partition suit and every slave owner be set apart his share, the fact that there are slaves today, and millions of them, would be quite plain. It would be found that this man owns fifty slaves, that man a hundred and some as high

as fifty thousand. Should the richest girl in the United States be given white girls only as her share of the slaves, she would have a thousand at least—a thousand white girl slaves. Some persons are part slave and part free, because they get a little more than the commonest kind of a living. Sixty million people in the United States are either all or part slave, and the number who are all slave is much greater than that of the black population in the days of chattel slavery. This new slavery exists because the owners do not realize that they are owners and the slaves do not realize that they are slaves. Years ago Mrs. Emery, of Lansing, Mich., wrote a little book, entitled “The Seven Financial Conspiracies Which Have Enslaved the American People.” The way to freedom is financial legislation in the interest of the people.—*Missouri World*.

THE nation that prepares for war will sooner or later have war. We get just anything we prepare for, and we get nothing else. Everything that happens is a sequence; this happened today because you did that yesterday.—*The Philistine*.

IN 1896 Mr. Bryan had undisputed control of the organized Democracy and was defeated.

In 1900 he still had control, and was defeated worse than before.

Now, let it be remembered that all the Western Populists, with their newspaper press—including such strong and widely circulated papers as the Nebraska *Independent*, supported him; and let it be further understood that now and in the future he will get no support from Populists or the Populist press; then figure out the lurid prospects Mr. Bryan has of sweeping the country in 1908.

Now, with this actual state of things confronting him, does anyone believe that Mr. Bryan has any hope of reorganizing the shattered ranks and disgraced leaders of the Democracy into a winning party in 1908?

And, if he has no such hope—and in reason he cannot have—what is his purpose putting so much into a cause that he knows is absolutely hopeless?

We can see but one reason for Mr. Bryan's course, and that is that he intends to prevent the organization of a party that would unite the South and West, and defeat the plutocracy, thus restoring the Government to the original purpose of its great founders.

Mr. Bryan will hold in party slavery a great many Democrats who do not think—and unfortunately they are legion—and thus divide the men who ought to stand together, as it is evident they must fall together, making an easy victory for the Eastern money power.—*People's Tribune, Prescott, Ark.*

“ON account of insufficient laws regulating the matter, and the utter disregard of even these, hundreds of workmen, mostly foreigners, are being killed each year in the steel mills, blast furnaces and coal mines.”

Coroner Joseph G. Armstrong made this statement in addressing a jury in the case of a man killed at the plant of the American Steel and Wire Company. It was only a case of “another Hungarian killed in the mills,” as the Coroner expressed it, but Adelbert Merle, the Austro-Hungarian Consul-General in this city, backed by the Coroner, will appeal to the state, and, if necessary, to the Federal authorities, to do something to protect these men.

“During the first month of my term,” said Coroner Armstrong, “one plant alone, the Duquesne plant of the United States Steel Corporation, had twelve separate fatalities. That was the number reported to this office. How many more there were no one may ever know. I went to the officials of the corporation and entered a complaint. Then an order was issued that more care would have to be taken, and next month not a death was reported from the Duquesne plant.”

Said Consul-General Merle:

“A very large number of the Hungarians employed in the mills are American citizens, and some consideration should be given them on that account, if not on the score of humanity. It is proposed to organize the Hungarians and other foreigners who are voters and see if some action cannot be secured in the legislature to compel the mill owners to give better protection to the workmen.”

“The number of fatalities which occur in the steel mills, the blast furnaces and the coal mines in the Pittsburg district are never fully reported,” said an attaché of the consulate. “Scarcely a month goes by that we are not called upon to investigate the case of some workman who is reported to us as having ‘disappeared.’ At present we are working on two such cases. Both are identical as regards details.

“The men were stationed at the top of blast furnaces owned by the United States Steel Corporation to receive the cars of ore as they came up and dump them. There is only a small bridge for them to stand on. One misstep or awkward movement, and the man will follow the ore into the furnace. The men are not missed until it is noticed that the cars are not being dumped. No one knows what has become of them. Their coats and dinner pails await them at the bottom of the elevator, but the men never come to claim them. Then they are reported to have ‘disappeared.’ It is not known positively that they have fallen into the furnace, but there can be no other conclusion.”

The officials of the steel mills say they will do anything in their power to conduce to the safety of the men, and that the foremen in charge are mainly responsible for any dereliction.—*New York World*.

IF a man should loan money at one-half of 1 per cent., and borrow it back at 8 per cent., and keep this up year after year, his family would have no trouble in getting him put under guardianship. The people through their Government are acting just as foolishly when they issue money to national banks....

A billion and a half of taxes. Another billion and a half of railroad charges. And a billion of interest, not counting the interest on public and railroad debts. A total of four billion dollars. This is the sum the people of the United States must pay each year whether money be scarce or plentiful. Is it any wonder times get harder when money gets scarcer?...

If the people could realize that their hard struggle to keep body and soul together and at the same time lay by a little for old age—making life a mere battle for existence—if they could realize that this struggle is made necessary by the present systems, that prosperity is the natural right of

everyone who does his share of labor, they would be more easily induced to vote against monopoly rule. Populists should endeavor to dissatisfy the people with their present condition and show them that they should be getting so much more out of life.—*Missouri World*.

LESE-MAJESTE

BECAUSE a passing steamer did not regard it necessary to give a tow to the *Sylph* the other day some of the frenzied Republican newspapers of the North seem to think there will be trouble with the skipper of the aforementioned steamer when T. Roosevelt gets back to civilization.

For the *Sylph*, they claim, is the President's yacht, and certainly there must be punishment, prompt and dire, for any rover of the high seas who dares show lack of deep concern over her.

Lèse-majesté with a vengeance!

Of course, it does not occur to the frenzied Republican press that the *Sylph* is not the President's yacht; that she is a vessel of the navy, kept in commission at public expense, and should be used only for public purposes; and that the President has no possible warrant in law for keeping her at Washington or taking her out to sea for the personal pleasure of himself or the members of his family.

If the *Sylph* is not needed in the active service of the country she ought to be taken out of commission; if she is needed by the navy she should be so used. In either event she is not the President's yacht, nor should she be utilized as such at public expense.—*Atlanta Constitution*.

AUTOMOBILE MANSLAUGHTER

WITHIN one week of the new season five persons have been killed by automobiles in this city, not counting the young man who fell from the "Seeing New York" omnibus. As many more have been very seriously hurt.

The heartlessness of some speed-maddened votaries has been again illustrated. There was the woman who in a Brooklyn street shrieked out:

“Go on quickly, Harry; the man is killed!” There is that young man of the reckless rich class, whose autos are debited with two deaths and are a terror to thousands living, caught again running at eighteen miles an hour in the street. That “sports” might scorch to the Aqueduct races a little girl in Elmhurst yielded up her young life.

The man who drives his auto at dangerous speed is as responsible morally for the death he thereby causes as one would be who should fire a revolver at random down the same street and by “accident” kill a victim.

Manslaughter by automobile will continue until it is punished as severely as other manslaughter, and until the certain penalty of illegal speeding is jail, not for the driver, but for the owner.—*New York World*.

MR. Thomas Lawson has tumbled from his lofty pedestal. Multiplied thousands of people in this goodly land of ours were venerating him, were reverencing him—some of them just about beginning to worship him. But he has proven himself to be only common clay. He was leading the van against the iniquities of “frenzied finance,” exposing the chicanery, the fraud, the swindling, the downright stealing every day perpetrated in the Stock Exchange dealings, the manipulation of stocks and bonds and the fleecing of the lambs. Now comes the news that in December last he made in stock speculations, as a votary at the altar of “frenzied finance,” \$1,500,000, and in this mild and gentle month of April the comfortable figure of \$1,000,000. Alas, alas! and lackaday! He was only human after all. His wings had not even begun to sprout.

Imperious Cæsar, dead and turned to clay,
Might stop a hole to keep the wind away.

—*Southern Mercury*.

IF Bryan, Hearst and Dunne should succeed in raising the old hulk of Democracy, Cleveland, Hill and Gorman will scuttle it again. Better come out, boys, and take a new ship....

Dr. Washington Gladden is not going to let the Rockefeller gift rest. He says it is the right and duty of every American citizen to sit in judgment on Rockefeller and his methods.—*Forum, Denver.*

JUDGE A. B. Parker, in a speech in New York “Jefferson Day,” said the “defeat of the Democratic Party was emphasized by the unprecedented expenditure of money.” Everybody knows that there was not one-fifth as much used by the Republicans to defeat him as there was to defeat Bryan. Perhaps he meant the “unprecedented” use of money to secure him the nomination. What else could he mean?—*The Jeffersonian, Thomson, Ga.*

STAND for the referendum in the management of the business of the Farmers’ Union. By this means you will do away with the boss, especially the political boss. Demand the right to settle your own affairs, and do not leave it to self-constituted leaders.—*The Watchman, Cleburne, Tex.*

News Record

FROM APRIL 7 TO MAY 7, 1905

Government and Politics

April 8.—President Roosevelt made the last speech of his present trip, and left Texas for Oklahoma to hunt.

The South and Central American governments allege to Secretary Taft that discrimination in freight rates by the Panama Railroad has restricted direct trade with the United States.

April 9.—President Roosevelt reaches Oklahoma, where he will hunt wolves for a few days.

April 10.—Pension Commissioner Warner discovers a number of pensioners on the rolls who have never served in the United States Army.

Judge Edward F. Dunne is installed Mayor of Chicago.

Commissioner of Corporations Garfield reaches Kansas to begin an investigation of Standard Oil operations.

The United States Marshal at Chicago seizes six trunks full of records and accounts of the Etna Trading Company, which are said to contain damaging evidence against the Beef Trust.

The United States Supreme Court decides that the right of trial by jury extends to Alaska.

April 11.—The Legislative Investigation Committee, which is making an investigation of the lighting plants of New York City, has subpoenaed Mayor McClellan, Charles F. Murphy and other well-known politicians to appear before the committee.

President Castro refuses to withdraw the asphalt cases from the Venezuelan courts, claiming that the courts of Venezuela have jurisdiction over such matters.

Secretary Shaw defends the “drawback” on Canadian wheat.

United States Senator Mitchell, of Oregon, pleads not guilty to indictments in connection with land frauds in that state.

April 12.—The Executive Committee of the Panama Canal Commission holds its first meeting in Washington, and decides to abolish preferential freight rates on the Panama Railroad.

Clarence E. Darrow is appointed special corporation counsel to have charge of street railway litigation in Chicago.

April 13.—Four employees of the Beef Trust indicted by the Federal Grand Jury in Chicago for opposing a deputy marshal in serving subpoenas.

Judge Alton B. Parker and Mayor McClellan are the principal speakers at the New York Jefferson Day banquet. They both urge harmony and conservatism.

At the Chicago Jefferson dinner Mr. Bryan and Mayor Dunne urge Government control of public utilities.

Secretary Taft informs the South American Ministers that the United States will maintain the open door in the Panama Canal Zone.

Senator Burton, of Kansas, again indicted for acting as attorney for the Rialto Grain and Securities Company before the Post-Office Department at Washington.

President Roosevelt leaves Oklahoma for Colorado.

April 16.—The Legislative Investigation Committee inspects the lighting plants of New York City.

National Congress of Women demands equality of the sexes.

The United States agents who were to investigate the land frauds in Utah have been relieved of duty, undue influence being charged.

April 17.—Secretary Taft formally takes over the Panama Railway Company for the United States Government.

The Senate Committee on Interstate Commerce begins a hearing on railroad rates at Washington.

The United States Supreme Court decides that the New York law limiting the working hours of bakers to ten hours per day is unconstitutional.

April 18.—Sherman Bell, late Adjutant-General of Colorado, has been offered the command of the army of Venezuela.

V. L. Morawetz, general counsel for the Atchison, Topeka & Santa Fé Railroad, testifies before the Interstate Commerce Committee.

The American Asphalt Company asks the United States to obtain from Venezuela the restoration of its properties until the courts can decide the question of title.

April 19.—Mayor McClellan and Comptroller Grout appear before the New York Legislative Investigation Committee and testify about the light contracts for New York City.

Mr. Hunter, the builder of the Manchester Canal, has been selected as one of the consulting engineers by the Panama Canal Board.

April 20.—Charles F. Murphy denies that he has any interest in the lighting contracts for the city of New York.

Judge Grosscup makes permanent an order restraining the city of Chicago from enforcing the interchangeable transfer ordinance.

April 21.—The Legislative Committee ends its investigation in New York City. No finding has been made public, though it is understood that there will be a reduction of about 25 per cent. in the cost of lights.

Secretary Hitchcock dismisses eight clerks from the Indian warehouse in New York for misuse of Government funds.

United States Cruiser *Tacoma* goes to Santo Domingo to protect American interests there.

The Executive Committee of the Panama Canal Commission gives a contract for twenty-four locomotives.

April 22.—The Government summons several Chicago bank officials to testify against the Beef Trust.

April 23.—At a Prohibition meeting in Texas Congressman Pinckney is killed and several others seriously wounded.

April 24.—United States Supreme Court issues mandate for the removal of George W. Bates to Washington for trial on postal fraud charges.

Walter D. Heine makes an argument before the Interstate Commerce Committee against the regulation of railroad rates by the Government.

April 25.—Beef Trust sends papers and books wanted by the Chicago Grand Jury to Canada.

Secretary Taft announces that the Government's acquisition of the Panama Railway was not for the purpose of affecting railroad or ocean rates, but for the purpose of acquiring an instrument with which to construct the canal.

Eight thousand men are now employed on the Panama Canal, and this force is being added to at the rate of 800 to 1,000 per month.

The Attorney-General holds that the agreement between the Government and certain railroads for rebates is valid.

It is believed in Washington that reductions must be made in the present tariff schedules to meet the deficit in the Federal Treasury.

April 26.—Negotiations for an immigration treaty between the United States and China have been abandoned.

Postmaster-General Cortelyou notifies the Assistant Postmaster at Louisville that he must resign as postmaster or as a member of the State Republican Committee.

Mr. Bowen, the American Minister to Venezuela, charges that former Minister Loomis, now Assistant Secretary of State, accepted a check from the American Asphalt Company for \$10,000 for services rendered. Mr. Bowen has made his charges in writing to the President.

April 27.—Minister Bowen will be ordered to return from Venezuela to substantiate his charges against Assistant Secretary of State Loomis.

April 29.—Mr. Loomis denies charges made by Mr. Bowen against him and files charges against Mr. Bowen.

W. W. Russell, American Minister to Colombia, succeeds Mr. Bowen as Minister to Venezuela.

May 3.—J. J. Hill testifies before the Senate interstate Commerce Committee that Government control of railroad rates will be disastrous.

Federal Grand Jury subpoenas thirty representatives of the Traffic Departments of different railroads to testify in the Beef Trust investigation.

May 5.—The Federal Grand Jury for the District of New York begins an investigation of the Tobacco Trust's business methods.

Attorney-General Moody holds that the Government can legally regulate railroad rates.

Governor-General Davis stricken with fever. Secretary Taft orders him to leave Panama and return home.

May 6.—President Roosevelt ends his hunting trip in Colorado and starts for Washington.

General Home News

April 9.—After a fight covering twenty years and costing millions of dollars, the Bell Telephone Company has been whipped by the rural lines in Iowa and forced to connect with them.

Several hundred sailors belonging to the North Atlantic squadron desert at Pensacola.

April 10.—J. H. Hyde and W. H. McIntyre, of the Equitable Insurance Company, are seeking to intervene in the suit of Franklin B. Lord, a stockholder, for an injunction to restrain the officers of the company from carrying out the mutualization plan.

April 11.—The Grand Jury of Franklin County, Ky., returns four hundred true bills against the Standard Oil Company for failing to procure peddlers' license as required by the Kentucky statutes.

The Prudential Committee of the American Board of Commissioners for Foreign Missions formally accepts the gift of \$100,000 from John D. Rockefeller and issues a statement explaining its action.

April 13.—Father Schell, a young Catholic priest who has done much to put a stop to dishonest land agents swindling the Winnebago Indians, is assaulted and severely beaten.

April 14.—“General” Jacob S. Coxey, of “Coxey’s Army,” declared a bankrupt.

April 15.—J. H. Hyde admits using Equitable funds for underwriting purposes, but declares that President Alexander was a party to such transactions.

April 18.—Beef Trust again raises the prices of meats.

April 19.—General Managers and Agents of the Equitable meet in New York and ask Vice-President Hyde to withdraw from the society in the interest of harmony.

April 20.—Unloading 5,000,000 bushels of wheat on the Chicago market breaks the corner, and John W. Gates is supposed to have lost \$2,000,000.

Mrs. Donald McLean, of New York, is elected President-General of the Daughters of the American Revolution.

April 21.—Eleven thousand nine hundred and fifty-five immigrants arrive at Ellis Island in one day, establishing a new record.

Hyde refuses agents' request to resign from the Equitable.

Policyholders in the Equitable ask the Circuit Court in Chicago for a receiver and an accounting.

April 24.—Frank Bigelow, President of the First National Bank of Milwaukee, embezzles \$2,400,000 of the bank's funds.

April 26.—D. Le Roy Dresser sues the promoters of the United States Shipbuilding Company for \$3,000,000, alleging fraud in its formation.

April 27.—Andrew Carnegie gives \$10,000,000 to pension retired college professors.

April 28.—The strike of the teamsters in Chicago has developed into the worst since the famous Debs strike eleven years ago.

Judge Kohlsaet, in the Federal Court, grants a temporary injunction against the strikers on the request of the Employers' Teaming Association.

April 29.—Laredo, Tex., wiped off the map by a cyclone.

May 3.—The American Railway Appliance Exhibition is formally opened at Washington.

The strike in Chicago continues.

May 4.—The Federal Grand Jury, at Jackson, Miss., indicts 300 for whitecapping, the specific charges being the intimidation of Government homesteaders.

Police of Chicago ask the Sheriff of Cook County to aid them in quelling riots.

International congress of railways formally opened at Washington by Vice-President Fairbanks.

May 5.—On account of the teamsters' strike, a food and fuel famine is feared in Chicago.

May 6.—Employers in Chicago accuse the police of siding with the union men in the present strike.

The largest floating drydock in the world is completed at the Maryland Steel Works yards for the United States Government. The dock will be towed to the Philippines after it is tested.

May 7.—Twelve thousand and thirty-nine immigrants, chiefly Italians, reach New York.

Russo-Japanese War

April 8.—The Russian Baltic fleet, in command of Admiral Rojestvensky, reaches the China Sea.

April 11.—A battle expected between the fleets of Rojestvensky and Togo. Japan makes Formosa a naval base and closes the port of Kelung.

Tokio reports that Japan expects to have 1,000,000 men in the field before November.

April 13.—The Russians strengthen Vladivostok and prepare for a long siege.

April 14.—The Russian hospital ship *Orel*, bearing the sick of Rojestvensky's fleet, after taking on board coal, provisions and medical supplies, leaves Saigon, Cochin China.

Eighteen vessels of the Russian Baltic fleet enter Kamranh Bay, Cochin China.

April 15.—Japanese say Togo will not attack the Russian fleet until he is confident of being able to annihilate it.

April 16.—Japan proclaims defense zones surrounding the Pescadore, Okinawa, Oshima and Emi islands.

Captured Japanese spies place the Japanese armies at 400,000 and the losses in Mukden battles at 100,000.

April 17.—The Russian fleet reported at Kamranh Bay taking on supplies.

April 18.—The Russian fleet reported off the Philippines and the Japanese near Sampaloc.

April 19.—Japan makes vigorous protest to France against the use of French ports by the Russians.

Situation in Manchuria unchanged. Occasional light skirmishes. Japs victorious in small engagements along the Yalu.

Despatches from Harbin state that Chinese bandits have made frequent attempts to cut the railroad.

April 20.—France assures Japan that she will remain neutral. Czar orders Rojestvensky to leave Kamranh Bay.

April 21.—France instructs her agents in Indo-China to assure the neutrality of France in Indo-Chinese waters.

Russian fleet leaves Kamranh Bay.

April 23.—The Russian Government places orders with the Krupps for 1,000 guns.

April 24.—The rainy season in Manchuria has increased the infectious cases in the Russian army.

The movements of both the Japanese and Russian fleets closely guarded.

April 25.—Admiral Nebogatoff, in command of the second Russian Pacific squadron, reaches the China Sea to join forces with Rojestvensky.

The Russian General Staff gives the losses in the battle of Mukden, from February 19 to March 19, as two generals, 1,985 staff and other officers, 87,677 men, of whom the greater number were wounded; thirty-two guns and no siege artillery or ammunition carts.

April 26.—Rojestvensky cuts the Hainan cable to conceal his movements.

April 27.—Rojestvensky's fleet drawn up outside Kamranh Bay, awaiting the arrival of Nebogatoff's division of the Russian Pacific squadron.

May 6.—Marshal Oyama extends his lines on the Russian right wing.

Russian torpedo boat destroyers sink a Japanese sailing vessel.

General Foreign News

April 8.—Four hundred persons are killed or wounded by the collapse of a reservoir in Madrid, Spain.

The Newfoundland Lower House passes a bill to exclude American vessels from Newfoundland fisheries.

April 9.—The estimated number of lives lost in the earthquake in India is 15,000.

April 10.—Joseph H. Choate, the American Ambassador to Great Britain, has been elected a “Master of the Bench of the Middle Temple.”

April 11.—Captain Volpert, of the French army, has been arrested, charged with complicity in a military plot to overthrow the present regime.

Baron de Constant makes a speech in the French Senate in favor of international military and naval disarmament.

Russian lawyers pass resolutions favoring a constitution and universal suffrage.

April 12.—A congress of lawyers held at St. Petersburg sets on foot a movement to democratize the Russian Government.

Under the terms of a commercial treaty being negotiated between Germany and Morocco, it is said Germany will gain the most favored nation guarantees in Morocco.

April 13.—The Premier of Newfoundland inserts a clause in the anti-American fishing bill reserving the power of suspension. This was done on account of the pending Bond-Hay treaty.

All but one nation have accepted President Roosevelt’s invitation to a second peace conference.

April 14.—The body of Admiral John Paul Jones is unearthed in Paris.

Czar of Russia consents to consider a savings bank and land purchase scheme for the peasants.

The workers in the porcelain factories at Limoges, France, have decided to strike. The factories are owned by Americans, and they have raised the American flag over the factories to protect their property.

April 15.—The French Chamber of Deputies adopts final clause of second section of bill separating state and church.

April 16.—General strike on all railroads in Italy.

Henry White, the new Ambassador to Italy, is received by King Victor Emmanuel.

Laborers on sugar plantations in Porto Rico strike.

April 17.—Plans for the extension of zemstvo governments to Siberia and Finland have been inaugurated by the Czar of Russia.

April 18.—Negotiations begun for new treaty between Germany and China.

Fights between strikers and soldiers at Limoges, France. Three strikers killed and ninety-eight soldiers wounded.

Troops fire on Italian railway strikers, killing three and wounding many.

Russian Government gives large order for American submarine boats.

Kaleieff, the assassin of Grand Duke Sergius, sentenced to death.

Among a band of Terrorists arrested in St. Petersburg is a niece of Governor-General Trepoff. She recently fired two shots at her uncle.

Riot in San Juan, Porto Rico, between strikers and police.

April 19.—Italian Chamber of Deputies adopts a bill providing for government control of all railroads in Italy.

April 21.—The Italian Government promises reforms in railroad management and the strikers return to work.

April 22.—The Emperor and Empress of Germany, on the imperial yacht *Hohenzollern*, are cruising in the Adriatic. It is reported that the Emperor is in very bad health.

April 23.—Pope Pius X celebrates full mass before a large congregation.

The Emperor of Germany delivers Easter sermon on the imperial yacht.

April 24.—On memorial of Wu Ting Fang, ex-Minister to United States, imperial edict makes sweeping reforms in Chinese criminal code.

April 25.—The Sultan's troops have been defeated by the Arabs at Aden.

At Barisoff 2,000 Russian soldiers mutiny, smashing Red Cross cars and pillaging shops.

April 26.—Charles M. Schwab is awarded contract to rebuild the Russian navy.

Many guns on British warships found to be worthless.

Germany ready to begin negotiations with the United States for a new commercial treaty based on reciprocity.

April 27.—General Kolzoff appointed Governor-General of Moscow.

April 28.—Encounter between insurgents and gendarmes in the province of Kissamos excites Crete.

In the Cuban Senate President Palma discloses the fact that the United States had intervened in behalf of American firms with whom contracts had been made for sanitary work on the island.

May 3.—Trouble continues throughout Poland.

May 4.—In Warsaw the Socialists enforce the observance of a day of mourning for the victims of the May Day riots.

Cossacks fire on people attending Roman Catholic Church at Lodz, killing seven persons.

May 5.—Mr. Choate, the American Ambassador to England, is given a farewell dinner at the Mansion House in London.

Zemstvo Congress opens in St. Petersburg.

May 6.—A plot discovered in Madrid, Spain, to make an independent state out of the territory of Cunani, Brazil.

Police break up congress of engineers in St. Petersburg.

May 7.—Tokio papers make bitter attack on France, alleging that France is violating her pledges of neutrality.

Despatch from Moscow states zemstvos have split over universal suffrage.

Obituary

April 7.—Edward Floyd DeLancey, a New York lawyer and historian, dies, aged 83.

General Cullen A. Battle, of the Confederate army, aged 76.

April 9.—Miss Sarah Chauncey Wadsworth (“Susan Coolidge”), aged 60.

Chief-Justice Jesse Knight, of the Wyoming Supreme Court, aged 55.

April 10.—Judge Lawrence Weldon, of the United States Court of Claims, aged 76.

April 15.—General John Palmer, former Secretary of State of New York, aged 63.

Ex-Congressman Halbert E. Paine, of Wisconsin, aged 80.

April 21.—Senator O. H. Platt, of Connecticut, aged 78.

April 23.—Joseph Jefferson, one of the best known actors on the American stage, aged 76.

April 28.—General Fitzhugh Lee, soldier, statesman and diplomat, aged 68.

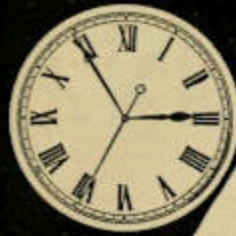
The Paramount Issue

“**A**R-HAR!” wrathfully ejaculated the honest agriculturist, who had detected a gentleman of color in the act of embezzling sundry of his hens at the dead hour of night. “So I’ve ketched you, you infernal black rascal, have I? Well, now, what have you got to say for yerself?”

“What I has to say fuh muhse’f,” replied the colored brother, with overpowering dignity, “am a plenty, sah; and when I feels declined to say it, I sho’ly says it loud and coa’sse! I may be black, sah, as yo’sse’f has done specified, sah, and comin’ plumb down to the pinch I mought be infernal, and all dat; but I neber was one ob dese yeah moufy pussons, sah, dat am allus pow-powin’ about deirse’fs. Nussah! nussah! De question dat am digitatin’ de American people at de present time ain’ whedder I’s black or blue or green or yaller, sah, but what about de trusts?—dat’s de burnin’ prognostication, sah, *what about de trusts?*”

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1/3 the cost

For Coal (even less in many cases) is the claim made for the Peck-Williamson UNDERFEED Furnace.

This claim is made by—

Well known people—
Living in the coldest sections—
After the severest tests.

A recent correspondent, referring to our UNDERFEED, stated:

"I have used it for the past two winters, heating ten rooms and an upper hall at a cost of \$35 per annum."

Hundreds of such letters come to us.

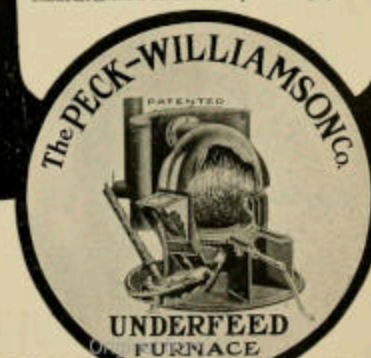
In the Peck-Williamson UNDERFEED Furnace a ton of cheapest grade of coal is made to produce as much heat as a ton of the most costly grade; the coal is fed from below and the fire is on top—the rational way; the gases and smoke do not escape up the chimney as they do in ordinary furnaces, but are consumed as they pass up through the fire; immunity from gas, smoke and dirt; less ashes and no clinkers; simple and strong in construction, easy to operate.

Let us send you **FREE** our UNDERFEED Book and fac-simile voluntary letters proving every claim we make.

THE PECK-WILLIAMSON CO.,

367 W. Fifth Street, Cincinnati, O.

Dealers are invited to write for our very attractive proposition.



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COSTS YOU NOTHING TO TRY

We want *every* smoker in the country to *know* our FEDORA Panetela, the finest cigar for the least money that any cigar factory ever produced.

It has made so many satisfied customers for us, presents such a rare bargain that we know that even the tens of thousands of smokers now regularly using it are but a small part of those who would smoke this cigar *right along* if only they were acquainted with it.

Therefore, we make you a *special proposition* entirely different from our regular plan, so that everyone may improve this exceptional chance and do even better than **SAVE HALF YOUR CIGAR MONEY.**

The FEDORA Panetela is made of fine, *pure*, clear *Havana* filler, wrapped in the highest grade *imported Sumatra*.

Guaranteed equal to any ten-cent cigar at retail, or any five-dollar-per-hundred cigar advertised. Let the cigars *themselves* prove all this. If they do not, the expense is *all* ours.

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Our beautiful catalogue, "Rolled Reveries," sent free for the asking.

JOHN B. ROGERS & CO., "The Pioneers"

874 Jarvis Street, BINGHAMTON, N. Y.

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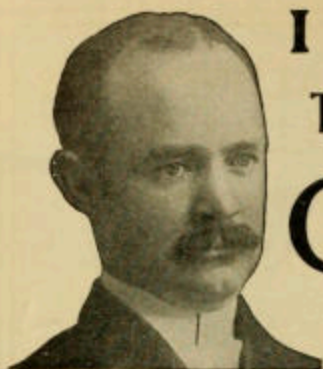
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I WOULD LIKE
To meet those suffering with
CANCER
FACE TO FACE

I would convince them that my method of treating cancer and tumor by absorption (nature's way) far excels the old method of the knife and burning plasters. No pain or suffering as in the former method, but in its place soothing, balmy oils. Consult me in person or by mail before submitting to barbarous methods. Most cases are cured at home. My illustrated book sent free, giving hundreds of testimonials from the best people on earth.

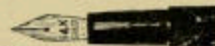
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**If BALDNESS and
FALLING HAIR
were caused by
DISEASE**

physicians would have long ago found a remedy. Tonics and lotions applied to the outside of the scalp do soften the hair—but that's all. By exercising the arms, we build up muscle—not by outside applications of medicine. The arms, the body and the lower limbs can be exercised at will—but the *scalp* requires mechanical aid. Exercise makes the blood circulate, lack of exercise makes it stagnant. The Vacuum method is the kind of exercise that makes the blood circulate. It gently draws the rich blood to the scalp and feeds the shrunken hair roots. This causes the hair to grow. It is the simple, common-sense principle of physical culture applied to the scalp.

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A sixteen-page book, illustrated, will be sent you free.



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Colorado Utah AND THE Pacific Coast BEST
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669 Fullerton Building

St. Louis

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Eyesight Can Be Strengthened and All Forms of Diseased Eyes Cured Without Cutting or Drugging.

That the eyes can be strengthened so that eyeglasses can be dispensed with in the great majority of cases has been proven beyond a doubt by the testimony of thousands of people who have been cured by that wonderful little instrument called "Actina." Actina also cures sore and granulated lids, Glaucoma, Iritis, &c., also removes Cataracts and Pterygiums, without cutting or drugging. Over seventy thousand Actinas have been sold, therefore it is not an experiment, but an absolute fact. The following letters are but samples of those that are received daily:



Mrs. M. E. Champney, 222 West 113th St., New York City, writes:—"The 'Actina' cured me of Iritis, after the doctor said there was no cure outside an operation. I have been entirely well for over four months, can see to read and sew as well as before. I can heartily recommend 'Actina' for all afflictions of the eye."

Emily Knapp, 220 Galena St., Milwaukee, Wis., writes:—"The 'Actina' I purchased from you 2 years ago cured my double eyeght. My teacher was near-sighted, worse teacher, and six glasses, and now he can go to school and do all his work and study without glasses."

E. R. Holbrook, Deputy County Clerk, Fairfax, Va., writes:—"Actina' has cured my eyes so that I can do without glasses. I very seldom have headache now, and can study up to eleven o'clock after a hard day's work at the office."

Actina is not a drug or a lotion, but a small pocket battery, which can be used by old and young with perfect safety. It is impossible to do harm with Actina. Every member of the family can use the one Actina for any form of disease of the Eye, Ear, Throat or Head. Actina will last for years, and is always ready for use. Actina will be sent on trial postpaid.

If you send your name and address to the New York & London Electric Association, Dept. 37N, 222 Walnut St., Kansas City, Mo., you will receive absolutely FREE a valuable book—, Professor Wilson's Treatise on the Eye and on Diseases in General. You can rest assured that your eyes can be cured, no matter how many doctors have failed.

Superfluous Hair Destroyed Forever



FREE to Any Lady. If you are afflicted with a humiliating, disfiguring growth of hair, or any other blemish on face, neck, arms or limbs, write me at once and I will tell you **FREE** how to **DESTROY IT FOREVER.** Many claim to REMOVE the hair temporarily. I enable you to absolutely KILL IT forever, in your own home, privately, painlessly, without the slightest risk of bad effects, and at the same time to secure a perfect complexion and **BE BEAUTIFUL.** Don't experiment with dangerous preparations, lotions, liquids, powders, etc. My method is endorsed by scientists and doctors, and is **guaranteed** by me. (\$100,000 assets back of my guarantee.) Write to-day and be glad forever. Remember this offer is free. Simply write me.

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A figure that is real and permanent, the figure of a physically perfect woman. To prove that it is unnecessary for any lady to be thin or scrawny, I will send you

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a trial treatment of Dr. Whitner's Nerve and Flesh Builder sufficient to convince you that you can get a well-developed bust, beautiful neck, pretty arms, shapely shoulders, so that you can wear with grace low-necked gowns or the tight tailor-made suits so fashionable now. This remarkable remedy develops new flesh and fills out all hollow places, not by false stimulation but by removing the cause of thinness. Write to-day for Free Treatment and handsome booklet "Obtained from life seen in

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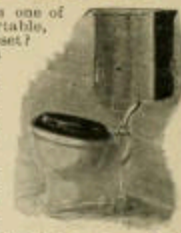
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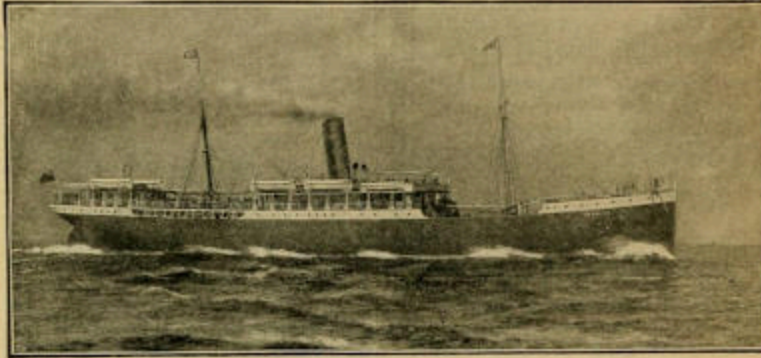
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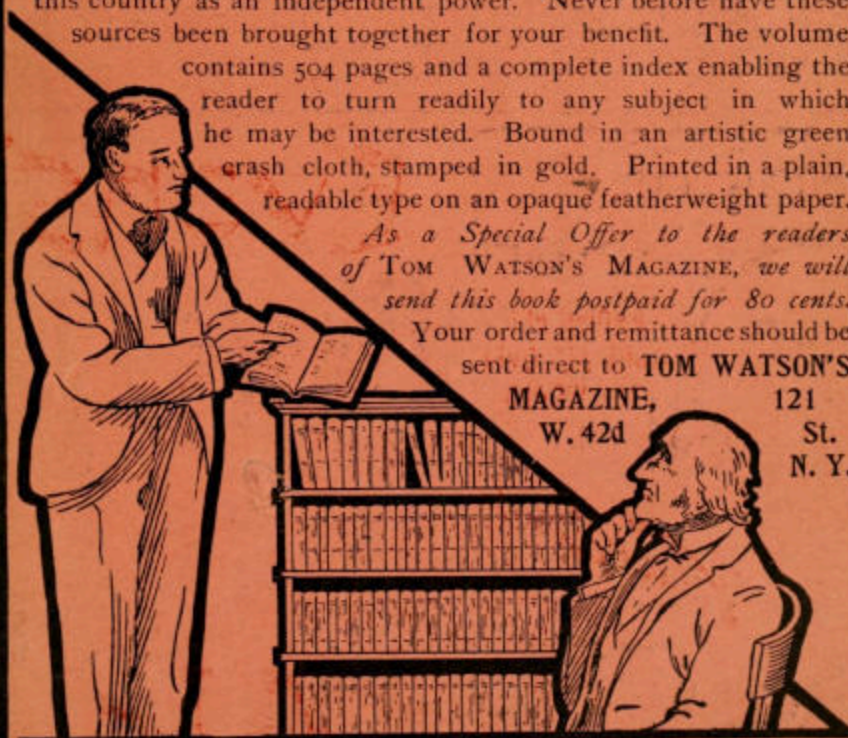
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